

THE ROMANCE OF
WILLS AND TESTAMENTS
E. VINE HALL

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*** START OF THE PROJECT GUTENBERG EBOOK THE ROMANCE
OF WILLS AND TESTAMENTS ***

THE ROMANCE OF WILLS AND TESTAMENTS

BY THE SAME AUTHOR
SONGS AND LYRICAL POEMS
(1908)

In Preparation
SPIRITUAL TESTAMENTS
OR
PRAYERS AND PREFACES FROM
WILLS, &c.

THE ROMANCE OF WILLS AND TESTAMENTS

BY
EDGAR VINE HALL

T. FISHER UNWIN
LONDON: ADELPHI TERRACE
LEIPSIC: INSELSTRASSE 20

1912

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“My Life’s my dying day, wherein I still
Am making, alter and correct my Will.”

FRANCIS QUARLES.

“Remember me when I am gone away,
Gone far away into the silent land.”

CHRISTINA G. ROSSETTI.

“Of Carthage wall I was a stone
O’h Mortals Read with Pity
Time consumes all it spareth none
Man, Mountain, Town nor City.
Therefore O’h Mortals now bethink
You where unto you must,
Since now such Stately Buildings
Lie Buried in the dust.

THOMAS HUGHES, 1663.”

The Carthage Stone, S. Dunstan’s Church, Stepney.

PREFACE

By way of preface it is necessary to explain the sources from which the material for the following pages is taken. The chief feature of these essays consists, I think, in the large amount of original matter rescued from the multitudinous MS. volumes of wills, &c., which are preserved at Somerset House and elsewhere.

As in death, so in those volumes, small and great rest side by side. Of the majority their wills, or, if they died without wills, their intestacies, are their only memorials. But it is fascinating to come suddenly upon some well-known name. In a volume of intestacies of the year 1674, for instance, is an entry stating that administration was granted to Elizabeth Milton, widow of John Milton, late of the parish of St. Giles, Cripplegate, his nuncupative will not having been proved—"testamento nuncupativo dicti defuncti ... per antedictam Elizabetham Milton allegato nondum probato."

Different types and times, the lighter or the more serious pages of this book, will appeal to different readers. I would, for my part, especially suggest attention to wills illustrative of times of plague as likely to interest students of human nature and history. Time and opportunity for research have been limited—not unfortunately, perhaps. Amid greater abundance of material, choice would have been the more perplexing.

It is desired to make full acknowledgment of the various printed books which I have perused, and from which I have sometimes borrowed, viz.: such books as "Wills from Doctors' Commons" (Nichols and Bruce), "Fifty English Wills" (Furnivall), "North Country Wills" (Surtees Society), "Testamenta Eboracensia" (Surtees Society), "Testamenta Vetusta" (Nicolas), "Testamenta Cantiana" (Duncan and Hussey), "Wells Wills" (Weaver), "Lincoln Wills" (Gibbons), "Royal Wills" (Nichols), "A History of English Law" (Holdsworth).

Again, there are books, not directly connected with the subject, in which wills or pertinent tales occur. In this class I am indebted to such books as Messrs. Maclehose's edition of "An Historical Relation of Ceylon" (Robert Knox), "Anna Van Schurman" (Una Birch), "Bygone Leicestershire"

(Andrews), "The Old Sea-Port of Whitby" (Gaskin), "Beckenham Past and Present" (Borrowman), "Walks in Islington" (Cromwell), "*Gentleman's Magazine*," "Table Book" (Hone), "London" (Knight), "Ancient Monuments" (Weever), "Seventeenth Century Men of Latitude" (George), "Ancestral Stories and English Eccentrics" (Timbs), "Haunted Houses" (Harper), "Real Ghost Stories" (Stead), "Naturalisation of the Supernatural" (Podmore), "Dreams and Ghosts" (Lang), "Folk Lore and Folk Stories of Wales" (Trevelyan), "*The Annals of Psychical Science*," and "*The Occult Review*."

Especial acknowledgment is due to Messrs. Constable and Co. for permission to make use of articles in "*The Ancestor*"; to Mr. C. L. Kingsford and the Delegates of the Oxford University Press for permission to introduce the story of the last days of Elizabeth Stow, as contained in Mr. Kingsford's Introduction to his edition of Stow's "Survey"; and to Mr. R. de M. Rudolf for valuable illustrations drawn from his book, "Clapham Before 1700 A.D."

The idea of this book is the writer's own. It was inevitable that the idea should have been anticipated, but of such anticipation I was unaware until the book was under weigh. The nearest approaches which I have read are Mrs. Byrne's "Curiosities of the Search Room: A Collection of Serious and Whimsical Wills" (1880), and Walter Tegg's "Wills of Their Own: Curious, Eccentric, and Benevolent" (1876), to both of which I acknowledge indebtedness. But those who are interested should repair, if possible, to their entertaining pages. An earlier anticipatory volume is G. Peignot's excellent "Choix de Testamens Anciens et Modernes, Remarquables par leur Importance, leur Singularité, ou leur Bizarrerie" (1829).

Since these essays were written Mr. Virgil M. Harris, of St. Louis, Missouri, has published at Boston, U.S.A., a large collection of wills under the title, "Ancient, Curious, and Famous Wills," a work, however, distinct in scope and style from the present book.

Scattered about these pages are instances of wills, &c., gathered from newspapers from time to time. This source, also, is gratefully recognised. Lastly, I have to express my thanks to Mr. Fincham, of Somerset House, for affording me facilities to introduce two or three excellent illustrations of my theme.

Other references are mentioned in the text. If any work to which I am indebted in any respect has not been acknowledged, I trust I may be accorded a ready pardon.

E. VINE HALL.

Wimbledon.

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The Romance of Wills and Testaments

CHAPTER I

THE ROMANCE OF WILLS

I

“The older I grow,” Mr. E. V. Lucas has said, “the less, I find, do I want to read about anything but human beings.... But human beings, as human beings, are not enough; they must, to interest me, have qualities of simplicity or candour or quaintness.”

The words of the writer are peculiarly apt to describe the charm of wills. But the older we grow, the more do men and women, by reason only of their humanity, absorb our interest. In wills human nature is most vividly and variously displayed. In wills the dead speak, and in a manner live again. The poor and the rich, men learned and men illiterate, all alike have made interesting wills. In some cases humour and pathos are more unconscious, in others opportunity for effect is greater; but in wills of every class, and of every age or form, there is much worthy of remark.

Historically they are invaluable records. In them are reflected all social, political, and religious revolutions. By them the history of families or places is preserved and illuminated. As long ago as the sixteenth century John Stow realised their value, and often referred to them in his “Survey of London.” No local record to-day would be complete without the wills of its worthies.

There is unrivalled scope for the imagination in perusing the last dispositions of the dead. How easy it is, with these documents before us, to picture the figures of each generation; the fervent Catholic of the fifteenth century, the pious benefactor of the sixteenth, the “heroic English gentleman” of the seventeenth, the Whig or Tory of the eighteenth; and at all times the homely or eccentric testator who allows many a secret comedy or tragedy to appear, many a prejudice or foible, many a sentiment of resignation or revolt. Some give the impression of peevishness and irresolution, of spite or hate; some of sentimental or petty desires; some of serene care for the future, of dignity and calm.

Little, indeed, in all literature is more arresting than the revelation of personality, the unveiling of intimacies that are seldom seen: in wills these intimacies occur, the veil is withdrawn, in a manner that elsewhere can rarely be observed. Whether they be light or serious, amusing or tragic, the occurrence of such vivid traits in a will gives them a character peculiarly humorous or correspondingly sad. The idiosyncrasy is magnified, the bias more distorted, when placed in such a setting.

On the other hand, the interest of a will may arise not merely or so much from its provisions in themselves, as from our knowledge of the inner history of the testator's life and death. Bishop Corbet, that witty and jovial soul, was one of those fathers who, for all their love and longing, for all their piety, are disgraced by their sons. In his will, dated July 7, 1635, and proved on the 5th of the following September, he wrote: "I commit and commend the nurture education and maintenance of my son and daughter into the faithful and loving care of my mother-in-law, declaring my intent by this my last will, as I have often in my health expressed the same, that my desire is that my said son be brought up in good learning, and that as soon as he shall be fit be placed in Oxford or Cambridge, where I require him upon my blessing to apply himself to his books studiously and industriously."

He had in "health expressed the same" by verse: but the son Vincent, in spite of prayer and admonition, was a ne'er-do-well, and after the Bishop's death a beggar in London. These lines were addressed to him upon his third birthday by his fond but ill-requited father:—

“I wish thee, Vin., before all wealth,
Both bodily and ghostly health:
Nor too much wealth, nor wit, come to thee,
So much of either may undo thee.
I wish thee learning, not for show,
Enough for to instruct, and know;
Not such as gentlemen require,
To prate at table, or at fire.
I wish thee all thy mother’s graces,
Thy father’s fortune, and his places.
I wish thee friends, and one at court,
Not to build on but support;
To keep thee, not in doing many
Oppressions, but from suffering any.
I wish thee peace in all thy ways,
Nor lazy nor contentious days;
And when thy soul and body part,
As innocent as now thou art.”

Or take the case of the Gills, father and son. Alexander Gill, senior, was High Master of St. Paul’s School from 1608 to 1635, and is famous as having numbered Milton among his pupils. A degree of fame is also his for the unsparing use of the rod, which he wielded even upon his son, the under master:

“‘O good Sir,’ then cry’d he,
‘In private let it be,
And do not sauce me openly.’”

In his will we see that as he had ruled in his lifetime, so he would have his wife rule after him. “And although it may seem needless to charge my sons so professed how they should honour their mother, yet I hold it fit in and by this my last will to leave this precept unto them as my last remembrance, charging them as much as I can that, as they hope for a blessing of God to be with them, to give her that honour which is due as the

law of God and nature bindeth them, and in every thing to harken to her counsel and precept and to obey her and be ruled by her.”

Nor is it surprising to find that another son, Nathaniel, “hath refused my correction,” and that he has an “unthankful and injurious brother.” “To my unthankful and injurious brother Simon Gill I freely forgive all debts which he oweth me, with all demands for other charges of food apparel losses and supplies in his want by which I have been much damnified by him, which in a most charitable accompt would come to above fifty pounds; I forgive, I say, all most freely except one bill of eight pounds, which debt I give to my executrix, with hope she will not be troublesome to him by suit thereof except he become troublesome unto her or her children as his manner hath been towards me and others.”

There are other interesting passages, but as a final touch to the will of this stormy nature it may be noticed that he gives “the dust of this wicked carcase to be buried in the dust.” Altogether his will confirms the opinion of Aubrey in his “Brief Lives,” that “Dr. Gill, the father, was a very ingeniose person, as may appear by his writings. Notwithstanding he had moodes and humours.”

Sometimes the circumstances suggest romance. “On the morning of the action between the Portland packet and the Temeraire French privateer, off Guadaloupe, on the 14th of October, 1796,” says Kirby’s “Wonderful Museum” (1803), “Mr. Cunningham, a passenger, who, in a previous engagement sustained by the Portland packet with another privateer, had evinced great courage, observed to the captain that he felt a strong impression that his dissolution was at hand; and on the enemy bearing in sight, he went below and made his will, declaring his hour was come; returning to his station on deck, in a few minutes a bullet verified his prediction.”

So it has been again and again, from the case of Mary Stuart, writing her will in her own hand during the last hours before her execution, or of Archbishop Laud drawing up his will in the Tower, to the case of Señor Ferrer, dictating his testament in the prison chapel at Barcelona.

II

Strange histories, it will be seen, lie behind wills, dull and similar as at first sight the majority appears. The history may not always be explicit, but the suggestion conveyed by some gift or revocation, some phrase or fact, may often be completed by the reader's imagination. So Dorothy Skipwith, of Catesby, in Lincolnshire (will dated 1677), "did revoke and declare void the legacy of twenty guineas mentioned to be given to Mr. Shomoon, a Frenchman living in Whitehall, which she said she so revoked in regard he refused to come to her in the time of her sickness."

At times we know something of that which lies beneath the surface of the will. The Duchesse d'Angoulême (died October 19, 1851) forgives, "following the example of her parents," all who have injured her, expressing her love for France and her gratitude to the Emperor of Austria. And towards the end she states: "I wish all the sheets, papers or books written by my hand, which are in my strong-box or my tables, to be burnt by the executors of my will." These, we are told, were prayers, meditations, notes which might have caused hurt to the feelings of others, lists of charities and books of account. The will is signed in the name of "Marie Thérèse de France, Comtesse de Maines," the title which she took in her days of exile.

Anne Davis, spinster, whose will is dated November 14, 1803, reveals, or half-reveals, some family trouble. She directs that "in case of my demise my poor decayed body to be decently interred in the burying ground of Marybone upon the grave where my late dear aunt and friend lays; her name is on a stone, and I desire mine to be put on the stone.... I desire to have a patent coffin lined on the outside with the best black cloth, nails, etc., etc., and every thing that is proper on this occasion, the best hearse and one coach with the black velvet feathers and porters. I desire Mr. William Joachim, Mrs. Joachim, Miss Joachim and Mrs. Toby ... to see my poor decayed body decently buried upon my dear aunt's grave," and "I desire Mr. William Joachim, my executor, will advertise for my brother Mr. William Davis. The last time I ever saw him was the 8th of May, 1794, for he desired to see my dear aunt when she lay dead. He said he was going down to Portsmouth in the agency line. May God forgive him for all his unkindness to me; I freely forgive him, and please God that he may make a proper use of what I have left him."

Edward Roberts, bachelor, of the parish of St. Clement's Danes (but when he made his will in July, 1664, on board the *Great Eagle*), was open and emotional: "Whensoever it shall please God to call me out of the world, whether I die by sea or by land, I do give will and bequeath all that ever I have or shall leave behind me at my death ... unto Elizabeth Jones whom I love with all my heart and above all women in the world. And if I had a thousand pounds or neversomuch she should have every groat of it."

It needs no subtlety of imagination to diagnose his case; but one would like to unravel the story of romantic tenderness that seems to lurk behind the simple will of a Richard Mathews, servant to Hugh Hamersley, of Spring Gardens, St. Martins-in-the-Fields. He died (was it of love?) on or before the 10th of October, 1779. His will was dated October 5th, and after some legacies, including one to Mrs. Collis, his "late worthy fellow-servant," he continues: "It is my further desire that 5s. apiece may be given to the men as carries me to church, and it is my further desire to be buried in a decent manner and my body laid by a young woman who died at the Rev. Mr. Ellet's some time ago."

That the lover is careful to choose suitably his last resting-place we know from the will of Chrysostom in "Don Quixote." "'This morning that famous student-shepherd called Chrysostom died, and it is rumoured that he died of love for that devil of a village girl, the daughter of Guillermo the Rich, she that wanders about the wolds here in the dress of a shepherdess.' 'You mean Marcela?' said one. 'Her I mean,' answered the goatherd; 'and the best of it is, he has directed in his will that he is to be buried in the fields like a Moor, and at the foot of the rock where the Cork-tree spring is, because, as the story goes (and they say he himself said so) that was the place where he first saw her.'" With similar sentiment Sir Miles St. John, in Lord Lytton's "Lucretia," by his will requested that a small miniature in his writing-desk should be placed in his coffin. "That last injunction was more than a sentiment: it bespoke the moral conviction of the happiness the original might have conferred on his life."

In fiction we may realise what terrible deeds or poignant memories are revived and referred to by the clauses of a will. Thus in Mrs. Henry Wood's "George Canterbury's Will" we know, when Mrs. Dawke's will is read, that her husband is the murderer of her child: "To my present husband ... five-

and-twenty pounds, wherewith to purchase a mourning ring, which he will wear in remembrance of my dear child, Thomas Canterbury.”

In real wills such knowledge is often hidden from us. Yet innumerable touches, tender or strange, harsh or sweet, break through their monotony; ways of life and attitudes of thought, records of deeds or feelings long ago, are brought vividly before us. Do not the romance and spirit of England live again in such a document as this? “Right Worshipful, I safely arrived in the Downs from the Straits the 22nd day of March last and got to London on Easter Eve, where I presented myself to the Dean of Westminster and other friends. But on Easter Monday I was engaged by Sir William Penn to go along with him to the Great Fleet under the command of his Royal Highness the Duke of York, the which I readily embraced as thinking it my duty to appear wheresoever I may in probability do the Church, my Prince, and my Country, the best service possible. I am at present constituted chaplain on board the *Unicorn* where the Lord Peterborough is to sail. Our fleet I can assure you is in a gallant posture, lying not far from Harwich, at all points ready for action. I freely refer myself to the goodness of my God, who hath preserved me hitherto in many dangers (viz.) of battle shipwrecks fire and storms, etc. And if I shall be taken out of the world my desires are as heretofore (viz.) that such moneys of mine as are in your Worship’s hands, or aught else that may be any ways due to me from Christ Church, be about Michaelmas next, 1665, paid unto Alexander Vincent, the eldest son of my brother Ambrose Vincent, or if he shall not then be living unto my eldest surviving nephew whether by brother or sister. I wish all prosperity and happiness to yourself, Dr. Allestry and my friends in Christ Church, and remain your much obliged and true friend and servant John Vincent. (From aboard the *Unicorn* riding with the Fleet not far from Harwich April 12, 1665.)”

But the seafaring spirit has not always run so high, as the will of a Richard French reveals. “At the Cowes in the Isle of Wight the 18th of July, 1636. Whereas by reason of certain disabilities which I have found in myself more than ordinary this voyage, every man being almost disencouraged in respect of the smallness of the vessel and desperateness of the journey, because that my mate Robert Anderson hath by his no small industry and to the maintaining of my credit undertaken this voyage with me and still carefully pursued, I do here in this paper confirm and refer over

unto him by deed of gift, conditionally he goes this journey and I miscarry, all the goods belonging to me in the pinnacle.” Evidently the testator did miscarry, for the document was proved on the 19th of August, a month and a day after its execution.

III

Thomas Eden, whose will is dated at Wimbledon, August 14, 1803, only whets the appetite: “I, Thomas Eden, of sound mind and understanding, though gradually failing in personal strength from advance in years and what I have gone through in my life, do make this my last will and testament.” But many curious items of biography emerge from wills. Sometimes they are accidental or incidental; at other times the testator makes much of them. Philip, fifth Earl of Pembroke, bequeathed “to Thomas May, whose nose I did break at a mascarade, five shillings.” Recently a legacy was left to one whom the testator had nearly burned to death, another to one whom a testator had saved from drowning. “I have been very unfortunate,” wrote a lady lately deceased. “I thought to have a companion for the rest of my days by remarrying, but am once more stranded and alone.”

Sir John Gayer, an illustrious seventeenth-century citizen of London, is still remembered in an annual sermon at St. Katharine Cree, Leadenhall Street, preached by direction of his will in commemoration of his escape from a lion on the coast of Africa. Ezekiel Nash (will dated March 27, 1800) left a charitable legacy for his preservation in an engagement with a French frigate on March the 8th, 1762. A late manager to a shipping company directed that on his tomb should be inscribed the words:

“Let on his soul kind judgment fall,
Who did his best for one and all,”

and the following summary of his achievements: “He helped to change paddle tugs to screw, to initiate high pressure and twin screws for ocean-going steamers, to introduce the Steam line Conference with the rebate system, and to start the Shipping Federation, the London Shipping Exchange, and the British Empire League.”

Richard Forster, in his will dated November 15, 1728, opens with some remarks on the Church and his position therein. "In the name of God Amen. I Richard Forster, an unworthy minister of Jesus Christ, advanced into the order of Christian priesthood according to the usage of the Church of England, the soundest and best constituted part of the Catholic Church, (a great number of whose parochial clergy have been unhappily deprived of a great part of their revenues by the injurious appropriation of tythes glebes and parsonage houses under the iniquity of Popery,) and intending to spend the remainder of my days in the communion and service of this Church, having by the providence of God and the kindness of my friends been first promoted to the Rectory of Beckly, in Sussex, and after to that of Crundale, in Kent, and lastly to the Vicarage of Eastchurch, in Sheppey, (the defects of my duty in all which parishes I pray God of His infinite mercy to pardon,) and being advanced into the seventy-eighth year of my age by the distinguishing favour of God with a sound mind and memory, though with a weak body, I do make and ordain this my last will and testament."

John Wakring's will, proved June 14, 1665, was written at Portsmouth in the form of a letter from on board the *Resolution*, November 23, 1664: "Mistress Elizabeth, my kind love and best respects presented unto you, hoping these few lines will find you in good health as I was at the present writing hereof. I have presumed, hoping it will be acceptable, to acquaint you of the receival of your letter wherein I received much joy to hear of your welfare. I should think myself the happiest man alive if I could attain so much time as for to see you before my departure, but since God has decreed it otherwise by reason of much business imposed upon me, nevertheless I would have you accept of all that is mine as yours if God shall deal with me otherwise than I do expect. In the meantime I would entreat you for to have a great care of what you have in your custody, because it may stand you in good stead hereafter, which is the letter of attorney which I left you in for the receival of all that is due unto me and my servant from the time I came out as clerk and everything else. Furthermore, I give you to understand that I am at the time Sir William Barkley's cook and am in very much respect on all sides, and hope, for all these wars, I shall see you in good estate if God permit. So with my humble duty to your mother, and my kind love to your brother and sister and to all the rest of my friends in general, I rest yours, if God bless and permit me life, John Wakring."

It is in these informal wills, naturally, that such delightful glimpses are more frequently obtained, and perhaps one other example may be tolerated. It is late in the next century, very different in tone from the seventeenth-century heroes, John Vincent or John Wakring. Jane Bowdler was an invalid, a spinster of Bath. The language of her will, proved March 4, 1786, is characteristic of the century. "My dear and ever honoured father, from the great indulgence you have always expressed for me I am led to believe that it will still be a satisfaction to you to comply with some little requests of mine, and therefore I will mention a few things which I would beg you to do for me after my death. And first I beg to repeat the sincerest assurances of my duty love and gratitude to you and my mother, and I pray to God to bless you and reward you for all your kindness to me. I wish these sentiments had been better expressed in my lifetime, but I fear my ill health and loss of speech have sometimes made me a burden to my friends as well as in some degree to myself. These considerations will, however, I trust contribute to reconcile them to my death, since the enjoyment of society has long been in a great measure taken away. Let us rejoice in an humble but comfortable hope that we shall meet again in a far happier state to be separated no more. May God of His infinite mercy grant it."

IV

Above all, the thought that a will is nothing if not a preparation for death gives to its study the ultimate significance. For what can be more momentous than decisions then; what more humorous, in the older and deeper sense, than foibles and follies at such an hour? What can be more arresting than the persistence which prompts a man at the approach of death to seal his life's work, evil or beneficent, with the sanction of his will? "Even on the verge of the grave he sought to slake his ambition by unlawful means; and he succeeded," says Dr. August Fournier of Napoleon I. Charles V., in a codicil executed a few days before his death, solemnly exhorts his son to extirpate the heresy of Luther. Señor Ferrer dictates his will in the prison chapel at Barcelona, emphasising the salient points of his belief. There is no retractation or regret.

John Boyce, "he being desperately wounded in one of his legs the 25th day of July, 1666, in the engagement with the Hollanders" sets his hand and seal to his testament "first in the presence of my God above, and in the

presence of us John King, Robert Goulding.” There is a fine simplicity and solemnity in that. The Noble Robert Dunant, whose will is dated at Geneva, August 12, 1768, writes simply and solemnly too. “I the underwritten Counsellor of State, having first humbled myself before God and implored the assistance of His good Spirit to conduct me wisely as well in the present as all the other acts of my life, have made and do make my will in the following manner.”

But casual and worldly wills are common enough. A few words on a picture-postcard, “All for mother” on an old envelope, have been thought enough, or have proved enough for a valid will. Mrs. Lirriper’s legacy, readers of Dickens will remember, was written in pencil on the back of the ace of hearts. “To the authorities. When I am dead pray send what is left, as a last legacy, to Mrs. Lirriper, eighty-one Norfolk Street, Strand, London.”

With others the preparation for death is a pious literary task. Recently a little volume found its way into the writer’s hands from the Maison du Sacré Cœur de Beauvais, a “Testament Spirituel,” which, though not executed for a court of law, must have found favour in the courts of heaven. In wills, indeed, we see the romance of souls. Catholic, Anglican, and Protestant dedications of the soul to God, whether in the fifteenth or the sixteenth century, are often very beautiful and touching. In the nineteenth and twentieth centuries the custom and tradition have departed. Only occasionally a Catholic or a fervent Evangelical recalls forgotten days. Some examples of eighteenth-century piety will be given later, but these essays would not be complete without other illustrations.

As an example from Catholic England the following is typical: “In the name of God, Amen. I Dame Anne Haydon, widow, being in my whole mind and of good memory the XVIIth day of December in the year of our Lord God 1509, and in the first year of King Henry the VIIIth, make this my testament and last will in manner and form following, that is to say, First, gracious Jesu, I as a sinful creature by reason of my demerits not worthy to be accepted into the holy company of heaven to continue in that holy place, Lord, without Thy great and large mercy and grace, (the which through Thy Passion to every Christian man meekly and lowly asking graciously grantest): Wherefore I now being in my full and whole mind and in perfect love and charity, and in steadfast faith, ask and cry Thee, Jesu, our Lady Saint Mary Thy blessed Mother, all the holy company of heaven,

and all the world, mercy, trusting verily that through Thy Passion and with the succour and relief of that gracious Lady Thy Mother and Maid to sinners to her calling for help of her great pity greatly and very comfortable: Wherefore, blessed Jesu, I commit my soul to Thee and to Thy blessed Mother our Lady Saint Mary and to all saints of heaven through the mean and help of St. John Baptist, St. Anne, St. Mary Magdalen and St. Christopher mine avouers. And my sinful body to be buried in the Chapel of St. Luke in the Cathedral Church of the Holy Trinity of Norwich, if I die in Norwich or in Norfolk.”

Such is a common form, diversified by individual and expressive variations, of wills in those days. The Reformation changed the form but not the spirit of these avowals. “I render back,” wrote Sarah Ward in 1662, “into the hands of my God and Creator the soul I received from Him, humbly desiring His fatherly goodness for the infinite merit of His Son Jesus Christ and His all-sufficient Passion, (on which I wholly rely, disclaiming any confidence in saints or angels,) that He would make it partaker of eternal life and a citizen of His heavenly Kingdom. My body I bequeath to the earth whence it was taken, firmly believing the resurrection of the dead, and that I shall rise again in the last day, and see God in my flesh with the self-same eyes I now use and no other. The manner of interring it I leave wholly to my executors ... being no farther solicitous for so contemptible a remnant than as it is yet the hospital of a reasonable soul.”

But with the fervent eloquence of Thomas Peniston, of St. Margaret’s, near the City of Rochester, Esquire (proved the 5th of September, 1601), these considerations must be concluded. “In the Name of the most holy and incomprehensible Trinity, Father, Son and Holy Ghost, in Person three, in power one, almighty and everlasting God, Creator of Heaven and Earth and all therein contained, to whose glorious Deity I poor wretch His creature do from the bottom of my heart and soul render most humble and most hearty thanks for all His innumerable benefits bestowed on me, as my creation of nought, my redemption by that divine mystery of the Incarnation and generous Passion of my sweet Saviour Jesus Christ, when I was through the offence of my forefather Adam become worse than nought, my continual preservation in the life present, mine election to Salvation before the foundations of the world were laid, my assured hope of glorification in time

to come through His infinite mercy by the mediation of Jesus Christ, and for all whatsoever hath befallen me of good since my first entrance into this vale of misery, acknowledging them all to have proceeded merely of His unspeakable bounty and goodness without any spark of merit or desert in myself, and so much the more am I bound to Him for the same, most humbly beseeching His most glorious Majesty to accept in good part this my sincere sacrifice of thanksgiving as the only oblation which my poor sin-distressed soul in all humbleness of heart and ferventest spiritual zeal can offer unto Him for all those His manifold graces towards me, and that it will please Him for His mercy's sake in the blood of that immaculate Lamb of God, Jesus Christ, to vouchsafe to continue His gracious goodness towards me both now and at all times hereafter, and at the present by the assistance of His Holy Spirit so to direct me in the setting down of this my last will and testament as the same may best sort to His glory, my comfort, and the good of those whom it may concern.... And first as the most principal part I do with a free and cheerful heart bequeath my soul unto almighty God the Creator and Redeemer thereof, most humbly beseeching Him for His mercies' sake through Jesus Christ the only begotten and well-beloved Son of God the Father, in whom He is well pleased, to receive the same into His most holy and gracious protection, cleansing and purging the sinful deformities thereof with the precious blood of that my only sweet Saviour, and to bury all my transgressions and offences of what nature or kind soever in the bottom of the sea, that they never rise up in judgment against me, but that I (though of myself the most miserable sinner alive), through His infinite and unspeakable mercy by His loving imputation of the perfect righteousness and true obedience of that my most sweet Saviour Jesus Christ, who being perfect God became man, and after full performance of God's most holy laws and commandments endured the most horrible tortures of death thereby to save my poor soul from the intolerable and endless torments of hell fire, which of itself (ah woe is me therefore) it hath deserved, and to make it inheritable to the unspeakable joys in Heaven; of which His most gracious favour being thoroughly assured by His holy Spirit in my soul which continually warranteth me to sing all honour, glory and praise unto my dear Father in Heaven, who in His mercy, (which by many thousand degrees exceedeth my manifold transgressions,) hath created and adopted me to be an heir of His heavenly and everlasting kingdom, I most assuredly hope and undoubtedly expect that whenso it

shall please His incomprehensible Deity the fullness of time to be expired, this poor soul of mine being through His all-working power knit again to this my flesh which then shall be made incorruptible and immortal, I shall without end in Heaven enjoy the sight of my most glorious and everlasting God my Creator, Redeemer and Comforter, and there for ever with the holy saints, angels and archangels, laud honour praise and worship His most holy Name to my infinite unspeakable and sempiternal comfort. And as concerning my body which I hope I shall be always at the pleasure of my good God most ready to yield up, I will that after my death the same shall be buried in decent sort by the direction of my executors in the Cathedral Church of Rochester according to my degree and calling.”

V

It will readily be realised how wills from time to time illustrate the bare facts of history, with what vividness they might invest them if more frequently cited. Thus Margaret, Lady Hungerford, in 1476 enjoins her heirs not to disturb any of the alienations of her property, which she had been obliged to make owing to “seasons of trouble time late passed,” viz., the Wars of the Roses. Richard Lumley, Knight, Lord Viscount Lumley, writes on the 13th of April, in the thirteenth year of Charles II.: “And could I have done more for my family than I have done I would; and had done much more for them had not I had so great losses by the late calamitous times.”

Richard Burnand, of Knaresborough (1591), gives to his cousin “Dynnys Baynebrigge and his wife two silver goblets, worth in value XLs a piece, with my arms and name upon them, and they to have the use of them during their lives; and after their deceases I give the same goblets unto Anne Faux and Elizabeth Faux.” To Guy Faux he gives “two angels, to make him a ring.” This Guy is the celebrated and almost mythical figure in whose honour bonfires still flare on November 5th. Anne and Elizabeth were his sisters, and Mrs. Baynebrigge, widow of Edward Fawkes, their mother. Moreover, by the wills of Robert Wilcox in 1627, and of Luke Jackson in 1630, sermons were directed to be preached yearly on November 5th in honour of the discovery of the plot.

In days to come, perhaps, peculiar interest will attach to the will of Mlle. Meunier, the Frenchwoman who sympathised with the views of Ferrer

and left him a considerable legacy some ten years before his execution. But who can estimate the value of Raisley Calvert's legacy to Wordsworth, whereby the poet was relieved of the deadening care of money-making?

“A youth—he bore
The name of Calvert—it shall live, if words
Of mine can give it life,) in firm belief
That by endowments not from me withheld
Good might me furthered—in his last decay
By a bequest sufficient for my needs
Enabled me to pause for choice, and walk
At large and unrestrained, nor damped too soon
By mortal cares. Himself no Poet, yet
Far less a common follower of the world,
He deemed that my pursuits and labours lay
Apart from all that leads to wealth, or even
A necessary maintenance insures,
Without some hazard to the finer sense;
He cleared a passage for me, and the stream
Flowed in the bent of Nature.”

Changes and controversies in the Church find an echo in wills. Dr. Sanderson, Bishop of Lincoln, whose will was made about three weeks before his death (January 29, 1662-3) professes his faith at a significant date: “And here I do profess that as I have lived so I desire and—by the grace of God—resolve, to die in the communion of the Catholic Church of Christ, and a true son of the Church of England: which, as it stands by law established, to be both in doctrine and worship agreeable to the word of God, and in the most material points of both conformable to the faith and practice of the godly Churches of Christ in the primitive and purer times, I do firmly believe: led so to do, not so much from the force of custom and education—to which the greatest part of mankind owe their particular different persuasions in point of Religion,—as upon the clear evidence of truth and reason, after a serious and impartial examination of the grounds, as well of Popery as Puritanism, according to that measure of understanding, and those opportunities which God hath afforded me: and

herein I am abundantly satisfied that the schism which the Papists on the one hand, and the superstitions which the Puritans on the other, lay to our charge, are very justly chargeable upon themselves respectively. Wherefore I humbly beseech Almighty God, the Father of mercies, to preserve the Church by His power and providence, in peace, truth, and godliness, evermore to the world's end: which doubtless He will do, if the wickedness and security of a sinful people—and particularly the sins that are so rife, and seem daily to increase among us, of unthankfulness, riot and sacrilege—do not tempt His patience to the contrary. And I also further humbly beseech Him, that it would please Him to give unto our gracious Sovereign, the reverend Bishops, and the Parliament, timely to consider the great danger that visibly threatens this Church in point of religion by the late great increase of Popery, and in point of revenue by sacrilegious inclosures; and to provide such wholesome and effectual remedies, as may prevent the same before it be too late.”

Similarly, Richard Ward, whose will is dated February 6, 1664-5, bequeaths his “body to the earth whence it was taken, to be decently and Christianly buried according to the order of the Church of England ... wishing and praying from my very soul that this sinful and unthankful kingdom may never forget or forfeit that most miraculous mercy of God in restoring and establishing it.” Such contemporary comments are fascinating; so, too, the spirit of the same testator who dedicates his “young tender and only son George Ward” to the service of the Church, “if God shall so dispose his heart, which I trust He will because I am not without hopes that God Almighty did accept of my solemn dedication of him before he was formed in the womb. And the good God be his guide and portion.” It is not surprising to find this gentle spirit “languishing under the fatherly visitation of my most gracious God, to whose good pleasure I with all cheerfulness submit,” and speaking of his “dear sweet wife” and “dear and tenderly loving wife.”

The Restoration is a landmark in history. But there are passages in wills which recall the clash of controversialists forgotten now, yet provocative of fierce animosities in their time. Edward Evanson, who became Rector of Tewkesbury in 1769, was a modernist and innovator, a Richard Meynell of his day. In reading the services he would adapt words or phrases at pleasure, and in the lessons point out errors of translation. But a crisis was provoked

by a sermon on the Resurrection preached at Easter, 1771. He was prosecuted in the Consistory Court of Gloucester, for “depraving the public worship of God contained in the liturgy of the Church of England, asserting the same to be superstitious and unchristian, preaching, writing, and conversing against the creeds and the divinity of our Saviour, and assuming to himself the power of making arbitrary alterations in his performance of the public worship.” Finally the charge fell through, on technical grounds, in 1777, but Mr. N. Havard, town clerk of Tewkesbury, published a narrative of the case. After a life of controversy Evanson died on September 25, 1805.

We can trace out bequests both for and against this troubler of the peace. Penelope Taylor, of Worcester, a widow with views beyond the circle of her home, gave by a codicil dated July 5, 1776, to Mr. Havard £200 to testify her approbation of his conduct “in the prosecution against Mr. Evanson, Vicar of Tewkesbury, and toward the expense of that laudable suit in the defence of Christianity.”

But Dr. Messenger Monsey, with no measured language, in his will dated twelve years later, upholds the other side. The controversy was not forgotten. Dr. Monsey was a contemporary of Dr. Johnson, one who “talked bawdy” in the latter’s less than elegant phrase. His will, in several respects noteworthy, must appear again. He had given, he says, by a previous will an annuity of £50 to Mr. Evanson; but since he had declined it, the testator substituted a nominal gift of £10 per annum, to manifest his great regard “for my friend Mr. Edward Evanson, and the opinions I have of his abilities and integrity in standing forth so ably as he has done in support of reason and true religion against the nonsense jargon and impiety so avowedly professed by a set of A. B———ps, D———ns, P———ts, and D———cons, who stood forth in defence of creeds articles and subscriptions without suffering or promoting any reformation for establishing the purity and simplicity of reasonable Christianity.”

Last of all died Evanson. His will is disappointing. It opens thus: “I Edward Evanson think it my duty under present circumstances to dispose of that portion of worldly property with which it hath pleased the divine providence of God to bless me.” Otherwise there is no reference to religion, none to his stormy life, save this incidental remark: “Conscientious objections to the Liturgy of the Established Church having prevented my

standing godfather for my brother-in-law Mr. William Alchorne's son, which I should otherwise have done, in lieu of the customary baptismal gifts I now give and bequeath to Mr. Wm. Alchorne aforesaid the sum of £50 in trust and for the sole use of his son Evanson Alchorne." His wife Dorothy was residuary legatee, and the will, witnessed by three servants, was dated April 8, 1805, and proved on October 16th. He was a fighter; but not one of those who make militant wills, proclaiming, as it were with the last breath, their prepossessions and beliefs.

VI

"When London's plague, that day by day enrolled
His thousands dead, nor deigned his rage to abate
Till grass was green in silent Bishopsgate,
Had come and passed like thunder—still, 'tis told,
The monster, driven to earth, in hovels old
And haunts obscure, though dormant, lingered late,
Till the dread Fire, one roaring wave of fate,
Rose, and swept clean his last retreat and hold."

WILLIAM WATSON.

It was to be expected that the plagues would leave their mark on these records, and very tragic such traces are. Many were driven to make their wills while still in health, but others delayed till the sickness had seized them. Of the latter more will be quoted hereafter; a few of the former may here illustrate the plague of 1665. It is strange that Defoe did not embellish his narrative with documents so vivid.

Death came swiftly, nor was it possible always to set the will down in writing. "Memorandum that on or about the nineteenth day of July in the year of our Lord God 1665 Edward Thompson, late of the parish of St. Paul's in Covent Garden in the County of Middlesex, shoemaker, being then of good health of body and of good or perfect memory, but his house being then shut up and visited with the plague, and one of his children shortly before dying in the house of the same disease, he declared his last will and testament nuncupative, or by word of mouth, in these or the like words following, that is to say: It is my last will and desire that, if it please

God to take me out of this world by this present visitation, that then my loving friend and cousin, Mr. Andrew Caldwell, shall take care of my son Alexander Thompson, (being then his only surviving child) and shall bring him up and put him forth an apprentice, and when my said son shall come to full age to give him a just account of my estate and pay unto him what shall be then remaining thereof in his hands. But if it shall please God that my said son Alexander shall die also, then after the death of my said son I give to my two brothers in Scotland and to their children 1/- apiece. And all the rest of my goods, chattels and estate whatsoever I give and bequeath unto the said Andrew Caldwell, in regard I have been more beholding unto him than to my brothers or to any friend in the world.” Evidently he was struck down swiftly, for on the 5th of August following this will was proved.

We see the fear of death hanging over the town, and how hastily wills were prepared. “My mother desired me on her death bed to be a brother to my sister Mary Grover, and if she lived to give her in money ten pounds, (and) a gold ring which was my mother’s.... If it should please God to take me away, and my sister alive, I desire she should have all that is her’s.... John Hunt will be one to see that it be not baffled away but carefully looked to for the good of my poor sister.... And my desire is that she be defrauded of none, but that care be taken for the child’s bringing up. As for my burial accordingly to the discretion of my overseers: if healthy times decently, if other times according to their appointment. This I writ myself for fear I should be deprived by sudden death.... The trunk at Mr. Hall’s and chest and box are top full of the best of linen and other things, and my trunk is top full at the Tavern.... If I die I pray let this be engrossed and put for my will in court. Written 1st September, 1665.” (John Grover, proved May 13, 1666.)

Henry Dickens, of St. Martin’s-in-the-Fields, cordwainer, makes his will “being at this present sick and weak in body, but of sound and perfect mind and memory, for which I give all possible praise and thanks to Almighty God, and not knowing what may befall me in these sad times of God’s heavy visitation with the plague, (dated September 6, 1665, proved May 4, 1666);” Ralph Tymberlake, tallow chandler, “calling to mind the great uncertainty of this life, especially at this time when the arrows of God’s wrath are amongst us,” (dated September 9, 1665, proved September 20th); and John Garland thus: “The Lord’s hand being evidently gone out against

this city, and not knowing how soon the stroke of death may be my portion, in order thereunto I make this my last will and testament. And in the first place I commit my soul into the arms of my Saviour the Lord Jesus in hope of His appearing at the resurrection of the dead, that when He appears I also may appear with Him in glory; and my body to be buried in a decent place and without funeral pomp, and so deep in the earth as not unnaturally to take up other men's bones or too easily to scratch up my own by others." (Dated August 15, 1665, proved January 5th following.) What bitter irony that at such a time he wishes to be buried "without funeral pomp"!

But peculiarly pathetic is the will of Henry Mabank. It is a letter to his mother, in the country, perhaps, and dreading every hour to hear that her son was stricken. It was proved on May 4, 1666. "Dear Mother, my duty to you remembered, and my love to my brothers and sisters and to Mr. Rudd and Mistress Rudd and Billy and to Henry Chandler, hoping you are all in good health as I am at this present writing, thanks be to God. Dear Mother, my desire and will is, that if you never see me more that my brother George and sister Betty and sister Ann shall have £100 which is upon bond equally divided between them.... Dear Mother, if it please God that I live till the 7th of August there will be £10 due to me from my master and £3 due the 20th of August upon bond. This £13 I will leave to your disposing. I am not afraid of the sickness, yet it is very near our house. I pray excuse me from writing every week; you shall hear of my welfare in Mrs. Rudd's letters. So in haste I rest, Your dutiful son till death, Henry Mabank. July the 20th, 1665."

Finally, the horrors of the plague and its attendant heroisms are recalled by the will of Sir Edmund Bury Godfrey, proved April 14, 1679. His will is otherwise remarkable, consistent with his fine independent character, and this opportunity may be taken for quoting it in part. How little his wishes were observed students of his life will know, and they will know also how peculiar were the circumstances of his death, which are briefly related at the close of the following essay. "I desire my executors ... to cause my body to be privately buried in the meanest place of burial belonging to that parish or place wherein I shall die but not in the Church, this to be performed without pomp or pageantry, not to be accompanied with numerous attendants either of friends or relations the which as I affected not in my lifetime I would not have imposed on me being dead: to that end, and to avoid being

troublesome to the world and especially to the streets when dead, I desire to be buried very early in the morning or very late at night with as much privateness as may be, without any solemn invitation of my acquaintances or kindred as also without any funeral sermon or other harangue, which I do hereby forbid, any monument or other memorial of stone or brass to be made for me, hoping that my failings will be buried with me in the grave without any partial remembrance of evil or good actions, if any such have been, which are so called at the relator's pleasure. As for the Charity which I have for some years bestowed on the poor of the parish of St. Martin's in the Fields aforesaid, viz. 10/- in bread on every Lord's Day or on some day at the beginning of each week, my will is that my executors ... do jointly and severally take care and continue to do the same by themselves for the space of ten years from and after the time of my decease.... And I do further will that the Charity by me given of 2/- per week in bread to the poor of the parish of Selling being the place of my birth^[1] ... be weekly continued to be given ... in the same manner during the same time and on the like terms as are already mentioned in the behalf of the poor of the parish of St. Martin's in the Fields aforesaid, and be continued after the determination of twenty-one years on the same terms therein expressed at the discretion of my executors their heirs or executors and no otherwise. Item: I give unto my brother Mr. Peter Godfrey, if he shall be living at the time of my death and not else, one hundred pounds instead of my great silver flagon once intended him whereon are engraven His Majesty's Royal Arms with my own adjoined, and was so given unto me by order of the King and Council in memory of the service which God enabled me to perform towards the visited poor in that dreadful year of plague 1665, the which I am always to remember with humility and true thankfulness.... And I do particularly give unto my brother Mr. Michael Godfrey my great flagon aforementioned of the King's gift."

After the plague, the fire. That naturally does not loom large in wills, but references may be found. Thus Edmund Calamy, "minister of the gospel," whose will was dated October 4, 1666, and proved November 14th, gave to his "dear and loving wife," Anne Calamy, "all the ground whereon my house stood which was lately burned down, called or known by the name and sign of the Rose, and was situate and being in St. Nicholas Lane, London, and all the timber and all the materials which did belong to the same that yet remain unburned, (if any be)." "And as for the manner of

my burial, my desire is to be buried in the ruins of Aldermanbury Church; and in regard of my many children my will is that, besides mourning unto my relations, nothing be given at my funeral, not doubting that my friends and acquaintances, who shall come to perform their last office of love to me, will not come out of expectation of anything, but out of pure love and respect to the memory of their deceased friend.” This Edmund Calamy was committed to Newgate on January 6, 1663, the first Nonconformist who suffered for disobedience to the Act of Uniformity. Set free by order of the King, he was driven through the ruins of London, and the sight, it is said, broke his heart. He died on October 29, 1666, and was buried in the ruins of his church, “as near to the place where his pulpit had stood as they could guess.”

Lastly, Thomes Rich (dated July 31, 1672), devised a messuage and premises in Lime Street, St. Andrew Undershaft, the rents to be distributed as to 40s. yearly to the minister of the parish to preach there two sermons, one on New Year’s Day, the other on the third Tuesday in September, in thankfulness to God for the preservation of the parish from the Fire.

VII

Appended to the will of Thomas Appletree, a lengthy document, is the following memorandum: “Be it remembered that on Saturday the one and thirtieth day of March last past before the date hereof (April 27th, 1666) Thomas Appletree, of Dadington, ... Esq., lying sick in his bed, (his brother William Appletree of Dadington aforesaid, Gentleman, being by his bedside, and Lettice Appletree daughter of the said Thomas Appletree being in the same chamber,) his said brother William Appletree said thus unto him:—Brother I know you have made your will, pray where is it? His answer was:—It is in the little trunk at my bed’s feet.”

In this case the survivors seem to have been more anxious than the dying man that the will should not be mislaid. They were not subject to the delicacy of feeling of Mr. Weller in a later age. “Samivel,” said Mr. Weller accosting his son on the morning of the funeral, “I’ve found it, Sammy. I thought it wos there.” “Thought wot wos where?” inquired Sam. “Your mother-in-law’s vill, Sammy,” replied Mr. Weller. “In wirtue o’ vich, them arrangements is to be made as I told you on last night respectin’ the funs.” “Wot, didn’t she tell you were it wos?” inquired Sam. “Not a bit on it,

Sammy,” replied Mr. Weller. “We was a adjestin’ our little differences, and I was a cheerin’ her spirits and bearin’ her up, so that I forgot to ask anythin’ about it. I don’t know as I should ha’ done it indeed, if I had remembered it,” added Mr. Weller, “for it’s a rum sort o’ thing, Sammy, to go a hankerin’ arter anybody’s property, ven you’re assistin’ ’em in illness. It’s like helping an outside passenger up, ven he’s been pitched off a coach, and puttin’ your hand in his pocket, vile you ask with a sigh how he finds hisself, Sammy.”

The danger of a will’s loss or destruction preys upon some minds, a subject which must be recurred to in the last chapter of this book. Various expedients to facilitate the finding of the will are adopted. Dr. Thomas Cheyney, Dean of Winchester, whose will was proved in 1760, began a codicil thus: “Whereas by my last will (which may be found in the innermost part of a little walnut bureau with one glass door in my long gallery)....” Lord St. Leonards, the lawyer, made every effort for the safety of his will, it being carefully kept in a strong-box and securely guarded, as was thought; but when he died in 1875, and the box was duly opened, the will was missing after all.

“Thackeray,” says G. W. E. Russell in “Seeing and Hearing,” “did not traffic very much in wills, though, to be sure, Jos. Sedley left £1,000 to Becky Sharp, and the opportune discovery of Lord Ringwood’s will in the pocket of his travelling-carriage simplified Philip’s career. The insolvent swindler, Dr. Firmin, who had robbed his son and absconded to America, left his will ‘in the tortoiseshell secretaire in the consulting-room, under the picture of Abraham offering up Isaac.’”

A missing will is the novelist’s delight. In Miss Everett Green’s “A Will in a Well,” among the incoherent sentences of a dying man, the words “Search well” are overheard. But it needed an acute intellect to realise, after every effort had been made to find a satisfactory *last* will, that it was a disused well that should have been scoured for the document. In Mrs. Wilfred Ward’s “Great Possessions” a lost will is found, and redeems the testator’s reputation.

No hiding-place is too unlikely. When Lord Hailes died in 1792 no will was to be found. The daughter and only child had given up hope of possessing the mansion-house, but when her servants were locking it up and closing the shutters, from behind a panel there fell the will which secured

her the estate. Harris Norman, a pedlar, who died worth over £11,000, left a will which was found in a silk hat; and lately a curious story was told in the Probate Court of a will found in a clock. The deceased's husband, it was stated, made a search for a will, but was for some time unsuccessful. As the greater part of his wife's property consisted of freeholds, in which under an intestacy he would take but a curtesy interest, it was with anxiety that the search was made. Eventually, at the back of a clock on the mantelpiece, the will was found, betrayed by the stopping of the clock. Not unnaturally a charge of forgery was set up. It is certainly dangerous, for more than one reason, to hide a will securely away. In this case the judge pronounced in its favour. "What more likely than after the deceased had been worried to make a will for little Hilda (her niece), she thought that she would leave her property to her husband? Was it likely that she would tell any one? Was it not likely that she would put it in some place—as in the back of the clock—which would not be opened for some days after her death?"

On the other hand, the High Court of Bengal, in 1903, refused to admit to probate a will which was stated to have been searched for and found in a tin box formerly in the possession of one who was said to have been the custodian of the will in his lifetime, and the Court said: "We hold that fraud and deceit were practised at the finding of the will." Certainly wills are given sometimes to friends for custody, and then themselves bequeathed. Charles Johnson, for instance, seaman of the frigate *Coventry*, in his will dated 1778, stated that he had two wills in his possession, and these at his death he gave to his friend Henry Dye, belonging to the same ship.

"Memorandum, that on the three and twentieth day of July, 1595, this will was found in the little black trunk of the said Elenor Clarke standing at her bed's foot, being found locked and opened in the presence of us John Worsopp, William Payne, John Smithe." The heirs of Charles William Minet, who died in 1874, a descendant of a family which had fled from France at the persecution of Protestants in 1686, were not so fortunate. No will could be found, and his manor-house was sold. But in 1905, on a death in another branch of the family, some neglected cases were examined, and in one of them lay the will. It showed that the estate had been settled in tail, and it was accordingly repurchased, that the testator's intentions might not be frustrated.

But intentionally or unintentionally, a will may be destroyed. The romance of wills breathes from this codicil to the will of a West Indian merchant. "Grenada, 20th March, 1795. I Simpson Strachan, of said Island, and in the town of St. George Northant, do make this codicil to my last will and testament dated 1786, the day and month I do not at present recollect nor can I have recourse to said will by reason of its being buried under ground to prevent its being burnt by the enemy." Sometimes a happy chance may preserve the tenour of a will. The estate of a testatrix who died in 1872 being at the time valueless, her will was not proved. But recent improvement in certain property made probate a necessity. The original will, however, had been destroyed in a fire, and only the copy of a copy remained. This copy, though imperfectly transcribed, was admitted to probate, subject to obvious emendations.

At other times a more serious problem is presented. A will may be destroyed by the testator, or in his presence, but not necessarily so as to revoke or annul it. Upon this point interesting actions turn from time to time, and curious family histories are disclosed. It is very difficult to decide in some cases whether the deceased himself destroyed the will or whether at the time he approved of its destruction; the time and temper lost, the publicity involved, show how foolish it is to die intestate. If one wishes the estate to devolve under the statutes for the distribution of intestates' property, it is still possible to make a will stating that this is the testator's desire.

As foolish is it to die intending that a torn will shall be valid. In 1908 a Yorkshireman died, leaving as his will one that had been torn in fragments by his wife. Next day she pinned the pieces together, and the matter was dismissed as a joke. The testator only laughed when it was suggested that trouble might ensue through the tearing of the will. "By the Wills Act a will might be revoked by tearing by the testator or by his authority and in his presence. This will had undoubtedly been torn up in his presence, but there was no evidence that it had been done by his authority; indeed the evidence was all the other way.... No will could be revived except by a duly executed document, and similarly the testator could have revoked his will by another will had he wished to do so. It was, however, clear that he always regarded the torn will as a good one and examined it to see if it was legible. Something had been said as to all Yorkshiremen being lawyers. They were a

hard-headed people, and the testator's view was quite correct." So said the learned Judge.

Of all acts which exasperate the human sense of piety and justice, perhaps the most exasperating is the destruction of a will after the death of the deceased. The destruction of the will of George I. by his son George II. is famous in history, but in view of evidence recently adduced we need not enlarge upon the traditional interpretation. Some wills, indeed, are better destroyed.

For the purposes of poetry, drama, and fiction, this theme is obvious but not negligible. There is a remarkable similarity between the atmosphere of Sir Arthur Pinero's dramas and George Crabbe's poems. Each, too, has chosen in one instance the criminal destruction of a will to build upon, and while Crabbe's poem, "The Will," is slight and Pinero's drama, "The Thunderbolt," is subtle, yet poet and dramatist are worth comparing.

In "The Will" a father wishes to disinherit his unworthy son and leave his estate to a worthy friend. The friend dissuades him, but keeps the first will in case the father should revive it.

"The Will in hand, the Father musing stood,
Then gravely answered, 'Your advice is good;
Yet take the paper, and in safety keep;
I'll make another will before I sleep,
But if I hear of some atrocious deed,
That deed I'll burn, and yours will then succeed.
Two thousand I bequeath you. No reproof!
And there are small bequests—he'll have enough;
For if he wastes, he would with all be poor,
And if he wastes not, he will need no more.'
The Friends then parted: this the Will possess'd,
And that another made—so things had rest."

Until the father died.

“Unhappy Youth! e’er yet the tomb was closed,
And dust to dust conveyed in peace reposed,
He sought his father’s closet, searched around,
To find a will: the important will was found.
Well pleased he read, These lands, this manor, all
Now call me master! I obey the call!
Then from the window looked the valley o’er,
And never saw it look so rich before.
He viewed the dairy, viewed the men at plough,
With other eyes, with other feelings now,
And with a new-formed taste found beauty in a cow.
The distant swain who drove the plough along
Was a good useful slave, and passing strong!
In short, the view was pleasing, nay, was fine,
‘Good as my father’s, excellent as mine!’
Again he reads,—but he had read enough;
What followed put his virtue to a proof.
‘How this? to David Wright two thousand pounds!
A monstrous sum! beyond all reason!—zounds!
This is your friendship running out of bounds.
Then here are cousins, Susan, Robert, Joe,
Five hundred each. Do they deserve it? No!
Claim they have none—I wonder if they know
What the good man intended to bestow!
This might be paid—but Wright’s enormous sum
Is—I’m alone—there’s nobody can come—
’Tis all his hand, no lawyer was employed
To write this prose, that ought to be destroyed!
To no attorney would my father trust:
He wished his son to judge of what was just,
As if he said, My boy will find the Will,
And, as he likes, destroy it or fulfil.
This now is reason, this I understand—
What was at his, is now at my command.
As for this paper, with these cousiny names,
I—’tis my Will—commit it to the flames.
Hence! disannear! now am I lord alone.

“Hence, disappear, now and for a while.”

They’ll groan, I know, but, curse them, let them groan.”

Needless to say, Wright inquires for the will, and is told that there is none. After expostulation and discreet delay, the friend is satisfied that the will is destroyed: to the son’s consternation a copy of the first will is produced, and David Wright becomes the lawful heir.

In “The Thunderbolt” the simple theme is drawn out with quiet but subtle skill. An elder brother dies, rich and with one child only, a natural daughter. The family, upon whom nature has showered neither excellence nor wealth, assembles with all the gloom and all the curiosity appropriate to the occasion. It appears that there is no will forthcoming; the daughter therefore will have no share in the estate, the brothers and a sister being entitled between them. But when all is thought to be settled and safe, when each has devised a new scheme and scale of life, a brother breaks in upon the smug conclave announcing that there was a will, but that he had destroyed it. His story breaks down, and the act is traced to his wife who nursed the deceased on his death-bed, accidentally found the will, and after his death deliberately destroyed it. The poor daughter finds that her father has not forgotten her; the selfish family is thunderstruck. Such is the character, and hence the name, of the play.

In Sir Arthur Pinero’s drama no lawsuit follows, all parties agreeing in a compromise. But in real life probate actions are a rich source of intimate dramas and revelations. From them innumerable details emerge: threats and cajolery, rights and wrongs, loves and hates, stand out with all their tender or terrible insistence. In fiction inevitably they find a place. In “Mr. Meeson’s Will” Sir Henry Rider Haggard has discovered an extraordinary theme, but he has not shown the art which made the ordinary theme of “The Thunderbolt” a subtle and telling play. Mr. Meeson is outraged by his nephew’s plain-speaking, which reminds him of his unrighteous dealings, and in a rage cuts him out of his will. The girl on whose behalf the nephew was to be disinherited is, by a strange course of events, thrown with Mr. Meeson on a deserted island, with two sailors and a child only besides. In terror of death, which swiftly overtakes him, Mr. Meeson would revive his former will, but there is nothing with or upon which to write it. The only possible method is to tattoo the dying man’s desires upon human flesh, and this is done by one of the sailors upon the back of the tortured girl. She is

rescued by a passing ship; and on returning home a probate action, such as never yet had been, was fought out to a triumphant conclusion.

Another story, scarcely less remarkable in its own way, is revealed by Edmund Gosse, in “Father and Son,” of an action set in motion by a son who was grievously wronged by one of the “saints”—the sect among whom Mr. Gosse’s father held an honourable place. This member of the community had persuaded a rich man, well on in years, to board with him, and when he died a will was produced leaving his entire fortune to the “saint” with whom he lodged. Yet the old man had a son surviving. In time the son came home from overseas, and the universal legatee of the will was arrested. The trial disclosed that the old man had been “converted” by the “saint,” and had disinherited his son as an “unbeliever.” The “saint” had traced the signature to the will by drawing the testator’s fingers over the document, when he was already comatose. To the last the “saint” declared his belief that he had done no wrong, that it was righteous to wrest the money to pious and charitable uses. *Tantum religio potuit suadere malorum.*

FOOTNOTE

[1] The “Dictionary of National Biography” says: “Born December 23, 1621, probably at Sellinge, Kent.”

CHAPTER II

WILLS NOT FULFILLED

“Fallax saepe fides, testataque vota peribunt;
Constitues tumultum, si sapis, ipse tuum.”

ANCIENT EPITAPH.

It is impossible for a will to be always and in all events binding. If Virgil's will had been scrupulously observed, his fame would have been grievously curtailed; for the “Æneid” should never have been published. It is said that he gave directions for its burning, and that his executors, Varius and Tucca, received his manuscripts on condition that they published nothing he had not edited himself.

“For Poetry is nothing if not perfect,” and the three years which he was to devote to its polish and perfecting were not granted in his allotted span. But Augustus, and Virgil's executors, were wiser than he himself, though the touch of the vanished hand could not mould its beauty to perfection. It was unfinished: but only as Turner's “Canal at Chichester,” or Schubert's “Symphony,” are unfinished.

There are such occasions: but it is easy to understand with what desire the testator desires his wishes to be fulfilled. His will, he feels, should be inviolable. “Finally,” says George Ludewig Count von der Schulenburg in 1774, “as I hope that this my disposition and last will will be strictly and inviolably observed by my dear children, provided they do not mean to merit my paternal displeasure and the wrath and punishment of the supreme Being, so on the other hand I heartily wish them every fatherly blessing and the grace of the Almighty, and do earnestly recommend them to His omniscient guidance.”

Thomas Rigden, of the County of Kent, shows a lively desire that nothing should be done amiss. “June 24th, 1746. This in the name of God, the Father Son and Holy Ghost. I Thomas Rigden, having a very great

desire that my last will and testament may be fulfilled after that I am dead, for the good of my wife and children, have taken upon me to write these few lines. Now this is my desire as follows. Now with my free will do I give all that I have or all that I shall leave ... to my wife Alice Rigden, for her use and for the use of bringing up my children. And my desire is by all means that my children may all agree and live in love one with another, which I pray God grant they may all do. So fare you all well, my dear wife and my dear children. This is my last will, and I hope you will fulfil it.”

Times without number the most insistent thought of mortal man must be, whether his wife and children will be kindly treated when he is gone. How can a parent endure the thought of such scorn and suffering as a Jane Eyre is forced to undergo? “As I remember, Adam,” says Orlando in the opening of “As You Like It,” “it was upon this fashion bequeathed me by will but a poor thousand crowns; and, as thou say’st, charged my brother on his blessing to breed me well: and there begins my sadness.” *Hinc illae lacrimae*. There indeed begins the sadness, it may be feared, of many outside fiction and the drama, in spite of prayer or threat.

Elenor Clarke ([Cp. p. 52](#)), widow of Bartholomew Clarke, of Clapham, whose will was proved in 1594, gave the custody of her son Francis to her brother John Haselrigge, “charging my said brother as he will answer before the Tribunal seat of God to deal honestly and faithfully with him and by him.” But how he fared we do not know. “And I charge you Ed. Lascelles my sole executor before God to be punctual,” says Robert Knox, for twenty years a captive in Ceylon, “in performing all this that I have given, lest the cries of the widow and fatherless come up to heaven against you, and your lot be a curse instead of a blessing” (1711: died 1720).

Bishops and kings of old were next to none in the vigour of their language. Theodred, Bishop of London in Edgar’s reign, is aggressively violent: “And whosoever takes from my testament, may God take him from the Kingdom of Heaven, unless he amend it before his death.” In the same spirit, if with less directness, Henry VI. requires the fulfilment of his will: “And that this my said will in every point before rehearsed may the more effectually be executed ... I ... not only pray and desire, but also exhort in Christ require and charge, all and every of my said feoffees, my executors and surveyor or surveyors, in virtue of the aspersion of Christ’s blessed blood and of His painful passion that they having God and mine intention

before their eyes, not letting for dread or favour of any person living of what estate degree or condition that he be, truly faithfully and diligently execute my same will and every part thereof, as they will answer before the blessed and dreadful visage of our Lord Jesu in His most fearful and last doom, when every man shall most strictly be examined and deemed after his demerits. And, furthermore, for the more sure accomplishment of this my said will, I in the most entire and most fervent wise pray my said heirs and successors and every one of them, that they show themselves well willing faithful and tender lovers of my desire in this behalf; and in the bowels of Christ our altogether just and strict judge exhort them to remember the terrible comminations and full fearful imprecations of Holy Scripture against the breakers of the law of God, and the letters of good and holy works.”

If Bishops and Kings must write with such vehemence, how shall the humble citizen fare? The possibility of the deceased’s wishes being neglected or overridden was so real that old writers advise the charitable to exercise their charity in their lifetime, and not to trust to executors or friends. Their faithlessness had even passed into a proverb: “three executors make three thieves.” Thus John Stow, in his “Survey of London,” remarks how often wills were proved but not performed: “Thus much for famous citizens have I noted their charitable actions, for the most part done by them in their lifetime. The residue left in trust to their executors. I have known some of them hardly (or never) performed, wherefore I wish men to make their own hands their executors, and their eyes their overseers, not forgetting the old proverb:

“Women be forgetful, children be unkind,
Executors be covetous, and take what they find.
If any body ask where the dead’s goods became,
They answer, So God help me and holydom, he died a poor man.”

Jeremy Taylor, in “The Rule and Exercises of Holy Dying,” has the same thought and the same proverb in his mind: “He that gives with his own hand shall be sure to find it; but he that trusts executors with his charity, and the economy and issues of his virtue, by which he must enter

into his hopes of heaven and pardon, shall find but an ill account when his executors complain he died poor: ‘think on this.’”

This interesting proverb was written upon a wall in St. Edmund’s Church, Lombard Street, and is thus quoted in Weever’s “Funeral Monuments”:—

“Man, the behoveth oft to have this in mind,
That thou geveth wyth thin hond, that sall thou fynd.
For widowes be sloful, and chyldren beth unkynd,
Executors beth covetos, and kep al that they fynd.
If eny body ask wher the deddys goodys becam,
They answer,
So God help me and Halidam, he died a poor man.
think
on this.”

Other proverbial lines are quoted by Thomas Fuller, and a fresh turn is given to the thought, in his “Cambridge History.” “It is the life of a gift, to be done in the life of the giver; far better than funeral legacies, which, like Benjamin, are born by the loss of a parent. For, it is not so kindly charity, for men to give what they can keep no longer: besides, such donations are most subject to abuses.

“Silver in the living
Is gold in the giving;
Gold in the dying
Is but silver a-flying;
Gold and silver in the dead
Turn too often into lead.”

It is pitiable to think how many elaborate and kindly dispositions never bore fruit, and legitimate to believe that executors are more honest now. But, in spite of failures, English life and customs are largely bound up with bequests. Innumerable gifts meant for perpetuity never took effect or have passed into oblivion; but a goodly number remains, to which year by year

additions are made. Picturesque survivals may often be traced to some will, no less than studentships or professors' chairs, almshouses or doles, institutions or the treasures that adorn them. Such a record as Johnson's "Annuities to the Blind" suggests how much one class owes to beneficent testators.

For nearly two hundred years a quaint custom has marked February 2nd at Wotton, in Surrey, in pursuance of the will of William Glanvill. Boys of twelve to sixteen stand bareheaded round the testator's tomb, recite the Lord's Prayer, the Ten Commandments, and the Apostles' Creed, read the 15th chapter of the First Epistle to the Corinthians, and write down two verses therefrom. After these tests five boys are selected, and receive 40s. apiece. As an instance of a school founded by a will, John Neville, Lord Latimer (1542), may be quoted. "After my decease the Master and Vicar (of Well, in Yorkshire) shall take all the rents of the parsonage of Saint George Church in York, for the term of forty years, and therewith to find a schoolmaster at Well for keeping a school and teaching of grammar there, and to pray for me and them that I am most bounden to pray for." The school exists, but does the master pray for the worthy founder still?

There are various reasons why wills should sometimes not be fulfilled. The estate, for instance, may not be adequate. It is strange how vague are the ideas of some testators in this respect, and one recalls what Dr. Johnson said of a certain bequest to erect a hospital for "ancient maids" that the word *maintain* should be expunged and *starve* inserted, so insufficient were the funds. It is amusing (to the outsider) when legacies are given with effusive expressions of admiration or gratitude, while all the time there is no money to pay them.

Some admit frankly that they have no material blessings to bestow. Thomas Johnson, otherwise John Plummer (proved January 22, 1780), left everything to his "dearly beloved and most deservedly esteemed ever loving affectionate friend Ann Watson ... being thoroughly sure she will take good care of the dear boy, J. H. Plummer, to whom unfortunately I have nothing to leave but the wide world to seek his fortune, excepting my prayers for his success." Queen Elizabeth Woodville, in her will dated April 10, 1492—a death-bed will—pathetically says: "Whereas I have no worldly goods to do the Queen's Grace, my dearest daughter, a pleasure with, neither to reward any of my children, according to my heart and mind, I

beseech Almighty God to bless her Grace, with all her noble issue; and with as good heart and mind as is to me possible, I give her Grace my blessing, and all the aforesaid my children.” *Maeonides nullas ipse reliquit opes*. Even Homer died penniless.

Another cause of non-fulfilment may be a legal barrier. There is no legal method of enforcing a testator’s wishes for the disposal of his body, except for anatomical purposes. The bequest is void if money be given to expend the interest in keeping up a grave. In England there is a legal obstacle against a bequest for the celebration of masses for the repose of the soul: it is termed a “superstitious trust” and is invalid. The famous decision in 1835 in the case of *West v. Shuttleworth* has not been superseded. The Master of the Rolls, Sir Charles Pepys, afterwards Lord Cottenham, held that in this country gifts to priests “that I may have the benefit of their prayers and masses,” or “for the benefit of the prayers for the repose of my soul, and that of my deceased husband,” were void, and void such bequests remain.

Personal reasons, lastly, may bring about the breaking of a will. Sir Edmund Bury Godfrey’s recommendations for his funeral have been quoted: he desired to be buried in the meanest place, without pomp or pageantry, without numerous attendants either of friends or relations, very early in the morning or very late at night, as privately as possible, without sermon or harangue. But the excitement and notoriety of his end, the passions that it aroused or signified, could not suffer him so to depart. His death and funeral are part of the history of his time. On October 12, 1678, he disappeared: on the 17th he was found dead in a ditch on the southern side of Primrose Hill. The funeral was postponed till the 31st, when his body was borne to Old Bridewell, and publicly lay in state. A solemn procession accompanied it through Fleet Street and the Strand to St. Martin’s Church, where it was buried and a sermon preached by the vicar, William Lloyd. Thus was his will wholly set at nought—a remarkable but perhaps a pardonable violation.

CHAPTER III

DR. JOHNSON'S WILL

“My readers,” writes Boswell, “are now, at last, to behold Samuel Johnson preparing himself for that doom from which the most exalted powers afford no exemption to man.” There can be few sights more fascinating. In the case of Johnson there is an especial fascination, since for many years he felt, and at times expressed, fear and horror of death in a degree to which most men are strangers. He said “he never had a moment in which death was not terrible to him.” But toward the end this horror abated, so that there is a peculiar beauty in the opening of his will, which he made but five days before his death. “In the name of God, Amen. I, Samuel Johnson, being in full possession of my faculties, but fearing this night may put an end to my life, do ordain this my last will and testament. I bequeath to God a soul polluted with many sins, but I hope purified by repentance and I trust redeemed by Jesus Christ.”

He calmly anticipates the acceleration with which he advances towards death. But, now as formerly, he will not dogmatise on his salvation; he “hopes” and “trusts.” “A man may have such a degree of hope as to keep him quiet,” he had observed on one occasion; but on another, “No man can be sure that his obedience and repentance will obtain salvation.” He might have prayed, as did Sir Francis South in his will dated November 14, 1631, “beseeching Him for the all-sufficient merits and infinite mercies of His only Son and my alone Saviour Christ Jesus to accept of this my poor sacrifice, and freely to pardon and forgive me my many multiplied sins and transgressions, and in the love of His most blessed Spirit to give me some comfortable assurance thereof during my time in this vale of flesh, that I may joyfully and willingly part with this miserable world to live with Him for ever in His eternal rest.”

It was this “comfortable assurance” that Johnson needed. To the last he seems logically to have maintained the distinction between hope and belief, but emotionally to have discarded it. Certainly at the end he was resigned.

But Johnson could not comfort himself with the idea, prevalent in his century, of the infinite goodness of God. He dismissed it as inapplicable to his case, a few months before his death, in a conversation with Dr. Adams. “‘As I cannot be *sure* that I have fulfilled the conditions on which salvation is granted, I am afraid I may be one of those who shall be damned’ (looking dismally).” But it is made a frequent ground of hope (for want of a better) in wills of the time. John Murton, in a will proved the year of Johnson’s death, thus begins: “In the Name of God, Amen. I, John Murton, of Milton next Sittingbourne in the County of Kent, grocer, being advanced in years and in an indifferent state of health, but of sound and perfect mind memory and understanding, (praised be Almighty God for the same,) and considering the uncertain continuance of this mortal life, and the many hazards and dangers that we frail beings are daily liable and incident unto, do make publish and declare this my last will and testament in manner and form following, (that is to say:) First and principally of all I commend my soul into the hands of Almighty God who gave it, in all humble hopes and with a firm assurance of its future happiness as in the disposal of a Being infinitely good.” Forty years previously Pope employed the same sentiment and almost the same phrase: “I Alexander Pope, of Twickenham in the County of Middlesex, make this my last will and testament. I resign my soul to its Creator in all humble hope of its future happiness as in the disposal of a Being infinitely good.”

Boswell mars the rhythm of Johnson’s formal act of faith, and the depths of meaning it conveys (to those who remember Johnson’s delicate apprehension of Christian terms), by writing “but I hope purified by Jesus Christ” in place of the fuller form “but I hope purified by repentance and I trust redeemed by Jesus Christ.” A namesake, the Rev. Samuel Johnson, whose will is dated November 8, 1777, and was proved on June 3, 1784, has a similar clause in words that strongly recall the theological arguments and vocabulary of the Doctor. “My soul I commit and commend altogether to the mercy of God in Christ Jesus trusting through His merits and powerful mediation to be saved from that eternal punishment whereof I am deserving on account of my sins, and to inherit all that eternal life promised in the Gospel to all them that obey Him: even so, Lord Jesus.”

It is true that such expressions are still frequent in wills of the latter half of the eighteenth century, and to some extent formal; but they are not so

much a matter of course as in earlier days, and therefore all the more worth attention. "A few years ago," wrote Sir John Hawkins in his *Life of Dr. Johnson*, "it was the uniform practice to begin wills with the words 'In the Name of God, Amen,' and frequently to insert therein a declaration of the testator's hope of pardon in the merits of his Saviour; but in these more refined times such forms are deemed superfluous." The will of Lucy Porter, Johnson's step-daughter, is devoid of such pious expressions; indeed, wholly unsentimental save for a desire to be buried "under or near the tombstone of Catherine Chambers," and a request that the funeral "may be performed in the afternoon before sun-setting." The will of Anna Williams, who was for twenty years as a sister to Dr. Johnson, and died the year before he died, is also devoid of piety, save for the conventional preface "In the Name of God, Amen." Even of many divines and doctors of divinity the same may be said: they plunge *in medias res*, without any ascription of praise or uplifting of the heart to God.

The Rev. Samuel Johnson appears to have made his will betimes. But of Dr. Johnson Boswell has to say: "It is strange to think that Johnson was not free from that general weakness of being averse to execute a will, so that he delayed it from time to time; and had it not been for Sir John Hawkins repeatedly urging it, I think it is probable that his kind resolution (to provide for Francis Barber) would not have been fulfilled." But Sir John was not satisfied with the Doctor's will when made. The deficiencies that he detected therein he attributed to its late execution. We may, however, leave Boswell and others to settle this controversy.

Yet it is strange that any should jeopardise the fortunes of others, and frustrate his own desires, by tarrying to set his house in order: it can be explained only by neglect or superstition. Dr. Johnson did not take to heart his lines in "London":—

"Prepare for death, if here at night you roam,
And sign your will before you sup from home."

He may have put it off from sheer indolence, but it is not unlikely he felt something of the common superstition against making a will, unreasonable though it may be and unwise. When Charles Lamb wished to make his first will he wrote: "I want to make my will, and to leave my property in trust for

my sister. *N.B.* I am not going *therefore* to die.” But Lamb had not Johnson’s peculiar dread of death. The superstition is not yet defunct; its rise and origin would be difficult to trace. “It is received,” says a writer in the sixteenth century, “for an opinion amongst the ruder and more ignorant people, that if a man should chance to be so wise as to make his will in his good health when ... he might ask counsel of the learned, that then surely he should not live long after.”

It is curious that it should sometimes be a case for jocularly if a man make his will betimes. Possibly this light-heartedness is assumed as a cloak to hide from ourselves the gravity of our inevitable end. If this be so, it is not surprising to find Dr. Johnson convulsed with hilarity when his friend Langton made his will. But the story is an extraordinary one. “He now laughed immoderately, without any reason that we could perceive,” says Boswell, “... called him the testator; and added, ‘I dare say he thinks he has done a mighty thing. He won’t stay till he gets home to his seat in the country, to produce this wonderful deed: he’ll call up the landlord of the first inn on the road; and, after a suitable preface upon mortality and the uncertainty of life, will tell him he should not delay making his will.... He believes he has made this will; but he did not make it; you, Chambers, made it for him. I trust you have had more conscience than to make him say, ‘being of sound understanding’; ‘ha, ha, ha! I hope he has left me a legacy. I’d have his will turned into verse, like a ballad.’ ... Johnson could not stop his merriment, but continued it all the way till he got without the Temple-gate. He then burst into such a fit of laughter, that he appeared to be almost in a convulsion; and, in order to support himself, laid hold of one of the posts at the side of the foot pavement, and sent forth peals so loud, that in the silence of the night his voice seemed to resound from Temple-bar to Fleet-ditch.”

In spite of Dr. Johnson’s amusement, the early making of a will has long been of grave concern to moralists. As Donne in one of his sermons says, the execution of a will at the last may be a heavy business, but the addition of a codicil, if necessary, may be easily dispatched. But in wills themselves the most elaborate language is employed to force home this precept. The will of Dame Jane Talbot, dated in the 20th year of Henry VII., thus begins: “I Dame Jane Talbot, widow late the wife of Sir Humphrey Talbot knight, calling to remembrance that the gracious passage and departing from this

transitory life dependeth and ensueth upon a discrete will made by good deliberation in good and virtuous order; and that I and all other Christian people be mortal and must depart from the wretched uncertain and unstable life, the hour and time of which departing from the same unstable life is uncertain; and also that I and any other mortal person, be apt by the sending and visitation of God to receive and take such infirmities and sickness whereby I might, in or immediately before the article or pain of death, lack or fail sure and perfect mind and reason to order and make my last will and testament according to the meritorious and wholesome intent to the will of my soul: wherefore I the said Dame Jane Talbot, being of perfect health, whole mind and good memory, to the honour of God and health of my said soul ordain and make this my testament and last will in manner and form following; that is to say, First I bequeath and give my soul unto my Lord God, Father of Heaven, which of His inestimable and infinite mercy and goodness hath made it assemblable to His own image, and of His infinite mercy with His precious blood hath redeemed it, and to His blessed Mother the Virgin Saint Mary and also to the charitable tuition and keeping of all the saints in Heaven.”

Johnson had not wife or children of his own to provide for, but he had many friends. As already hinted, some of these he offended by the omission of their names. For this reason also he displeased Lucy Porter. Boswell (himself omitted) says that she should have considered that she had left nothing to Johnson, though her will was made in his lifetime. But it is fair to remark that she mentions few names in all, and that her will was not executed until September in the year of Johnson’s death.

Thus even so simple a document as Johnson’s will occasioned searchings of heart, a result that some strive heroically or pathetically to avoid. “I again desire that all things may be composed with peace honour and honesty,” wrote Dorothy Eve, of Canterbury, in 1691. A merchant, James Clegg, whose will was proved the same year as Johnson’s, declared that he made his testament “to explain my last will for the distribution of what shall result to be my property and to me belonging at the time of my decease, in such manner that I hope not to embroil those persons who will have the pleasure of surviving me.” Wills that stir the passions and sting the memory are indeed of frequent occurrence. Wills that satisfy every friend must surely be few.

To what an extent the remembrance of friends may be carried is illustrated by a will made a few years after Johnson's death. While Johnson bequeathed books to less than a score of friends, Martha Shorte, in a list which must long have engaged her thoughts, bequeaths mementoes to more than a hundred beneficiaries. "The small trifle," she says in one place, "is only to denote that all my kind neighbours lived in my memory." In some cases it may be surmised, or at least the suspicion will cross the mind, that her friends were not unaware of her testamentary tendencies. To one, for instance, she gives "two mahogany stools that she used to like," to another, "an old inlaid Chinese cabinet that she always admired," to another the "yew-tree card-table which she admired." But there is a danger in lavish remembrance: for if one be omitted where many are comprised, the sting is so much the more sharp.

Johnson left the residue of his estate to his negro servant, Francis Barber. Even this raised dissent. Sir John Hawkins, says Boswell, seemed not a little angry at this bequest, and muttered a caveat against ostentatious bounty to negroes. Barber had once been a slave, but had received the gift of liberty under his master's will. The latter years of his liberty Johnson hoped to provide for.

Simpson Strachan, the merchant whose will was buried for fear of the enemy, may illustrate the case of Barber. "My will and my intention is that my negro man ... in virtue of his faithful services be made free of all slavery whatever, and I do hereby order and ordain and request my executors to pay all the expenses attending his freedom from my estate, and that they give him the sum of £330 currency to his own use and behoof as a reward for his fidelity and attachment to me." Most would agree with Boswell that a faithful servant, in lieu of near relations, is peculiarly entitled to enjoy

"A little gold that's sure each week,
That comes not from his living kind,
But from a dead man in his grave,
Who cannot change his mind."

Nor was it his master's fault if Barber made so ill a use of his money as Hawkins affirms.

Provision for old servants is still a frequent, even an outstanding, feature of wills, accompanied often by graceful expressions of gratitude. Perhaps it has always been so. The Rt. Hon. Humphry Morice, of the Privy Council, was writing a codicil by way of instruction to his executors, shortly before the year of Johnson's death. He makes us feel vividly what Johnson must have owed to his faithful servant: "My diamond shoe and knee buckles I mean to include in my wearing apparel left to Richard Deale, also gold-headed canes, as his attention and fidelity increases every day, and sorry I am to say he is the only servant I ever had who seemed sensible of good treatment and did not behave ungratefully."

To the ordinary reader Dr. Johnson's other bequests appear thoughtful too, though Hawkins considered them ill-proportioned and ill-calculated. To the Rev. Mr. Rogers, of Berkeley, near Frome, he gave £100, "requesting him to apply the same towards the maintenance of Elizabeth Herne, a lunatick"; to his god-children, "the son and daughter of Mauritius Lowe, painter, each of them £100 of my stock in the 3 per cent. consolidated annuities, to be applied and disposed of by and at the discretion of my executors, in the education or settlement in the world of them my said legatees"; and to "Mr. Sastres, the Italian master, the sum of £5, to be laid out in books of piety for his own use." But uppermost in his mind, it would seem, was the debt of gratitude he owed, for his father's sake, to Innys the bookseller; for him he remembered in his will made in the immediate apprehension of death, while most of his bequests occurred in the codicil executed on the following day.

One of the strangest characteristics of man is that, in the face of death, he can without a qualm speak bitter words and cherish hard feelings, a characteristic which sometimes distinguishes or disfigures wills. Dr. Johnson's will is free from any such taint. Yet he retained a certain roughness of language to the last. "Treat thy nurses and servants sweetly, and as it becomes an obliged and a necessitous person," says Jeremy Taylor. Boswell speaks of Johnson's "uncommon kindness to his servants." But, asked one morning how he liked a new attendant who had sat up with him, Johnson replied with a touch of his old humorous self: "Not at all, Sir; the fellow's an idiot; he is as awkward as a turnspit when first put into the wheel, and as sleepy as a dormouse."

When Burke heard how Langton could convict the Doctor of nothing worse than a roughness of speech or manner, he said: "It is well if, when a man comes to die, he has nothing heavier upon his conscience than having been a little rough in conversation." It does seem that Johnson was not unworthy of some such eulogium in spite of certain charges raised against him, and in spite of his fear of death. It is grateful to consider that Johnson's words may be applicable to himself: "The better a man is, the more afraid he is of death, having a clearer view of infinite purity." Boswell says that the word *polluted* in Johnson's will may to some convey an impression of more than ordinary contamination, but mentions that the same word is used in the will of Dr. Sanderson, Bishop of Lincoln, who was purity itself. A man would indeed be ignorant of human nature, not to mention the phraseology of wills, if he were to attach importance to the words *polluted with many sins*; he would indeed be blind to the "view of infinite purity." It may be of interest therefore to compare the will of Dr. Sanderson with Dr. Johnson's in this respect. "First, I commend my soul into the hands of Almighty God, as of a faithful Creator, which I humbly beseech Him mercifully to accept, looking upon it, not as it is in itself—infinately polluted with sin—but as it is redeemed and purged with the precious blood of His only beloved Son, and my most sweet Saviour Jesus Christ."

When John Selden died, his barber had a mind to see his will: "For," said he, "I never knew a wise man make a wise will." The will of Dr. Johnson, that great and good, wise and humorous, figure, may be read in Boswell or Hawkins, in the *Gentleman's Magazine*, or at Somerset House. It leaves a savour wholly sweet, and is in every item dignified.

CHAPTER IV

DEATH-BED DISPOSITIONS

“Because mention is made of Death in men’s wills and testaments, I warrant you there is none will set his hand to them, till the physician hath given his last doom, and utterly forsaken him.”—MONTAIGNE.

Among the wills of Kentish folk there is one of a John Crampe, who lived in the parish of St. Peter the Apostle, Isle of Thanet, by calling a husbandman. He was one of those whose last hours are troubled by the “heavy business” of a death-bed disposition. We read that “on or about the 3rd day of September, 1727, the said John Crampe, now deceased, being then sick in bed, did give directions or instructions to him the deponent, George Witherden, ... for the making of the last will and testament of him the said deceased.... And the said deceased then attempted to sign the said will, but was so weak that he could not guide the pen, and so died without signing the same.”

Or again. On the 27th of January, 1717, there appeared Margaret Preston and Ellis Kyffin to depose that they “being together at the lodgings of Mrs. Priscilla Blake, widow, in Crown Court, in the parish of St. James’s, ... who then lay very ill, severally saw her the said Priscilla Blake, who was then of sound mind memory and understanding and well knew what she did, execute her last will and testament; ... which will had, as they believe, been drawn up the day before by her directions, and but just then read over to her; for the deponent, Ellis Kyffin, asking her if she was satisfied with it all the time she was going to make her mark to the same, the testatrix answered she was. With that the deponent said, ‘God strengthen your hand,’ to which she again replied, ‘Amen,’ and then made her mark to the said will as now appears, and took a seal from the wax dropped near the same, and said that that was her will: in testimony whereof this deponent Ellis Kyffin subscribed her name as a witness thereto, but the deponent Preston, not being able to write her name, was the reason that her name was not put as a witness thereto.”

Of such cases the following, too, is picturesque and significant. The affidavit accompanying the curt and curious will of Henry Harding, a Staffordshire worthy, explains its formality, and reveals a touching death-bed scene in the early morning of Easter Sunday, 1761. It begins without preamble. "Mr. Harding gives to his two nephews Henry and William, and his niece Mary Harding, the sum of £100 apiece." He proceeds to give "to his dear cousin Abramaria Harris his work chair bottoms and his best hangings of his best bed; ... to his servant John Johnson all his clothes (except his silk stockings)." He desires his executors to take care of his servant George Clarke during his life. The residue of his estate, subject to a few other bequests, he leaves to his brother.

This will is sworn to by one Samuel Wilcock and by Abramaria Harris. It was made at two o'clock on that Easter morning. The testator, feeling the approach of death, sent for the said Samuel Wilcock, of Abbots Bromley. About 1 a.m., it would seem, he arrived, and to him Mr. Harding gave instructions to draw up his will in writing. Mr. Wilcock accordingly wrote down the instructions of the dying man, and then prepared to write out the will in more formal and regular style. But before the draft could be completed, about four o'clock the same morning, Henry Harding passed away. Truly a strange hour and a strange time to make a will, and a harassing task for a man's last moments on earth. But to his negligence or superstition we owe this picture of an Easter morning, a hundred and fifty years ago.

From the will of William the Conqueror, which was set down at his death-bed, to that of an entombed miner, recently, who wrote: "May the Holy Virgin have mercy on me. I am writing in the dark, because we have eaten all our wax matches. You have been a good wife. All my property belongs to you," such incidents have always been occurring, and, it may be imagined, always will occur. The Probate Court reveals them now and then. Recently a testator, suffering from pneumonia, and near the point of death, about 3.30 in the afternoon, dictated to his doctors his testamentary dispositions. The document was written in pencil, and the dying man made his mark thereto, which was duly witnessed. A copy was then made in ink, but certain words were omitted, and, owing to the sudden necessity of administering oxygen, not finally inserted. This second document was executed by the testator, but, one of the witnesses not seeing him make his

mark, it could not be admitted to probate. About 5.30 the testator died. On application to the court, probate was granted of the pencil will.

In these cases there is something extremely distressing. When a man's thoughts should be composed, as far as possible, in the consideration of his final end and on the prospects of another world, he is tied to earth by his efforts to settle his temporal affairs. It is no wonder that moralists and theologians have insisted on the necessity of making a will betimes: the wonder is that any should be found to neglect their admonitions, or be surprised by sickness and sudden death. "They are so fearful to die that they dare not look upon it as possible, and think that the making of a will is a mortal sign, and sending for a spiritual man an irrecoverable disease; and they are so afraid lest they should think and believe now they must die, that they will not take care that it may not be evil in case they should." Maurice Barrowe, whose will was proved in 1666, may have read Jeremy Taylor's "Holy Dying"; certainly his sentiments would have found favour with the great divine. "In the Name of God Amen. I Maurice Barrowe, of Barningham, in the County of Suffolk, Esquire, duly weighing the mutable condition of this life and certainty of death manifested by daily examples, to prevent cares of the world at that time, (those distracting interrupters of a dislodging soul,) now in my perfect health and entire memory, to the glory of God, quiet of my mind, designing of my heirs, satisfaction of my debts, remembrance of my friends and recompense of my servants, do make and ordain this my last will and testament."

Pathetic, indeed, death-bed wills too often are. Here is the cry of a humble inhabitant of Kent in 1608. "Loving father, my humble duty remembered unto you. It hath pleased God to visit me with sickness, so as I think not to see you any more in this world: wherefore I pray you to be good to my wife and children." Or take another more than a hundred years later. "Queenborough, May 12th, 1721. Brother John Smith, I am very bad, so bad that I cannot tell whether I shall live or die. So in case of death I desire you to be executor to take care of the things and the girl. I cannot write, but this shall stand in as full force as if in any other form drawn."

More explicit, indeed of a painful preciseness, are the last words of Denham Castle, who died of smallpox in 1709. "Sir, I am very much obliged to you for enquiring after me in so particular a manner. My circumstances are very bad, and smallpox come out as thick as they can. I

have not had a wink of sleep, and am choked almost with the phlegm. If some method is not taken to rid me of the phlegm and give me some speedy relief, I shall not be able to hold out. I would desire the favour to acquaint my father with it, who is at Sheperton beyond Hampton Town in Middlesex, but I would not have him or any of my sisters come near me, for it will be of no use to me. If I should do otherwise than well, I have some money in a box in my study, the only box there: it is under lock and key. Some part of it which is gold is put up within the lids of my pocket-book, which will be found wrapped up in some linen. There are also [some other sums]: that money will bury me privately; and if there is any remaining, I desire my youngest sister and Nanny who is a prentice in London may have it, as being the worst provided for.”

Well worth comparing with the last is the will of Thomas Dixon, “late of the parish of St. Martin’s-in-the-Fields.”

“LONDON.

“*June the 28th, 1718.*

“MY DEAR LIFE,—This is to let you understand my to help myself in any respect, or move either hand or foot, no more than had I been quite dead, being seized all over my body with the dead palsy, and now lying in St. Thomas’ Hospital in Southwark; and for my comfort they tell me I shall never be cured. My Dear, there would be nothing more pleasing, or a greater satisfaction to me, than to see you here by me before I part with this life, which I do not doubt but you will consider as soon as this comes to your hands. Pray, my Dear, I desire you may make my sister a present of three pounds: you know what you are to have when you come here, not that I think it too much for you but wishes it were more for your sake. Likewise, my Dear, be pleased to give my coat, waistcoat and two pair of breeches to my father, my silver buckles to my uncle Garrott, and the razors belong to my master: as for all the rest, you may do as you think convenient, but this I desire you’ll fulfil; and likewise

give one of my shirts to my cousin John Monachon, and a pair of shoes: my sister will tell you who he is.

“My duty to my dear father and mother, and I earnestly crave their blessing, and the prayers of my brother and sisters and all friends, and my love to them all, and the blessing of God be with them. I desire you may let my sister see this as soon as it comes to your hands, and to hasten your coming as soon as possible you can get ready; for to delay any time, and knowing my condition, you may perhaps not overtake me alive; for if I got England, I cannot put a bit of anything to my mouth, but as I am fed by others. This is all, my Dear, I can say, but I begs you will fulfil all that I desire in this, which is the earnest request of him who is, (without the miraculous assistance of my good God and Saviour,) on his death-bed.—Your constant and loving husband till that hour, THOMAS DIXON.”

The veil is lifted from the last days of a dying man, but lifted for the moment only. Did the letter reach his wife in time? Did she hasten and reach him alive? We may hope she did, for Thomas Dixon lingered until the 8th of July; but thus wills constantly tantalise us, while they leave the more to the imagination.

In 1603 the plague, which was to mark the century with its devastations, carried off in London over 41,000 souls. Nor did the neighbouring villages escape. As witnessed by the parish register, the Rector of Clapham, with his family, fell a prey. Within one month there died:—

Edward Coochman	Parson of Clapham	3rd	September.
Judith his wife		4th	”
Edward his son		12th	”
Elizabeth his daughter		15th	”
Judith	”	18th	”
Susan his maid servant		24th	”

In view of this list the Rector's will, signed the day before he died in the presence of his maid, Susan Bennet, "and of one old Joane his keeper," has an added pathos. "Brother Gabriel Coochman, I commend me unto you. I am at the point of death and have no hope ever to see you in this world. My will is that you shall have all my goods and chattels for the use of my wife and children. And I do hereby make you my sole executor for the use aforesaid, and do earnestly pray and desire you to have a fatherly care for the bringing up of my poor children, as my trust is in you. And so I bid you heartily farewell, till we meet in heaven; this second of September, 1603, your loving brother."

The death of Susan, the maid, is recorded, though as she died last of all we need not ascribe it to her witnessing the will. But probably such a kindly act often cost a man his life. Possibly the parson himself contracted the illness thus, or at least in visiting some afflicted parishioner. For it is noticeable that of the family he was the first to die. We can go back to July, 1515, for such an act of devotion by the parish priest, when the will of one Gefferey Salesbury, of Leicestershire, was witnessed by the priest only, "and no more for fear of the plague of pest."

To the difficulty of obtaining witnesses was added the unwillingness of scriveners to attend. "Memorandum that upon Wednesday, the 9th day of November, 1625, Edward Blackerby, citizen and clothworker of London, and of the parish of St. Stephen in Coleman Street, in London, being sick in body and in danger of death, but of perfect mind and memory, being desirous to make his last will, sent divers times for a scrivener of his acquaintance to write the same, and in the meantime, in the presence of John Frank and William Blackerby, did very oftentimes pronounce and say that he made his wife his executrix. At the length, perceiving that the scrivener of his acquaintance which he so often sent for was fearful to come unto him in his sickness, he thereupon caused another scrivener to be sent for to write his will; but before his will could be written, his memory was so decayed and so weak that he could not finish what he intended." Similarly Henry Ludlowe, "late of the parish of St. Martin's in the Fields, ... goldsmith, being sensible of the hand of God upon him during the late contagion, his family being visited and himself dangerously ill of the sickness whereof he died, and having a desire to declare his will and mind, ... no scrivener being then to be had to put his will into writing, upon a

Monday happening about the middle of August last past (1665) ... did cause one of his nurse keepers to call up the others into his chamber on purpose to be witnesses to what he had to say.”

With the intimate and pathetic will of Francis Mountstephen we revert to the plague of 1603. It was proved on the 29th of August that year. “I repose trust in you, brother Nicholas, concerning the executorship. Brother Nicholas, since it hath pleased God to visit me with his rod, which I pray God that rod I may take with patience, you writ unto me concerning the suit which I ever well liked; and the cause of my sending to you a Sunday morning was to that end, and to have made straight those things which you requested. For that bond of £50 you speak of I am content you should have it, upon condition that you would see the rest equally bestowed upon the rest; but, if your discretion think it good, let my two younger sisters have somewhat the greater share, for they have the most need withal. Remember my uncle Baldiom because of my promise. And so referring the rest to your discretion, I commit you to the Lord God, (I end,) whom I desire to release me of my pains which I intolerable do bear. From the pesthouse, this two and twentieth of August, 1603. Your loving brother F. M. If it please God that I do die, I owe to Edward Smith 10/-: I pray you pay it for me. F. M. I pray you take 8/-of Elizabeth Price when she cometh to town. Witnesses, Henry Chitham, keeper of the pesthouse, Rose Gibb and Robert Smith.”

CHAPTER V

WILLS BY WORD OF MOUTH

After various bequests, including the interesting one of \$100 “unto the redemption of the poor English captives in Constantinople,” the will of James Peckett, merchant, made in Smyrna, May 3, 1634, breaks off suddenly, and we read: “The foregoing is as much as was delivered by Mr. James Peckett, who afterwards falling weaker in body and his memory decaying, it was propounded unto him whom he should make choice of for to be his executors in trust, whereupon he nominated Mr. Richard Chambers of London, Merchant, and Mr. Lawrence Greene, Consul for the English nation in Smyrna, and afterwards for his overseers, not knowing who to nominate through his weakness there was propounded unto him whether he would accept of Mr. Rainsbrow and Mr. Thomas Moody of London, merchants: unto the which he answered ‘Yea.’”

This will is, therefore, a mingling of the written and unwritten testament. The nuncupative will, the will by word of mouth, was common in former times; but since the stricter methods of the Wills Act, 1837, it has been mainly in abeyance. Attempts are still made from time to time to establish the words of dying men. A recent action in the Court, to legalise some strangely made codicils, reminds us of James Peckett’s acquiescence and of older methods. “Don’t you want to leave something to me?” the testator was asked. He answered, “Yes,” the question was put, “How much?” and a codicil straightway prepared.

The prevalence of such wills, without even the necessity of a written record signed by the testator, must have led to much abuse. But not always were testators so complaisant. Roger Potter, of Mildenhill, Suffolk, a bachelor “in the time of his last sickness (viz.) upon or about the 12th day of November 1664, did make and declare his last will and testament nuncupative as followeth. He being moved to make his will, he answered ‘With all my heart.’ And then, being asked or demanded whom he would make executor, he replied ‘Executrix,’ and named Mall, meaning as was understood by those present Mary Potter, his brother’s grandchild, whom he

especially regarded. And then being moved what he would give to any of his friends, he expressed an unwillingness to do any more, saying ‘Why do you urge me?’” So, too, Reginald Greene “on a Sunday, being the fifth day of July A.D. 1635, ... being then very sick but of good and perfect mind and memory, with an intent to make his last will and testament nuncupative spake these words, or the like in effect, as followeth, viz.: He gave all his goods chattels and debts unto his cousin John Greene ... and his son John Greene. Judith Springatt being present did desire that she might be remembered in his will and to have a legacy therein: he replied ‘No, no,’ and said he had been always beholding to his cousin John Greene and that he and his boy, meaning his said son John Greene, should have all that he had.”

How often a dying man may have fallen a prey to the designs of friends or foes one could not hazard a guess: it is remarkable, on the other hand, what powers of resistance a man in his last sickness may show. Two instances have just been given, but still more interesting is the final will of Henry Akerman, a victim of the plague. What perturbation of mind for a dying man to suffer! “Memorandum that at or upon the VIth day of August A.D. 1603, and between five and six of the clock in the afternoon of the same day, or thereabouts, Henry Akerman, of the parish of St. Giles Without Cripplegate, London, being weak in body and visited with the sickness, but of perfect mind and memory, did, with an intent absolutely to revoke all former wills before by him made, make and declare his last will and testament nuncupative in manner and form and by the words following, or the like in effect, viz.: ‘Whereas this day I did unadvisedly make a will in writing by the procurement of some of my friends, and named therein John Dardes and Jarvice Pitt to be my executors, I do now upon better consideration clean revoke that will, for that I distrust and find that I had done my children wrong thereby. And therefore now I make Mary my well beloved wife my executrix. And I give will and bequeath my goods and chattels, and whatsoever else hath pleased God to bless me withal, to be equally divided betwixt my said wife and my children according to the custom of the City of London’: and these or the like words in effect he spake in the hearing of divers credible witnesses.”

The temptation to postpone a will, to refuse to look death in the face, must have been great when a few dying words were valid. To some how

hard is the Horatian theme: *divitiis potietur heres!*

“I’m growing old, and hence ere long shall fare,
How I should love to be my only heir,”

a Hebrew epigrammatist makes a miser say. Pope depicts the miser clinging at the last moment to his lands and his cash, only with his latest breath, reluctantly, making some disposition of his goods.

“‘I give and I devise’ (old Euclio said,
And sighed), ‘my lands and tenements to Ned.’
‘Your money, sir?’ ‘My money, sir, what, all?
Why,—if I must’—(then wept) ‘I give it Paul.’
‘The manor, sir?’—‘The manor! hold,’ he cried,
‘Not that,—I cannot part with that’—and died.”

Nuncupative wills are, in fact, often of a vividness as keen as Pope’s example. The friends, interested or otherwise, who gathered round the testator in a moment of peril or in the hour of death, reproduced his words or actions with quaint exactitude. Sometimes it is in times of peril. “Memorandum that James Dixon, late mariner to His Majesty’s ship the *Pearl*, but in His Majesty’s hired sloop the sloop *Jane*, bachelor, deceased, did on or about the 22nd of November 1718 in the morning of the said day, he the said James Dixon being in the hole (*sic*) of the said sloop and then about to engage with a pirate called the *Adventure* sloop, did in the presence of several credible witnesses utter and declare his last will and testament nuncupative or by word of mouth in the words following, or to that effect: Messmate, being going to engage which God knows whether of us shall live, but if it please God it is my misfortune to die first, I desire that you would take care and demand all my wages prize money and what shall be due to me from this day, and the longest liver of us to take all; meaning and speaking to Evender Mackever who was then his messmate on board the said ship.... And the said sloop *Jane* about half an hour after engaged their enemy, and in such engagement the said James Dixon received a shot, who immediately died.”

Such is the end of the adventurer's life. At another time we are present at the death-bed of the village blacksmith. Thus it is deposed of John Silkwood, a blacksmith residing at Chartham, that he "did on Thursday the 17th day of February, 1691 (S.A.), lying very sick in his then dwelling-house in Chartham aforesaid of the sickness whereof he died, being of perfect mind and memory, and having an intent to make his will and dispose of his estate, declare the same by word of mouth in these or the like words following, viz.: taking his wife by the hand, and putting her wedding ring on her finger, said to her, 'Thus we have lived together in love, and all that I have both within doors and without I give unto you, and make you executrix of my will.' ..."

Nor did humble folk only thus make or amplify their wills. It is recorded of Sir Giles Dawbeney, Knight, that on March 3, 1444, he wrote his will, but made no disposition of the residue. "Wherefore afterwards, that is to say the XIth day of January, the year of our Lord 1445, at Barington, to the said Sir Giles lying in his sickness, whereof he died soon after the same day, Sir Robert Wilby, priest, his ghostly father, said: 'Sir, ye have made a testament and bequeathed many things to divers persons, making no mention who should have the residue of your goods that be not bequeathed; will ye vouchsafe to say who shall have it?' Forthwith the said knight, without any tarrying, said: 'My wife shall have it.' This was his last will."

It is inevitable that we should again turn to times of plague to illustrate the theme. Early in the seventeenth century there died of the plague a certain Thomas Robinson and his wife Joanna, of Uxbridge. The husband was the first to die. "Memorandum that Thomas Robinson, late of Uxbridge in the County of Middlesex, deceased, on Good Friday or thereabouts in the year 1609, being sick of the plague but of perfect mind and memory, did declare his last will and testament nuncupative in manner and form following, viz.: he said unto his wife Joanna Robinson, 'I give thee all that ever I have, and all is too little for thee'; or the like in effect, and these words he spake in the presence and hearing of his maid Isabel and divers others."

But that "little" Joanna was not to enjoy for long. "Memorandum that on Sunday, the 7th May, 1609, or thereabouts, Joanna Robinson, late wife of Thomas Robinson, of Uxbridge in the County of Middlesex, deceased, being sick of the plague but of good and perfect memory, did make and

declare her last will nuncupative in manner and form following, viz.: She looked out at the window of her house in Uxbridge, and said unto Agnes Gyles (wife of William Gyles) dwelling in Fleet Lane, London, she being then in the street in Uxbridge, this or it in effect, viz.: ‘Here now I give unto you all that I have’; and then threw out her keys unto the said Agnes, and said, ‘Look unto it, it is all thine; saving I give unto Bessie Crippes, my husband’s cousin, half a dozen napkins, a pair of sheets and a table cloth, and to her father I give my husband’s best suit of apparel, and to my husband’s sister I give my gown a hat and a smock, and to my maid Isabel I give my frifado petticoat and some of my work-a-day clothes besides.’ Then being put in the said street and hearing the premises William Day, and Elizabeth Day his wife, John Kirton, Julian Tanner, and many others.”

These wills, spoken by those stricken with the plague and in many cases carefully recorded, show that the poor creatures were not always deserted in their sickness. Writers make much of the many devices to escape contagion, but Nicholas Holmes actually did not hesitate to take a legatee by the hand. “Memorandum that Nicholas Holmes, late of the parish of St. Dunstan’s in the West, Gent., upon the third day of October in Anno Domini 1636, being taken sick of his last sickness whereof he died, being in perfect mind and memory, did publish and declare his last will and testament nuncupative in manner and form following, viz.: he said that he was suddenly taken so sick that he thought he should die of the sickness, and thereupon he took Mary Willowe, the daughter of John Willowe of the said parish, clockmaker, by the hand and said, ‘Mary, if I die I do give thee an hundred pounds’: and he further said that he did not know how his landlord might be prejudiced by his death, in case he should die of the sickness in his house; therefore he said that, if he died of the sickness, he would give him threescore pieces.”

A landlord who did not turn away one who was sick of the sickness might merit gratitude, as surely would masters who did not dismiss their servants. There was no Insurance Act in those days. “The case of poor servants was very dismal,” says Defoe of the plague in 1665, and doubtless it was so at every visitation. Servants, it is said, were the chief frequenters of astrologers and quacks, who hung out their signs in almost every street. “Oh! Sir,” they would ask, “for the Lord’s sake, what will become of me? Will my master, or mistress, keep me, or turn me off? Will they stay here or go into the country? Will they take me with them, or leave me here to be

starved and undone?” Poor William Aspinall was one of the unfortunates. “Memo. that at or upon the 17th day of July, 1603, or thereabouts, William Aspinall late servant unto Richard Leaver of the parish of Allhallows, Barking, in London, being visited with the sickness, but of perfect mind and memory, made and declared his last will and testament nuncupative in manner and form, or to the like effect here following, viz.: he bequeathed his soul to God, and his body to the earth. And as concerning his master Richard Leaver before mentioned, he said he had done him the best service he could, and had dwelt with him a long time, and had served him truly and honestly to the uttermost of his power; and in requital thereof his said master had dealt very unkindly with him, and in the time of his first sickness did forbid him his house and bid him seek lodging elsewhere, and by no means would in that his first time of need suffer him to lodge within his doors, which he took very unkindly.” It is only fair to mention that, on the Friday following, he relented to the extent of giving to his master and mistress each a pair of gloves, to be bought at ten shillings the pair.

The will of a sailor about to engage a pirate has been quoted, and perhaps among sailors the nuncupative will was most prevalent. Often we may catch a glimpse, particularly vivid, of the rough-and-ready life of the British tar. “Memorandum that on or about the five and twentieth day of February, 1683, (English style) John Jacques, late belonging to the ship *St. Thomas*, (whereof Augustine Fincham is now master,) bachelor, being of sound and perfect mind and memory, and with an intent to make his last will and testament nuncupative, did utter and declare these or the like words following, viz.: being asked by Mary Anderson, his landlady, how she should be paid what was due to her, the said deceased made answer, namely: ‘What I have I give to you as soon as I am dead; do you go and administer and take my wages and that will satisfy you.’”

Perhaps some novelist might weave his web round this landlady and her lodger. Another sailor gives all to his landlady, one evidently who knew how to please. “Memorandum that upon or about the month of October in the year ... 1665, Richard Blackman, late of the parish of Stepney, ... mariner, deceased, ... made published and declared his last will and testament nuncupatively or by word of mouth: ... ‘I give leave and bequeath all and singular my goods chattels debts and estate whatsoever unto my loving landlady Elizabeth Cooke, the wife of Thomas Cooke mariner.’”

Witnesses to such wills frequently forgot the adage *de mortuis nil nisi bonum*. They seem to add touches which are unnecessary and show the deceased, even at such an hour, not in his most amiable light. But we owe to them many a curious picture, many an amusing trait of human nature. At this distance of time the coarser details are humorous rather than distressing.

In the will of Edward Newby we are not let into any family secrets, though curiosity is aroused. “Memorandum that on or about the three and twentieth of March, 1683, (S.A.) Edward Newby late of the ship called the *Grafton* upon the seas, bachelor, being of perfect mind and memory, did, with a serious intent to make his last will and testament nuncupative, nuncupate utter and declare these or the like words, viz.: ‘If it should please God that I should do any otherwise than well on shipboard I give all my wages, and whatsoever else belonging unto me, unto my messmate, (meaning Thomas Foster), and I make him executor of all that I have. And if it please God that I live to come on shore none of my relations shall be one penny the better of what belongs to me.’”

In the following we are able to pry a little further into the life of a mariner, as far back as the sixteenth century. Its vigour smacks of those adventurous days, if not wholly edifying for one about to take leave of land and sea for ever. “Memorandum that Thomas Smith, late whiles he lived of London, gent., being captain at sea of a frigate or ship called the *Morning Star*, belonging to the Earl of Cumberland, being the 26th, 27th, and 28th of August A.D. 1594 or thereabouts chased upon the high seas by a fleet of Spaniards of twenty two sail or thereabout ... and in great danger of taking, and having escaped that peril, within a day or two was demanded and asked by some that were in the frigate what he would have done with his goods and substance, and how he would have the same bestowed if he should happen to die or be taken or slain in that dangerous voyage. Whereupon the said Thomas Smith answered and said that, ‘in case I shall die be taken or slain in this voyage, I give all that I have to my brother Edward Smith, for that he hath followed me in these actions and applied himself to my business, and hath been at the getting of part thereof.’ And being asked whether he had any other brother, and what he would give him, he replied that ‘as for my other brother, let him content himself with that he hath had already, for he shall have no more,’ saying further that ‘he hath had a great

deal of money of me already.' And being put in mind of his wife and asked whether he would give her nothing, he answered cursing her and said that she had played the lewd woman, and that she hath had enough already, and should suffice herself with that she had, for more she should not have; adding further, 'my brother Edward, if I die, shall have all that I have,' or the like in effect: which words the said Thomas did speak and utter in the presence of John Thomas, William Trigger, James Bell, George Lone, Thomas Foster, and others."

CHAPTER VI

THE POLYCODICILLIC WILL

“She bequeaths, she repeats, she recalls a donation,
And ends by revoking her own revocation;
Still scribbling or scratching some new codicil,
Oh! success to the woman who makes her own will.”
“ANCIENT, CURIOUS, AND FAMOUS WILLS.”

In preceding papers examples have been given of wills delayed till the eleventh hour: but to some the making of wills and codicils becomes, at times, a hobby, if not an obsession. “What is a poor woman with no family to do? Affection for nieces must fluctuate.” “You can always make a codicil,” answered the lawyer, in the “Light Side of the Law.” Changes and counter-changes in wills have not been neglected by writers as a source of literary material. Revocations made in anger or in sheer vacillation of mind are excellent bases for tales of adventure or love.

The title of this essay has been taken from a passage in R. C. Trevelyan’s operatic fable “Sisyphus.” The king Sisyphus is dying, but there is still a fear that he may revive sufficiently to tamper with his testamentary writings. Even now his last will may be annulled.

Chorus. “Hush! Beware! Beware!
But now his thin lips stirred.
Have a care!
He liveth still.
Speak no rash word,
Lest ye be overheard,
And your expectations crossed,
When he alters a tenth time to your cost,
With a last bitter codicil,
His nine-times-altered will.

Sisyphus. ‘My wife, my sons, draw near my bed, for I
Once more would speak with you before I die,
Where is my lawyer? Let him fetch my will.
I wish to add another codicil.’

Chorus. Another codicil!
Another still
To his polycodicillic will!
Ah! what may this portend?
’Tis the tenth he hath penned.
Soon may death seal an end.”

To discover the real wishes and intentions of a testator is often a difficult matter, when, in addition to an already voluminous will, codicil after codicil is added, clause after clause revoked. At a first reading wrong impressions may easily be taken and bitter disappointment caused. Only those who have handled such documents can realise the confusion which may arise by the indiscreet addition of codicils. It often happens, too, that while the will is legally and carefully drawn and attested, the codicils are carelessly and inadequately framed. Among the Romans there was an informal will called *codicillus*, but the English codicil requires as strict formality as the will. It is wiser to start afresh.

Anne Judith Bristow, in 1784, at the age of 76, saw the necessity of adjusting her will to events. It is translated from the French. “This is the sixth will which I have made since the year 1776, some changes having

happened which made me strike out and obliterate, without, however, writing it wholly again: this I hope will be the last, for I have completed the age of 76 years. I every day expect death. I dread dotage still more. Therefore, without losing time, here is that which I wish to be carried into execution at my decease.” She lived four more years, and the changes and chances of her mortal life were such that she had, after all, to make two codicils, in the first of which, dated 19th of July, 1788, we learn that a daughter mentioned in the will was now dead. The second codicil was dated September 7, 1788. Soon after that she must have died, for on January 26, 1789, the will and codicils were proved.

A curious case was brought before the court not long ago, in which there were many wills, and the validity of a will made forty-four years before the death of the testator was upheld. It was the case of a lunatic, who, during the period of his lunacy made six wills, none of which (as being those of a person of unsound mind) had any force. The deceased, not being of a dangerous disposition, had some liberty, and availed himself of his opportunities to deposit wills at Somerset House. Depositories for the wills of the living are provided under the Wills Act of 1837: and there they were by him solemnly placed, and the Registrar’s receipt was duly given. Other testamentary documents were deposited elsewhere. The making of wills seems certainly with him to have been an obsession. It is strange to think that it was necessary to go back forty-four years to find a valid will, and that for all the latter part of his life he was, as it were, non-existent. But how narrow is the line which distinguishes the sound from the unsound mind is shown by innumerable actions in the Probate Court! It was not for nothing that in olden days testators affirmed their sanity and thanked God for it.

A good instance of an ordinary polycodicillic will is that of Margaret Evans, who, during the ten years from 1775 to 1785, made a will with twelve codicils annexed. Each codicil she introduces as a “memorandum [*sic*] by way of addition” to her will. But as an instance of something more than ordinary it would be hard to surpass the wills and testamentary papers, proved in 1760 and 1761, of Dr. Thomas Cheyney, Dean of Winchester. These papers range in date from 1724 to 1759, a nightmare, doubtless, to his luckless executors and friends.

The irony of this case is that the Dean wished his affairs to be administered privately. "I desire my three executors, as far as practicable, to keep all or any resolutions they shall take relating to my affairs secret among themselves, as I design and desire in all things they may remain accountable to their own consciences and to each other, and not to any other person in any place whatsoever." But such was the chaos of documents that it was necessary to take the directions of a Court of Equity, the executors stating that they "from the multiplicity of the said papers, and the contents of the same, find it impracticable for them to administer and transact the said testator's affairs with that privacy and secrecy, as he seems by the general tenor of his said will and codicil to have designed, ... and that it will be necessary for them to take the directions of a Court of Equity concerning the same."

It is impossible to give a just idea of these documents, covering a period of thirty-five years of changeful life. He is constantly putting on patches, until the whole becomes a piece of motley. He seems to have expected death more than once. The first paper, dated 13th of April, 1724, begins: "I Thomas Cheyney, fellow of the College near Winchester, being by God's will at this time of a sound mind, though labouring under great bodily infirmities, which daily call upon me to remember my latter end, have ... wrote this my last will and testament." The second paper, dated November 3rd of the same year, is addressed to his mother. "Hond. Madam, As I have by will given the greatest part of my estate entirely into your disposal (being desirous you should enjoy it and be made as happy as possible while in this world) I make no doubt but, if you survive me, you will as well out of regard to justice as my request immediately after my death make a will, and therein take effectual care of what I here recommend to you.... This I have writ in haste to supply the defects of my will now made, in case I die before I make a new one, which I intend in a few months when my affairs will be better settled, if it please God to spare me so long." The fourth paper is dated June 5, 1732, and begins, "Now about to go to London, in case I never return."

But the last papers, which he regarded as his real will and codicil, were made when death was not far from him, on July 4 and 6, 1759. The will begins: "I Thomas Cheyney, Dean of the Cathedral Church of Winchester, being now of sound mind and not forgetful of my mortality do make and

declare this to be my last will and testament, hereby revoking all other wills formerly by me made, which however are not destroyed, because they may, though of no validity in law, be of some use to my executors. And first I recommend into Thy hands, Almighty and Everlasting God, my immortal soul, beseeching Thee in all changes to keep it close unto Thyself, and that I may in the day of Judgment find such mercy as I shall stand in need of, thro' the merits of a blessed Redeemer." It is in the codicil that he desires secrecy, as already mentioned, and he concludes by desiring his executors to "destroy unread all such letters as they know or suspect to be of the Duchess of Devonshire's writing, and to take all proper care that no other letters may be divulged."

CHAPTER VII

EIGHTEENTH-CENTURY PIETY

“Thou say’st thy *will* is good, and glory’st in it,
And yet forget’st thy Maker ev’ry minute:
Say, *Portio*, was there ever *Will* allow’d
When the testator’s *mem’ry* was not good?”
QUARLES.

It was said that such expressions of religious faith as those of Dr. Johnson and his namesake were still frequent in the eighteenth century, and still to some extent formal. There is an interesting commentary on this in the will of the Rev. Philip Doddridge, D.D., the famous writer and divine. His will is dated June 11, 1741, and was proved with a codicil on the 31st of December, 1751. “Whereas it is customary on these occasions to begin with recommending the soul into the hands of God thro’ Christ, I do it not in mere form but with sincerity and joy, esteeming it my greatest happiness that I am taught and encouraged to do it by that glorious Gospel, which having most assuredly believed I have spent my life in preaching to others, and esteem an infinitely greater treasure than all my little worldly store, or possessions ten thousand times greater than mine.”

In his will dated 13th of May, 1751, and proved in December the same year, another divine, the Rev. Obadiah Hughes, D.D., recommends his soul to God in a peculiarly touching dedication. We cannot but believe in its sincerity and strength. “In the name of God, Amen. I Obadiah Hughes, of Aldermanbury, London, Minister of the Gospel and Doctor in Divinity, (being sensible of the frailty and uncertainty of life, and reckoning it a duty of very great importance incumbent upon every man to set his house in order, as well as his heart, before he dies,) do make this my last will and testament in manner following. I recommend my soul into the hands of God, to whom I am humbly bold thro’ Jesus Christ to claim a relation as my God and my Father; and though conscious to myself of great unworthiness,

yet I hope to be accepted in the beloved Son of God, and for His sake to obtain mercy and pardon and life eternal. This Jesus I have endeavoured to serve in the Gospel, with great sincerity, I trust, tho' with many infirmities and too much remissness; with Him I have long ago lodged my everlasting concerns, and I do now most solemnly in the views and expectation of another world declare that I receive Christ Jesus by faith as my Lord, and repose an unshaken confidence in Him as my all-sufficient Saviour; and according to the constitution of the Covenant of Grace, as a penitent returning believing sinner, I hope for Christ's sake to be made a partaker of an inheritance with the Saints in light, at that awful season when my soul and body shall by death be parted. And in those regions of immortal bliss I hope with inconceivable joy to meet the departed spirit of my late most dearly beloved wife, which I doubt not has safely reached its heavenly home upon its dislodgment from the body—Lord Jesus Christ, let not this hope leave me ashamed, nor my soul finally miscarry.”

Truly in wills we are delighted with intimacies that elsewhere are seldom seen. Here, again, is a familiar touch in one of Dean Cheyney's many codicils, already quoted in part: “Hond. Madam, As I have by will given the greatest part of my estate entirely unto your disposal (being desirous you should enjoy it and be made as happy as possible whilst in this world), I make no doubt but, if you survive me, you will as well out of regard to justice as my request, immediately after my death make a will, and therein take effectual care of what I here recommend to you.... This I have writ in haste to supply the defects of my will now made, in case I die before I make a new one; which I intend in a few months when my affairs will be better settled, if it please God to spare me so long. I have nothing to add but that I shall with my last and earnest prayers commend you to the providence of God, hoping that He will, in such way as He knows best, supply the loss of friends and have you always in His holy keeping, and conduct you in His own appointed time to those happy mansions where all tears will be wiped away from your eyes. If you fix your thoughts here, (as you ought,) you will soon learn to despise the world and all its uncertain goods. Have no thought of me, but if any let it be that I am taken out of a very miserable life, and wish me not out of that happiness everlasting which through the merits of Christ Jesus I hope to be made partaker of in another world. Adieu! Your dutiful son, Thomas Cheyney. Nov. 3rd, 1724.”

The Dean seems to have lived in constant apprehension of death: in April, 1724, he was “labouring under great bodily infirmities which daily call upon me to remember my latter end”; but he lived till 1759, being in that year “of sound mind and not forgetful of my mortality.” Twice in his testamentary papers he commends his soul to God in prayer. “And so I once more commend myself to Thee, O Father of Spirits, professing myself to die, however wickedly and unprofitably I have lived, in the Christian religion as taught in the Church of England, lamenting her divisions and disputes about obscure and unnecessary things, being in peace and charity with all the world.” (1735.) “And first I recommend into Thy hands, Almighty and Everlasting God, my immortal soul, beseeching Thee in all changes to keep it close unto Thyself, and that I may in the day of Judgment find such mercy as I shall stand in need of through the merits of a blessed Redeemer.” Wills sometimes begin or break out thus in prayer. “Good God direct me in this and all other good things which I shall go about,” cries Phillippa Jones in 1768, and Samuel Gillam in 1787: “O Lord, Thou art great and good, but I am a vile sinner; give me all the mercies I stand in need of for time and for eternity, for the sake of Jesus Christ; and through Him accept all my thankgivings for whatever I have and hope for: To the Father Son and Holy Spirit be eternal glory, Amen.” The Rev. Richard Forster (1728) most humbly commends his soul “into the hand of God the faithful Creator, most earnestly beseeching Him that through the merits and mediation of the merciful Redeemer who purchased it by His blood, being purged and cleansed from all the defilement contracted in this miserable and naughty world, the lusts of the flesh, or the wiles of Satan, and being sanctified by the Holy Ghost, it may be precious in the sight of the glorious Trinity, and be presented without spot in the presence of the Divine Majesty.”

Of peculiar interest, again, are some of the wills of French Protestants in this century. Two may be quoted as differing types, which yet help to illustrate one another as well as the times they represent. The first is that of John Lacombe, translated (indifferently) from the French and proved on May 4, 1702. “In the name of the Father of the Son and of the Holy Ghost, Amen. I John Lacombe underwritten, born in the city of St. Hipolite, ... having settled my house and lived the greatest part of my time in the city of Paris, after having received so many graces and favours from the mercy of God in all the course of my life, and chiefly in this time of affliction and

grief for His Church in which so many persons do sigh after the liberty of serving Him purely according to the motives of their conscience, I render Him my most humble actions of grace, and desire that one may know after me that I do bless Him eternally from the profoundest of my heart, for the kindness which He hath done me for conducting me through His providence in this city wherein I find the pureness of His service, and the means to render Him my adorations, in mind and truth according to His word. I am come into it with the five children which it hath pleased God to leave me of a greater number which He had given me. I have still in France Elizabeth Beauchamp my wife, their mother. I hope that God shall grant me grace to see her in this country to end together the few days which remain to us: to live and to die in it in peace and tranquillity, that is the prayer which I make daily to God. And as I am advanced in years, being in my seventy fifth year, very infirm of body, but of sound mind and understanding by the grace of God, and that the hour of my death is as much uncertain as it is sure, I am upon the watch expecting the time of my going off. I beg instantly to my God the forgiveness of my sins, and to grant me mercy for the sake and through the merits and intercession of our Lord Jesus Christ, my only Redeemer. I invoke all the adorable Trinity, one only God, eternally blessed. And desiring to live and die in the profession of the reformed religion, I pray God when my time shall be come to receive me in His rest.”

The will of Isaac Rigoullott (1720), translated out of Dutch, is more truculent. “In the Name of God, Amen. Because death is certain and the hour thereof uncertain, after having recommended my body and soul to God by Jesus Christ our Lord through His Holy Spirit, and being come out of France by reason of the persecution against our holy Christian religion, forcing us to worship the Bread and Wine as being the flesh and bone of our Lord Jesus Christ, making us to believe in the invocation of Saints, the imaginary fire of Purgatory, and other falsehoods inspired by the spirit of the Devil, to worship the true God in spirit and in truth as He hath commanded us in His holy word in the Old and New Testament, I Isaac Rigoullott ... give,” &c.

We are sometimes surprised, considering their characters, with the lack of this or that feature in the wills of well-known men; but it would, indeed, have been a surprise and a disappointment if Alexander Cruden, the writer of the famous “Concordance,” had not expressed in his will something, at

least, of his doctrinal views and pious soul. Written with his own hand, and signed and sealed at Aberdeen, April 10, 1770, his will thus begins: "In the name of God, Amen. I Alexander Cruden, late a citizen and stationer of London, now living at Aberdeen, being through the goodness of God sound in body and mind, do make and ordain this to be my last will and testament. I acknowledge that I am a miserable sinner by nature and life, being descended from the first Adam, who by his fall in sinning against God hath involved himself and his posterity in sin and misery. And I desire grace at all times, by a true and saving faith, to look for redemption and salvation through the blood and righteousness of our Lord Jesus Christ, the second Adam and God Man Mediator, who by His wonderful incarnation obedience and death hath satisfied divine justice, and purchased salvation for all who are enabled truly to believe in this all sufficient and suitable Saviour, and to receive Him as their Prophet Priest and King, and to rest and rely upon Christ and His Righteousness alone for pardon and eternal Salvation. And I desire that my body may be decently buried in the Church yard of Aberdeen, where my pious father and his family are interred."

These are elaborate instances of piety in the eighteenth century; short and general phrases as "I resign my soul into the hands of my Almighty Creator, in the hopes of a glorious resurrection through the merits and mediation of His blessed Son Jesus Christ, our Saviour and Redeemer, " contained in the will of John Pybus (1789), are frequently to be found. More uncommon is the confession of George Baker (1770), considering the usual tone of contrition and penitence in wills. "In the Name of the Eternal and Everlasting God the great Creator and Disposer of all things, Whose divine law has been my study and His sacred paths my supreme delight, I George Baker, of the Inner Temple, London, Esquire, do make this my last will and testament."

In Mrs. Gaskell's "Sylvia's Lovers" is the following passage: "Has thee put that I'm in my sound mind and seven senses? Then make the sign of the Trinity, and write 'In the name of the Father, the Son, and the Holy Ghost.'" "Is that the right way o' beginning a will?" said Coulson, a little startled. "My father and my father's father, and my husband had it atop of theirs, and I'm noane going for to cease fra' following after them, for they were godly men, though my husband were o' t' episcopal persuasion." It would be necessary to remember how largely tradition and custom count, if we were

to examine wills carefully and thoroughly for the purpose of studying the piety of this or that period of English life. Yet it can be seen how valuable these prefaces are. Elaborate or simple, there is much to learn and mark in them. But it is curious to observe that George Herbert (to leave the eighteenth century for a moment), and William Law, two of the most pious souls of their periods, use very few words in their religious dedications. The first says simply: "I George Herbert, recommending my soul and body to Almighty God that made them, do thus dispose of my goods." William Law, in terms only a little more elaborate, thus begins: "I William Law, of Kings Cliffe, in the County of Northampton, Clerk, being I bless God in good health of body and soundness of mind, do make this my last will and testament in manner and form following, that is to say: Imprimis: I humbly recommend my soul to the mercies of God in Christ Jesus, and my body I commit to the earth to be interred in the Church yard of Kings Cliffe aforesaid, at the discretion of my executrix."

CHAPTER VIII

THE DEAD HAND

“With this thread from out the tomb my dead hand shall tether thee!”

Francis Thompson.

John Oliver Hobbes, in “The Dream and the Business,” makes Firmalden’s uncle leave to him £5,000 a year, on condition that he should become and remain a Congregational minister. “My uncle meant well by his will,” Firmalden said, “but I must have my independence. That money binds me hand and foot. I have no rage against wealth as wealth. I like it. But I must either earn it or inherit it unconditionally.”

In “Maid’s Money” Mrs. Dudeney makes “old Aunt Eliza” leave to Amy and Sarah, cousins, her wealth and her house in Cornwall on the condition that they always live there together and unmarried. “Listen!” says Diana to David in Mrs. Barclay’s “The Following of the Star.” “There was a codicil to Uncle Falcon’s will—a private codicil known only to Mr. Inglestry and myself, and only to be made known a year after his death, to those whom, if I failed to fulfil its conditions, it might then concern. Riverscourt, and all this wealth, are mine, only on condition that I am married within twelve months of Uncle Falcon’s death. He has been dead eleven.”

Mrs. Craigie’s, Mrs. Dudeney’s, and Mrs. Barclay’s imaginary wills are no less binding and coercive than many real wills seek to be. Conditional legacies are indeed become a byword, and are often of a difficult, not to say preposterous, nature.

G. K. Chesterton in “Orthodoxy” has a fanciful but suggestive passage, in which he conceives of life itself as so strange a legacy that man must not gape or wonder if the conditions too are strange. “If I leave a man in my will ten talking elephants and a hundred winged horses, he cannot complain if the conditions partake of the slight eccentricity of the gift. He must not look a winged horse in the mouth.” Legally, it may be of interest to note in

passing, a devise of property on an impossible condition will not take effect. If a man is to inherit lands on condition that he goes from Britain to Rome in an hour, he will not (until flying-machines are more perfect) ever succeed to the lands.

Such provisions are stock material in the drama, from Shakespeare to "The New Sin." "So is the will of a living daughter curbed by the will of a dead father," sighs Portia in "The Merchant of Venice." Lesser comedy and melodrama are much indebted to conditional wills. To take two recent examples: In "The Pin and the Pudding" the rich uncle of the poor hero Malkin leaves him his riches—on condition that he has never been in prison: whereby hangs the tale. In "The Beggar Girl's Wedding" Jack Cunningham only inherits his father's fortune if he is married by the time he is twenty-five: whence a thrilling plot develops.

But to study real life. A legacy of £20,000 was left recently by a father to a son if, within ten years of the testator's death, he should have returned to the religious faith in which he was brought up. The difference between the two sects appeared to be slight, but the legacy was under such conditions intolerable. Another strange distinction or definition is that of "member of the Anglican Catholic Church," as opposed to "member of the Evangelical Protestant Church": but recently a testator stipulated that no one should take a benefit who deserved the former appellation.

More intelligible is the distinction between Roman Catholicism and Protestantism, and in this respect the dead hand is apt to lay heavy restrictions on the living. That any legatee becoming a Roman Catholic or marrying a Roman Catholic shall forfeit all interest is a common provision: it has even been stipulated that if a daughter's husband should become a Roman Catholic she herself should forfeit. More comprehensive was the will of a testator who cut down the benefit of any child who should join the Roman Catholic Church, or become associated with the Peculiar People, Faith Healers, or Christian Scientists or any similar religious or quasi-religious body, he "well knowing the harm, trouble and misery caused in homes thereby." Comprehensive, too, was the will of a minister who recorded his "detestation of all state establishments of religion, believing them to be anti-scriptural and soul-ruining. I have for years prayed the King of Zion to overthrow the politico-ecclesiastical establishment of the British Empire, and I leave the world with a full conviction that such prayer must

ere long be answered. I thirst to see the Church brought down, the Church by man set up, for millions are by it led on to drink a bitter cup.... Heaven dash all error sin and the devil from the earth, and cause truth holiness and Christ everywhere to prevail.”

It is strange that any should think it a moral act to strive to bind and bribe the consciences of their children or heirs. It is pleasant to turn to the story of Henry More’s inheritance, where tolerance was shown in an intolerant age. The Calvinism of his parents could not appeal to the dreamy, intellectual youth, and they perceived how he was drifting away from their manners and beliefs. But it is said that his father seeing him one day among his books at Cambridge—not Calvinistic, we may be sure—was so taken by his looks and manner that he went away and set him down for a substantial legacy in his will.

But not only in religion the effort to shape destinies is shown. Legacies are made conditional, for instance, on the recipient remaining single, on not marrying a person named, or one not approved by the testator’s wife and sister-in-law, a first cousin, an Irishman. An American heiress ten years of age was to forfeit the fortune of her grandmother if she travelled unaccompanied by a maid or chaperon of education and refinement, or if she married a divorced man or an actor. Recently a legacy was left on condition that the donee should marry a lady in society.

It is not surprising that wills should occur in which distrust or horror of alcohol is prominent. “My experience,” says one, “acquired as a large employer of labour and as a Justice of the Peace, and my observation of what is hourly taking place, have convinced me that the present facilities for the sale of intoxicating liquors operate to the prejudice, both morally and materially, of large masses of the community, and that these facilities ought to be curtailed.” He therefore directs that his real estate shall be sold only on condition that the purchaser allows no building to be erected thereon for any purpose connected with intoxicating liquors. The condition was to last “for twenty-one years after the decease of the longest lived survivor of her late Majesty Queen Victoria,” and the term would have been extended had the law allowed.

A brewer, on the other hand, provided that, should the licence of any one of forty-four public-houses and twelve off-licence shops belonging to

his company be forfeited between the date of his will and his death, an equivalent amount should pass to a University instead of to the town for whose benefit he left his residuary estate. His reason, he stated, was that if the licence was lost through the conduct of the frequenters of the house, their action would cost the town a considerable sum, while if it were lost through the action of teetotal magistrates the town would be punished. A total abstainer, he declared, had no more right to compel a temperate man to abstain from drinking his particular beverage than the temperate man had a right to compel the total abstainer by force of law to drink it. But he hoped the first contingency would make the inhabitants careful of their conduct.

Curious glimpses of life in olden days are given in conditions which now and then are enjoined. Edmund Clifton (1547) gave to Sir Geruys Clifton, knight, “the standing cup of silver and gilt and a goblet parcel gilt, which he hath already in his custody, upon condition that he help and assist my wife, and do not enforce her nor be about her to take any husband but such as she shall willingly be pleased and contented with, nor be about to do her any other displeasure, neither by word nor deed; and if he do anything contrary to this condition, then this bequest to be void.” He also gave 40s. to Jane Mering “of this condition, that she shall profess and knowledge herself not to have done her duty to me and my wife, before Mr. Parson and four or five of the honester men in the parish.” He seems to have had the spark of eccentricity in him, and perhaps Jane Mering was not wholly in the wrong. Would that we had the sequel of the story!

Other conditions and stipulations might be quoted at length, as that racehorses should not be kept, moustaches should not be worn, a certain profession should be followed, a certain house occupied for part of the year, a certain person precluded from living in the house, or “that in the event of the death of her husband, she shall not come to reside within twenty miles of Charing Cross.” Daniel Seton (1803) leaves his son Andrew as residuary heir “on condition he goes to Europe on his mother’s death and marries and settles: in failure of him I give the option to Daniel.” Francis Gybbon (1727) of Bennenden, Kent, late merchant of Barbados, gives to his “kinsmen Leonard Gybbon and his brother—Gybbon, the wheelwright, both of Gravesend in Kent, sons of Arthur Gybbon, all that tract of land called Mount Gybbon upon the branches of Unknown Creek near Cohansey, in the province of West Jersey in America, to them and their

heirs for ever, provided they go and settle upon it: if they do not in three years, then to revert to Francis Gybbon my executor, ... the quantity being 5,600 acres.”

But frequently the testator only states his inmost beliefs and desires, leaves a prayer or sermon as his solemn admonition when he shall have passed away. A military man, recently deceased, expressed such beliefs and desires in his will: “I desire to bring home to the minds of my sons and of each and every young man who may hereafter take benefit in my property under this my will, how strongly I hold to the view that every man should during some substantial portion of his life, and certainly during his early manhood, have some definite occupation and lead a useful life, and should not suffer wealth or any accession of wealth or other temptation to tempt him into idleness and a mere loafing and useless existence. I might have so framed this my will as to have made idleness operate to forfeit the interests hereby conferred on my sons, or other young men, in my property, but I foresee that such a provision might, in some cases, work hardships, and I prefer to hope and to trust, as I do, that no son of mine, and no other young man who may, under this my will, succeed to the enjoyment of any property of mine, will so disregard my views herein expressed as to lead the life I so strongly deprecate.”

A Welsh clergyman asked his legatees to remember the motto of Burns, “An honest man’s the noblest work of God,” and the word of a greater, “Owe no man anything,” an inspired command which we are bound to obey. Baron Bertrand de Lassus, lately deceased, who left the residue of his estate to his brother, closes with a noble exhortation: “I entreat him to remain faithful to our family traditions in the South, to love Montrejeau as I have loved it myself, to attach himself to it, to do there all the good that he will be able to do, and to maintain intact and without a stain the honour and name of our ancestors, and I urge him to continue all the charitable work which I am keeping up in our district, to do it better and more completely if he thinks he can do so, to love the Pyrenees and our South with the same ardent love with which I have loved them, and to remain faithful above all to our old traditions of religion and the honour of our house.” But desire, however ardent, cannot instil love and worship in another’s soul.

Parents’ solicitude for their children is often touchingly expressed. The dead hand is raised in blessing and yearning. A Jewish testator exhorted his

son to beware of the vanities and great things of this world, bearing in mind the saying "*tout passe, tout casse, tout lasse*," and in his happiest hours never to forget the poor. Viscount Lumley, in his will dated the 13th year of Charles II., says: "And out of the great love and care I have to my grandchild and heir I strictly charge him to follow his studies in his youth, that he do shun ill company gaming debauchery and engagements, by such unhappy means having known many noble men and gentlemen ruined. And I especially enjoin him to take the advice of his mother and other friends in his marriage, when it shall please God he be fit for it, if I live not to see it, and I pray God to bless him. And could I have done more for my family than I have done I would, and had done much more for them, had not I had so great losses by the late calamitous times."

Thomas Hobbes, of Gray's Inn (1632), had also one especial object of his anxiety and affection. "And whereas the Lord hath left me now one only tender plant for raising my posterity, whose religious and virtuous education and transplanting into some godly family in a fit season of marriage is my greatest worldly care, my humble request unto the Right Honourable the master of his Majesty's ward and his associates is, that the wardship of my sole daughter and heir and of her lands may be granted to my approved loving cousin Peter Phesant of Gray's Inn, and Richard Bellingham of Lincoln's Inn, Esquires. And my earnest desire and serious charge to them is, that they permit my said daughter to be continually abiding and educated with my worthy respected friend Mrs. Moore, if she shall be pleased to perform so great a kindness, and in testimony of my grateful respect to her undertaking the said charge of my daughter I bequeath to her my best diamond ring.... And I further wish that my said friends ... as shall educate my said daughter, as is aforesaid, during her wardship, shall have the further government of her after her wardship expired until her age of one and twenty years.... And I do expressly charge and command in the Lord my said daughter, her weak and tender constitution of body well considered, that she consent not to be married to any whomsoever before her age of eighteen years at the soonest, nor after such her age and before her age of one and twenty years without such consent as hereunder I require; nor to any man whensoever, but such as is of an approved holy just and sober conversation, preferring one of a competent estate and degree, fearing the Lord, before the greatest that may be, being profane or licentious."

Of Bishop Corbet's solicitude for his son we have seen something, nor could anything exceed the kindness of John Pybus ([v. p. 166](#)). Such feelings are summed up in the prayer of Anne Covert, widow of Sir Walter Covert, in the eighth year of Charles I. "And for my children, O God, I give and bequeath them all into Thy gracious protection, most earnestly desiring Thy temporal and spiritual blessings to continue with them both here and hereafter." So human and emotional these old wills often are.

CHAPTER IX

WILLS OF FANCY AND OF FANTASY

It is said that Lord Eldon, in early days, would wrest pieces of poetry into the form of legal instruments, and that he succeeded in reducing “Chevy Chace” into the style of a bill in Chancery. The opposite tendency, it may be imagined, is the more common, and from the history of England to the last will and testament there is little that has not been converted into verse from time to time. It is rumoured that the essential points of those prosaic documents, the acts relating to Death Duties, have been versified: certainly the “Canons of Descent” are in verse and in print. Their quality is not high.

Canon I.

“Estates go to the issue (item)
Of him last seized in infinitum;
Like cow-tails, downwards, straight they tend,
But never, lineally, ascend.

Canon II.

This gives the preference to males,
At which a lady justly rails.

Canon V.

When lineal descendants fail,
Collaterals the land may nail;
So that they be (and that a bore is)
De sanguine progenitores.”

Little better is the style of most wills which have appeared in verse. Of these the rhyming will of Will Jackett (1789), who died in North Place, Islington, is well known:—

“I leave and bequeath
When I’m laid underneath,
To my two loving sisters most dear,
The whole of my store,
Were it twice as much more,
Which God’s goodness has granted me here.

And that none may prevent
This my will and intent,
Or occasion the least of law racket;
With a solemn appeal
I confirm, sign, and seal,
This the true Act and Deed of Will Jackett.”

Such wills have naturally been seized upon by collectors of verse and oddities. But for the most part they are scarcely worth transcription in full, so that space and time may be saved by quoting a few fragments only. A will, “found in the house of an old Batchelor lately deceased” according to “The Muses’ Mirror” (1783), begins thus:—

“With a mind quite at ease, in the evening of life,
Unencumbered with children, relations, or wife;
Not in friendship with one single creature alive,
I make my last will, in the year sixty-five;
How I leave my affairs, though I care not a straw,
Lest a grocer should start up my true heir-at-law;
Or of such in default, which would prove a worse thing,
My land unbequeathed should revert to the king,
I give and bequeath, be it first understood,
I’m a friend, and a firm friend to the general good,
And odd as I seem, was remarked from my youth,
A stickler at all times for honour and truth....”

Four years later Nathaniel Lloyd, Esquire, of Twickenham, followed the “old Batchelor’s” example.

“What I am going to bequeath,
When this frail part submits to death;
But still I hope the spark divine
With its congenial stars will shine:
My good executors fulfil,
I pray ye, fairly, my last will,
With first and second codicil!...
Unto my nephew, Robert Longdon,
Of whom none says he e’er has wrong done;
Tho’ civil law he loves to hash,
I give two hundred pounds in cash....
To Sally Crouch and Mary Lee,
If they with Lady Poulet be,
Because they round the year did dwell
In Twick’nam House, and served full well,
When Lord and Lady both did stray
Over the hills and far away;
The first ten pounds, the other twenty,
And, girls, I hope that will content ye.
In seventeen hundred and sixty-nine,
This with my hand I write and sign;
The sixteenth day of fair October,
In merry mood, but sound and sober;
Past my threescore and fifteenth year,
With spirits gay and conscience clear;
Joyous and frolicksome, tho’ old,
And, like this day, serene but cold;
To foes well-wishing, and to friends most kind,
In perfect charity with all mankind.”

More modern, but in its touches of human nature not of this age only, is
the will of one Sarah Smith.

“I, Sarah Smith, a spinster lone,
With little here to call my own,
Few friends to weep at my decease,
Or pray my soul may rest in peace,
Do make my last and only will,
(Unless I add a codicil,)
My brother Sam to see it done
For he’s the right and proper one.
I give the kettle that I use
At tea-time, and the little cruse
That holds hot posset for a guest
To Martha, for she’s homeliest;
Perhaps she’d like the picture too
In needlework of Auntie Loo
(So like her,) and of Uncle Jim,
She always was so fond of him.
Then there’s the parlour chair and table,
I give them both to you, dear Mabel,
With love, and when you sit thereat
Remember there your Sarah sat.
My poor old spectacles will be
More use to you, alas, than me,
So take them, Polly, and they may
Perhaps sometimes at close of day
Grow dim when memories arise
Of how they suited Sally’s eyes.
Pussy will not be with you long,
But while she lives do her no wrong,
A mug of milk beside the fire
Will be the most that she’ll desire.
There’s little else I have to mention,
For, when I’ve spent my old-age pension,
Not many crowns disturb my sleep,
But what there is is Sam’s to keep:
He’s been a brother kind and good
In all my days of solitude.
And so farewell: no word of ill

And so farewell to word of mine
Shall stain my last and only will;
But, friends, be just and gentle with
The memory of Sarah Smith."

Genuine wills in rhyme are naturally rare, but literature is full of imaginary or fantastic testaments, as well in prose as in verse. To such a one Sir Walter Scott refers in a letter to Lady Anne Hamilton: "I always remind myself of the bequest which once upon a time the wren made to the family of Hamilton. This magnanimous, patriotic bird, after disposing of his personal property to useful and public services, such as one of his legs to prop the bridge of Forth and the other to prop the bridge of Tay, at length instructs his executors thus:—

"And then ye'll take my gallant bill,
My bill that pecks the corn,
And give it to the Duke of Hamilton
To be a hunting horn."

Whether in prose or in verse—verse not seldom prosaic—a striking similarity of idea runs through them, from the will of the *cochon* of the fourth century, who gives his teeth to the quarrelsome, his ears to the deaf, his muscles to the weak, down to the will of Chatterton in the eighteenth century, who gives "all my vigour and fire of youth to Mr. George Catcott, being sensible he is most in want of it," and "from the same charitable motive ... unto the Rev. Mr. Camplin, senior, all my humility."

On earth all things decay and have their period, so all things may make their wills.

"Omnia tempus edax depascitur, omnia carpit,
Omnia sede movet, nil sinit esse diu."

The idea may be indefinitely extended. Among the writings of Thomas Nash, for instance, is a fantasy entitled "Summer's Last Will and Testament."

Summer loquitur.

“Enough of this, let me go make my will....
The surest way to get my will performed
Is to make my executor my heir,
And he, if all be given him, and none else,
Unfallibly will see it well performed.
Lions will feed, though none bid them fall to,
Ill grows the tree affordeth ne’er a graft.

This is the last stroke my tongue’s clock must strike
My last will, which I will that you perform:
My crown I have disposed already of.
Item, I give my withered flowers and herbs
Unto dead corpses, for to deck them with;
My shady walks to great men’s servitors,
Who in their masters’ shadows walk secure;
My pleasant open air, and fragrant smells,
To Croydon and the grounds abutting round;
My heat and warmth to toiling labourers,
My long days to bondmen and prisoners—
My fruits to Autumn, my adopted heir,
My murmuring springs, musicians of sweet sleep,
To murmuring malcontents, with their well-tuned ears,
Channelled in a sweet falling quatorzain,
Do lull their ears asleep, listening themselves....”

Peignot, in his “Choix de Testaments” (1829) made a beginning of a bibliography of imaginative or imaginary wills, among which he cites the last will of the *Ligue* in the “Satyre Ménippée.” It has eloquent and poignant passages.

“Plus, suivant la coutume et anciennes lois,
Je fais mon heritier tout le peuple françois;
Je lui laisse les pleurs, le sang, les pilleries,
Les meurtres, assassins, insignes voleries,
Les veuves, orphelins, et les violemens,
Les larmes, les regrets, et les rançonnemens,
Les ruines des bourgs, des villes, des villages,
Des chateaux, des maisons et tant de brigandages,
Les ennuis, les douleurs et tous les maux reçus
Par surprise ou assauts, par les flammes et feux,
Bref de son cher pays les cendreuses reliques,
Reste de mes labeurs et secrètes pratiques.”

Peignot showed what possibilities lay in this research; perhaps of poetic wills his countryman Villon's "Testaments" are the most noteworthy. English literature, too, has many poems of this nature, and John Donne's poem called "The Will" is characteristic of its author and of its kind.

“Before I sigh my last gasp, let me breathe,
Great Love, some legacies; I here bequeath
Mine eyes to Argus, if mine eyes can see;
If they be blind, then, Love, I give them thee,
My tongue to Fame; to ambassadors mine ears;
To women or the sea, my tears:
Thou, Love, hast taught me heretofore
By making me serve her who had twenty more,
That I should give to none, but such as had too
much before:

My constancy I to the planets give;
My truth to them who at the court do live;
Mine ingenuity and openness,
To Jesuits; to buffoons my pensiveness;
My silence to any who abroad hath been:
My money to a Capuchin:
Thou, Love, taught'st me, by appointing me
To love there, where no love received can be,
Only to give to such as have an incapacity....”

It can be seen how readily the mock will lends itself to satire or wit; but as a last example of poetic wills may be quoted one of quite another nature, one which savours of the piety and the spirit of seventeenth-century testaments.

“Here in the presence of my God
While yet He spares me from His rod,
Of perfect memory and mind
And wholly to His will resigned,
Not knowing how my lot shall be,
Or if my soul may suddenly
The summons hear to haste away
Unto the realms of deathless day,
Ere mortal flesh and spirit faint
Or sickness all the senses taint,
Before I lose the good intent,
I make my will and testament.

And first my soul to God I give,
In whom all souls and spirits live,
That He would set it in the place
Prepared of His eternal grace,
Though stained with many a spot it be,
Nor fit for saints’ society,
Until my Saviour wash it white
And worthy of its Maker’s sight:
Sweet Jesu, may this faith prevail,
Nor at the last Thy Presence fail.

My body to the fire or earth
I give, without remorse or mirth,
That without pomp or any pride
The trammels may be laid aside
That hemmed the soul in, but with meet
Solemnity in church and street,
Due reverence that moves the heart
Of him who sees the dead depart,
And tells the living he must come
At last himself unto the tomb.

And since there have been granted me
Some goods of this world’s currency,
(An earnest as I hope and trust
Of goods that perish not in dust,)
And since of higher weight and worth

And since of higher weight and worth,
The first felicity of earth,
There has been granted me a wife
With ecstasy to crown my life,
To calm my spirit in distress
And put a term to loneliness,
I give, devise, bequeath, dispoise,
All that I have or call my own,
(Though only for the meanwhile lent,)
My goods, my stock, my tenement,
Unto her use that she may crave
No substance when I reach the grave:
Though would that it were thrice the more
To bless her with an ampler store.

Item. The essays of my pen,
All thoughts or poems, all that then
May perfect or imperfect be,
The records and remains of me,
I give her to destroy or keep,
The chaff to burn, the grain to reap,
I give her all sweet thoughts that passed
Betwixt us from first days to last,
All words of soft and tender guise,
All tears and smiles of heart or eyes,
To brood on and to dream upon
When I the unknown way am gone.

Item. I give, all else above,
My fervent and unchanging love
To have and hold without restraint
To her own use, not far and faint,
But near and burning, not removed
With the dear presence that she loved.
Therefore her spirit I entrust
To God's tuition, till the dust
And scales of earth fall from her eyes,
And she awake in Paradise.

Lastly, revoking every will,
Without a wish or thought of ill,

Praying for pardon from the great,
Nor less from those of less estate,
For word or deed, that I may be
Remembered but with amity,
Praying beyond all and above
Pardon of His unbounded love,
In perfect charity with all,
Awaiting the great change and call,
Hereto I set my seal and hand,
That at the last my will may stand
Inviolate, and none contest
My mind and meaning manifest.”

That sweet spirit Eugénie de Guérin, at the entry in her Journal for March 31, 1838, suddenly muses on the making of a will: “Let us see how I would make my will. To you, my Journal, my pen-knife, the ‘Confessions’ of Saint Augustine. To Father, my poems; to Érembert, Lamartine; to Mimi, my rosary, my little knife, ‘The Way to Calvary,’ ‘The Meditations of Father Judde.’ To Louise, ‘The Spiritual Conflict’; to Mimi also my ‘Imitation’; to Antoinette, ‘The Burning Soul.’ To you also my little strong box for your secrets, on condition that you burn all mine, if there should be any in it. What would you do with them? They are affairs of conscience, some of those matters that lie between the soul and God, some letters of counsel from M. Bories and that good Norman curé whom I have mentioned. I keep them as a souvenir, and because I require them; they are *my papers*, which, however, must not see the light of day. If, then, what I write here for amusement should come to pass, if you become my heir, remember to burn all the contents of this box.”

Kenneth Grahame, forgetting for a moment his Eugénie de Guérin, asks in “Dream Days”: “Who in search of relaxation, would ever dream of choosing the drawing-up of a testamentary disposition of property?” But this sudden craze he gives to little Harold. He was shy of showing his “death-letter,” as he called it, but it came out after a tussle. It was not the first will to cause dissension. “My dear Edward, when I die I leave all my muny to you my walkin sticks wips my crop my sord and gun bricks forts and all things i have goodbye my dear charlotte when i die I leave you my wach and cumpus and pencil case my salors and camperdown my picteres

and evthing goodbye your loving brother armen my dear Martha I love you very much i leave you my garden my mice and rabets my plants in pots when I die please take care of them my dear—”

But will-making may have a sinister attraction, a suspicion of something hardly sane. Fragments of Chatterton’s will have already been quoted. Apprenticed to an attorney, he strove to get free, and as a last means to induce his master to dismiss him, he left in the office this strange document, dated April 14, 1770, in which his approaching suicide was announced. It had the effect desired. “All this wrote between 11 and 2 o’clock Saturday, in the utmost distress of mind. April 14, 1770. This is the last will and testament of me, Thomas Chatterton, of the city of Bristol; being sound in body, or it is the fault of my last surgeon, the soundness of my mind, the coroner and jury are to be judges of, desiring them to take notice that the most perfect masters of human nature in Bristol distinguish me by the title of the Mad Genius; therefore, if I do a mad action, it is conformable to every action of my life, which all savoured of insanity.” There follow directions for tomb and tablets, and bequests of satirical or bitter humour. “I leave also my religion to Dr. Cutts Barton, Dean of Bristol, hereby empowering the Sub Sacrist to strike him on the head when he goes to sleep in church.... I leave my moderation to the politicians on both sides of the question.... I give my abstinence to the company of the Sheriff’s annual feast in general, more particularly to the Aldermen.... I leave the young ladies all the letters they have had from me, assuring them that they need be under no apprehension from the appearance of my ghost, for I die for none of them.... I leave my mother and sister to the protection of my friends, if I have any. Executed in the presence of Omniscience this 14th day of April, 1770.”

But probably of imaginative and fantastic wills the most remarkable is one said to be the work of a lunatic in America, more surprising for its beauty than are others for their satiric or malicious inventiveness.^[2]

“ ... I leave the children for the term of their childhood the flowers, fields, blossoms, and woods, with the right to play among them freely, warning them at the same time against thistles and thorns. I devise to the children the banks, the brooks, and the golden sands beneath waters thereof, and the white clouds that float high over the giant trees, and I leave to the

children long long days to be merry in, and the night and the moon and the train of the Milky Way to wonder at.

“I devise to the boys jointly all the useful fields, all the pleasant waters where one may swim, all the streams where one may fish or where, when grim winter comes, one may skate, to have and hold the same for the period of their boyhood.... I give to the said boys each his own place by the fireside at night, with all the pictures that may be seen in the burning wood, to enjoy without let or hindrance and without any encumbrance or care.

“To lovers I devise their imaginary world with whatever they may need, as stars, sky, red roses by the wall, the bloom of the hawthorn, the sweet strains of music, and aught else they may desire.... To the loved ones with snowy crowns I bequeath happiness, old age, the love and gratitude of their children, until they fall asleep.”

FOOTNOTE

[2] A few passages are here quoted from this will as it appeared in the *Daily Telegraph*. It seems that its appellation “The Lunatic’s Will” is erroneous and that it was a deliberate literary composition. See Harris’s “Ancient, Curious, and Famous Wills” referred to in the Preface. In that book it is quoted in full and its real origin given.

CHAPTER X

STRIFE

Thomas Penistone, in the preamble to his will quoted in “The Way of All Flesh,” insists on the confusion or disputation an intestacy might cause. The regular formula, occurring over and over, is that the will is made for avoiding controversies after death; or, as one John Nabbs says (1665), “the unhappy controversies usual in default of such settlements.” Robert Collyer, whose will was proved November 8, 1665, makes a peculiarly interesting addendum as to the law in his day: “the reason why I trouble not myself with witnesses is because a will so made by a man himself, although many imperfections in regard of form and the like may be in it, yet it is as good in law as if it were published and declared before many witnesses; which if people did but take notice of, many wills would be made that are not and much contention prevented; which I heard Serjeant Maynard plead for law in a case between Master Christopher Coles and Master Walter Bartellott at Westminster Hall.”

There is a pathetic fallacy in this expectation. Some controversies may be avoided, but bitter disputes too often are aroused—disputes about the will’s validity, the meaning of its provisions, the capacity of the testator, the legality or interpretation of a bequest, its justice or injustice, and so on interminably. Such a work as Theobald’s “Law of Wills” illustrates, by the thousands of decisions it brings together, what questions and queries arise on the legal and interpretative sides alone.

Some seem to foresee trouble, or “fuss in the way of quarrel,” as one testator puts it. A clause is frequently inserted barring disputants from any benefit. George Spence (1587) expresses this well: “I will that if any person or persons shall not be content with such gifts as given to them by virtue of this my will and testament, shall be clearly and utterly voided out of the same, and they shall have no commodity or profit by virtue of the same.” And Anthony Wayte, of Clapham, whose will is dated September 10, 1558, believes in an original remedy—a short way with disputants. “If any dispute as to the meaning of my will, I will two or three unlearned husbandmen of

my parish of Clapham to interpret my meaning as they or two of them shall think in their conscience.” It is a delightful touch of sarcasm and sagacity.

It was no wonder that Sir George Hervey, of Thurleigh, Bedfordshire, who died about 1536, took his friends and even his servants into his confidence, acquainting them with the tenor of his will. For it was found, when the will was taken from its place of custody in a coffer “standing in the house of one Richard Holt, draper, dwelling in Watling Street,” that he had left his estates, his manors, and lands in Huntingdon, Bedford, Buckingham, Hertford, and Oxford, to his reputed son Gerard, to the exclusion of his generally recognised son and daughter, Nicholas and Elizabeth. Needless to say the will was called in question, but the affidavits of Sir George’s friends and servants, in whom he had confided, secured its admission to probate.

Thus one witness said that “about ten or twelve days before the death of the said Sir George, this deponent was eftsoons in hand again with the said Sir George, that he should be good unto Nicholas Hervey; to whom the said Sir George answering this deponent, showed of a displeasure that was grown between him and the said Nicholas, and said that he had given him a dash with a pen, and that he should never have groat of him, and this deponent saith also that he was present when the late Abbess of Elstow went unto the said Sir George instanted and moved the said Sir George to be good unto the said Elizabeth, whereunto the said Sir George utterly refused to do her any manner of good, saying that she was not his daughter.”

Thomas Smith Panuwell, of Tonbridge, seems not to have had much faith in peaceableness and honesty: to his will is appended the following: “As the above written was copied from a will written by me some time before the above date, (1779) but not witnessed as I lay very ill of a fever, I was dubious and revolving it in my mind whether it was authentic, I had it written afresh by an attorney in form of law; ... but as I am now sensible my brain was then in perplexity through weakness, the authenticity of this will might be questioned and possibly for the benefit of trade by the man who wrote it, I hereby declare it is my will, now it has pleased the merciful Almighty to raise me from the jaws of Death and bless me with opportunity to endeavour to attain through a sincere repentance and reform the salvation

of my spirit; and I am in perfect and sound mind and memory. Witness my hand and seal this 20th day of February, 1780.”

Few cases in the courts are more interesting than doubtful or disputed wills. But, however romantic, there is much that is sordid and miserable in probate actions, much lamentable bitterness of spirit. It may be hoped that when these cases are heard the testator has drunk deep of the Lethean stream. But the controversy may begin before the testator’s death, and cruel such wrangling is.

The story of the last days in the life of Elizabeth, mother of John Stow, is a curious tale at once comic and distressing. John appears not to have been on the best of terms with his family, and especially to have irritated his younger brother Thomas. Elizabeth Stow, in 1568, was living with Thomas and his wife, but one day chanced to go and visit her son John. She was refreshed with the “best ale and bread, and a cold leg of mutton was put before her, whereof she ate very hungerly, and thereafter fell both to butter and to cheese.” On leaving, she promised John not to slight him, as he was her eldest son. But Thomas and his wife would give her no rest till she had told them all that she and John had spoken together. It leaked out that John had insulted Thomas’s wife, whereupon he “would never let my mother rest” (John tells the story himself) “till he had forced her to break her will, wherein she bequeathed me X li., (equal with all the younger children, except Thomas, which had all indeed) and to put me in nothing at all.” But she found that her friends would not witness the will, nor did they until Thomas pretended he had restored the £10, though he put down £5, in fact. “And so they set their hands to it, and after heard it read, wherein they found the V li. and would have withdrawn their hands again, but it was too late.”

Thomas took great offence at John’s insult to his wife: but soon afterwards he himself thrust her out of doors, and she, getting in again, “he beat her and threw her again into the street; and all the neighbours could not get him to take her in again, yet again she was conveyed into the house, and at X of the clock at night, he being bare-legged searched and found her and then fell again a-beating of her, so that my mother lying sick on a pallet was fain to creep up, and felt about the chamber for Thomas his hosen and shoes; and crept down the stairs with them as well as she could, and prayed him to put them on lest he should catch cold. So my mother stood in her

smock more than an hour entreating him for the Lord's sake to be more quiet: so that at this time my mother took such a cold that she never rose after, but he and his wife went to bed and agreed well enough."

Then began a long wrangling about the will, the minister who attended her much misliking it, and Thomas and his wife neglecting no device to keep the poor mother to the will. Her son-in-law, Rolfe, a priest, also tried to persuade her to do justice to John, but "she always bade him hold his peace, or else speak softly, for her son's wife was in one corner or other hearkening, and she should have a life ten times worse than death if Thomas or his wife should know of any such talk." Soon after this the brothers professed to patch up the quarrel, and John mustered courage himself to entreat his mother to put him back for £10, and he read her the 133rd Psalm, asking her to persuade Thomas to read it too, "which she said she dared not do. The psalm beginneth thus: 'Behold how pleasant and joyful a thing it is, brethren, to dwell together and to be of one mind,' &c., and this is a special note to be marked; all the time that I was talking with her, to break me of my talk she lay as she had been more afeared than of death, lest her son Thomas or his wife should hear any of our talk. And still she cried to me: 'Peace, she cometh; speak softly; she is on the stairs hearkening,'" &c.

Still the storm raged round the unhappy woman's couch; her brother, and the overseer of the will, both protested against its provisions. But in vain; at last she died, worn out and embittered, we may very well imagine, by the broils of her last days on earth. Truly a pitiable tale, but perhaps not unparalleled. We may still read how £5 only was given to John, for the will is extant. It suggests what feuds and sorrows lie behind the phrases of many a will.

Such feuds and sorrows struck the imagination of Dickens, when he visited Doctors' Commons, where the wills which now rest at Somerset House were stored in his day. "We naturally fell into a train of reflection as we walked homewards, upon the curious old records of likings and dislikings; of jealousies and revenges; of affection defying the power of death, and hatred pursued beyond the grave, which these depositories contain: eloquent by striking tokens, some of them, of excellence of heart and nobleness of soul; melancholy examples, others, of the worst passions of human nature. How many men as they lay speechless and helpless on the bed of death, would have given worlds but for the strength and power to

blot out the silent evidence of animosity and bitterness, which now stands registered against them in Doctors' Commons!"

It is curious how quickly a man turns to his will in the event of coolness or misunderstanding. Cardinal Vaughan has told how his friendship with Cardinal Manning died down. "We consulted one another and told one another everything. Well, he had appointed me to be one of his executors. On one occasion when I was staying with him in London, we got into a discussion; I could not accept his views, and I suppose, on the contrary, strongly maintained my own. I saw he was a little bit put out—but what do you think he did? He went upstairs, took out his will, and struck his pen through my name as executor."

An uninitiated reader of Elizabeth Stow's will would never have known what bitterness lay behind that £5 legacy; but sometimes such bitterness is evident enough. Harry Staple, of Ospring, Kent, whose will is dated February 19, 1691, is curt and downright: "To the widow Hall of Ospring and unto my three undutiful daughters, Mary and Elizabeth and Martha one shilling apiece." John Braibroke, of Cooling, in 1535 requested his son Thomas "not to meddle with nothing of my testament or last will, nor my wife Alice to meddle with nothing that is or hath been between me and my son Thomas from the beginning of the world unto the present day." A startling bequest was that of 3½d. to a son for the purchase of a rope for his wife, to be used as soon as possible. And another son to reap trouble was Freeman Ellis, whose father's will was proved in 1664.

"Memo. that Freeman Ellis late of the parish of St. James Clerkenwell ... having a very great love and affection for Bridget Fanny and Judith Ellis who had always been very kind and loving to him, and being very much displeased with his son Freeman Ellis, who had been undutiful to him and married without his consent and was gone away from his wife, would and did several times in his life time ... say and declare that whenever he died he would make his said sisters ... his executrixes and leave his estate to their sole ordering and disposing."

Wives fall under a full share of abuse. A London bookseller, in 1785, left a legacy of £50 to "Elizabeth whom through my foolish fondness I

made my wife, without regard to family fame or fortune, and who in return has not spared most unjustly to accuse me of every crime regarding human nature, save highway robbery.” Robert Frampton also had unhappy experiences. He describes himself as of Woodley, in the parish of Sonning and county of Berks, and his will was dated in London December 18, 1677. “I do devise and bequeath to my wife Ann £1000 to be paid her out of my personal estate, not being able to leave her more by reason of her extravagancy in all things, embezzling the money given her for her apparel and leaving what she bought for that use upon the score, which I was forced to pay, and her running me into debt a good sum besides whereof she would never give any account. She hath also from time to time given her gossips a great part of what bought for herself the children and necessities for the house and of the provisions thereof to the huge increase of my expenses and great damage of my estate; yea, in all things she hath ever been a profuse imperious and unkind wife unto me, and sundry times bound herself under a curse to ruin me if she could and necessitate the children to beg and starve.”

Sir Humphrey Style, in 1658, was more reticent in his misfortune. He gave to his wife £20 to buy mourning for him if she pleased, and a further sum of 5s. only “for good reasons best known unto myself, but not for her honour to be published.” But doubtless the gossips wagged their tongues no less.

A Spanish lady, not long since, included all her relations in one condemnation. “Nothing shall come to them from me, but a bag of sand to rub themselves with. None deserves even a goodbye. I do not recognise a single one of them.” But not only within the family is animosity shown. John Bacon Sweeting, of Honiton, surgeon, whose will was proved November 10, 1803, in a codicil thus complains: “Be it remembered that whereas I am unhappily so situated as to have Samuel Lott, Esquire, as possessor of a spot of waste land adjoining some lands which I bought ... and situate on the north side of the Borough of Honiton, and the said Samuel Lott has set up a claim to a certain space behind the same which he has refused to leave to be referred to the arbitration of Wm. Tucker of Croydon, Esquire, from a consciousness, I conceive, of the injustice of his pretensions, this as a serious man and a Christian I would not assert if the same conduct had not been notoriously observed by him wherever he had a prospect of over-reaching his neighbour, and feeling that this conduct will

as [illegible] prevent my selling the property at a fair and just value, as most people wish to avoid law, it is my will that the same shall not be sold during the lifetime of the said Samuel Lott for a less sum than £120, and it is further my will that if the said Samuel Lott shall encroach any building on the spot alluded to, that then my said executors shall pull down such encroachments and defend the act as they shall be advised, and the expenses paid out of my property.” More recently a testator thus gave vent to his feelings: “My estate would have been considerably larger if it had not been for my association with this perambulating human vinegar cruet and the cleverest known legal daylight robber.”

But a transition to the subject next appearing may conveniently be made by mention of the will of Robert Halliday (dated May 6, 1491), who gave 5s. issuing out of an estate in St. Leonard, Eastcheap, to make an entertainment once a year for persons at variance with one another, that peace and love might be promoted and prevail.

CHAPTER XI

LOVE AND GRATITUDE

It is easy to discover such ugly facts as have just been disclosed. But love and gratitude are certainly more frequent. In many cases we see a picture of sweet and gentle family life, or of tender and affectionate regard. It is delightful to meet in modern wills, as one often may, expressions of passionate devotion and admiration for a wife or husband. And in old wills we have many a charming picture suggested. Sir Hugh Cholmley, a prominent figure in Whitby in the seventeenth century, gives “to my dear brother, Sir Henry Cholmley, my bay bald Barbary mare, called Spanker,” “to my dear daughter-in-law, wife to my son William Cholmley, the green cloth hangings wrought with needlework, which I desire her to esteem because they were wrought by my dear wife and her servants when we were first housekeepers,” and “to my dear sister, Mrs. Jane Twysden, wife to my brother Serjeant Twysden, a little gold pot of ten pounds price, with hearty thanks and acknowledgments for her many favours and kindnesses to myself and children.”

John Pybus, who died in June, 1789, appears to have had a felicitous family life, and though the language is the language of the eighteenth century, the feeling would seem to be sincere and deep. “I also give and bequeath unto my said wife the sum of £200, ... hereby declaring, as in justice I think due to her, the very high opinion I entertain of her temper and disposition, and how much I think myself obliged to her for the very dutiful tender and affectionate conduct she has ever given proofs of both as a wife and mother, during the whole course of our matrimonial connection now nearly thirty-four years.” It is an echo of the words of Robert Sanderson, Bishop of Lincoln, who died on January 29, 1662, leaving his residuary estate “to my very loving and dearly beloved wife, with whom I have lived almost three and forty years in perfect amity, and with much comfort.” Philip Doddridge, D.D., a testator who had the knack of making his will interesting, has a special paragraph about his wife: “And I hereby recommend her to the divine supporting presence and care during the short

separation which her great love to me will, I fear, render too painful to her, praying earnestly that God may succeed her pious care in the education of our dear children that they may be happy for time and for eternity.” His tender love is seen also in the superscription to a letter found among his MSS. “To my trusty and well beloved Mrs. Mercy Doddridge, the dearest of all dears, the wisest of all my earthly councillors, and of all my governours the most potent, yet the most gentle and moderate” (1741).

The will of the Rt. Hon. Mary Countess Dowager of De la Warr affords another example of affection from the eighteenth century. It is written (as will be seen) in the form of a letter to her son, in the course of which she says: “The silver cup given by your grandfather to my dear and most lamented son William Lord De la Warr I bequeath to you with my blessing, which no son was ever more entitled to receive from a fond mother than yourself; may it prove propitious to you, and that every affectionate attention shown to me may be returned to you by your children, that you may have the happiness and satisfaction of knowing how much comfort your behaviour administered to me who must long since have sunk under the weight of such repeated misfortunes, had they not been alleviated by the kindnesses of you and my dearest Georgiana.”

Sarah Wills of Bristol, whose will is dated October 30, 1797, writes with similar intimacy of feeling. “It is with a deep sense of gratitude I acknowledge the kindness of my dear son, and happy should I think myself if I had it in my power to reward him to my utmost wish, but I trust that God who have so wonderfully blest him will never forsake him, and also trust that he’ll never forsake the God of his mercies; He who have been the guide of his youth, may He be the support of his more advanced years. And may he ever show the utmost kindness to his truly affectionate sister, for such she is: show her all tenderness, and as you are so blest in worldly goods the little matter I call mine can’t be of much use to you, but to her it is, and she have been a tender child to me. If there is any little article that my beloved son likes, have it. I only say again I feel gratitude for your great goodness to me, and it melts me to think of it, and happy should I think myself to make you an ample return; but accept of my sincerest thanks, and be assured it is more blessed to give than receive, Your affectionate mother, S. Wills.”

As a final instance of family affection the following expression of gratitude, interesting in that the person eulogised was afterwards Archbishop of York, must not be overlooked. The testator, Major William Markham, died in 1771, and on the 21st of January, 1780, administration with the will was granted to his son, then William, Lord Archbishop of York. He says: "My reason for thus forming my will is founded upon a principle of gratitude to my eldest son, whose interest restored me when reduced to my majority in Major General Lascelles' regiment. To the same interest I owe the liberty I had from His Majesty of selling my majority at the best advantage, without which liberty I could have never sold and consequently never have been master of said money, which I now gratefully return to him who in a manner gave it. The said William Markham's interest brought me out of captivity to London, from which time I am obliged to acknowledge I have entirely lived on him. I should be very remiss in not mentioning one remarkable instance of his generosity, which was when the Duke of Buccleugh asked Dr. Markham, then only a student in Christchurch, how he could serve him he instantly answered 'by recommending my father Major Markham to His Majesty for a Lieutenant Colonelcy.' But the greatest obligation I lie under to Dr. Markham is for his having made an ample provision for my two younger sons George and Enoch, whom I most heartily recommend to his further care and patronage, which I am fully persuaded is quite unnecessary to mention."

The Archbishop who earned such gratitude from his father was buried in Westminster Abbey on November 11, 1807, aged eighty-nine, and a monument was raised to his memory by his grandchildren. He was a man of character, "a pompous and warm-tempered prelate, with a magnificent presence and almost martial bearing." He is described by Walpole as "a pert, arrogant man," and as "that warlike metropolitan Archbishop Turpin." Bentham gives an earlier and equally curious portrait of him as head master of Westminster School. Bentham was at Westminster 1755 to 1760. "Our great glory was Dr. Markham; he was a tall, portly man, and 'high he held his head.' He married a Dutch woman who brought him a considerable fortune. He had a large quantity of classical knowledge. His business was rather in courting the great than in attending to the school. Any excuse served his purpose for deserting his post. He had a great deal of pomp, especially when he lifted his hand, waved it, and repeated Latin verses. If the boys performed their tasks well, it was well; if ill, it was not the less

well. We stood prodigiously in awe of him; indeed, he was an object of adoration.”

Gifts with expressions of love and gratitude are common outside the family. Recently legacies were left to children of a confectioner “in appreciation of their attention to my luncheon wants for twenty years.” A large estate was bequeathed to the widow of a medical attendant “in consideration of her husband’s constant kindness and attention to me both personally and professionally.” Certain silver articles were left to one “who has been for many years a most kind and sympathetic friend, passing many dull weary hours with me listening to my griefs and worries.” Of interest is a recent bequest in a builder’s will, who left a sum sufficient to put into proper repair and to provide in perpetuity for the maintenance and gardening and carpet bedding of the grave of his first partner, “for whom,” he says, “I entertain the highest respect and regard.”

Florence Nightingale left several bequests, expressing affection and gratitude therewith. Two friends she was determined not to leave unmentioned, although they had predeceased her. “To my beloved and revered friends, Mr. Charles H. Bracebridge, and his wife, my more than mother, without whom Scutari and my life could not have been, and to whom nothing that I can say or do would in the least express my thankfulness, I should have left some token of my remembrance, had they, as I expected, survived me.”

These are recent instances, but we may cull them from old records too. Thomas Avery, of Dolton in Devon, made a nuncupative will on May 21, 1634. He gave “unto Edward Levaton and Elizabeth Warre, in respect of their pains they had taken with him, the said deceased, and out of his love and affection unto them in regard he had brought them up in his own house and that they had been long with him and had taken pains about his work and had travelled about his business and occasion, the sum of £100 apiece”; the residue to his brother John “in regard of his brotherly love and affection unto him, and in respect and recompense of his said brother’s travail and pains which he had undergone and taken for him, the said deceased, when none other of his kindred would do anything for him.” Philip Doddridge in a codicil says: “And as the providence of God hath been pleased to give me a particular interest in the friendship of the truly honourable George Littleton, Esquire, I beg he would please to accept five guineas to buy him a

ring, which I desire him to wear at least ten days in every year from the 19th of January, (that ever memorable day,) in memory of the unfeigned affection that has subsisted between us.” In his will he gives £5 to Elizabeth Bagnal “as a token of the affectionate care she took of my eldest child during her last illness, a tender circumstance which it is not possible for me ever to forget.”

Such are examples of individual regard. There are wills where the whole tone is beautiful, the whole ordered with serene affection and satisfaction. Too long to be quoted in full, the complete picture cannot be given, but some more extracts from the same John Pybus may give an idea of his affections and friendships. He begins: “I John Pybus, of Old Bond Street in the parish of St. George, Hanover Square, ... being of sound and disposing mind and memory, but subject to frequent and severe infirmities which may suddenly deprive me of existence, think it necessary to make and declare this my last will and testament.” After the eulogy of his wife, and after exhorting his children “to behave with the same degree of attention tenderness and affection towards her during the remainder of her life as she has ever manifested towards them, as they shall hope to meet with the like behaviour from their children, should it ever please God to bless them with any,” he continues: “And to my dearly beloved daughter Catherine Amelia I give and bequeath as a small but very inadequate proof of the very great affection I bear her my own picture, a $\frac{3}{4}$ length leaning on a crutch stick or cane, painted by Stuart, and a $\frac{3}{4}$ length picture of her mother lately painted by the same hand, and my harpsichord by Shudi and Broadwood, being a remarkable fine-toned instrument, which will I hope be an inducement to her to spare no pains or application to improve herself in music, as her dear sister Lady Fletcher has done, not only as being in itself a most desirable accomplishment, but one that will afford her an inexhaustible fund of the most pleasing kind of amusement and entertainment as long as she lives.... I flatter myself with hope that my said son Charles Small Pybus will give unremitted assiduity and application to the study and profession of the law, wherein without such application it will be in vain to hope for or expect success, and to which he hath in a dutiful conformity to my wishes and advice, and as I hope from inclination likewise, hitherto closely attended to his edification and my comfort, not doubting but a continuation of this line of conduct will with his talents and abilities be eventually most amply rewarded.... And whereas my very much esteemed and respected friend

Mrs. Amelia Rous, wife to my worthy friend Thos. Bates Rous Esq^r and sister to my dear wife, was so obliging at my particular request as to sit to Mr. Joachim Smith of Bonner Street for the model of her bust to be taken by him in wax, which he has executed with very great success by taking a striking resemblance of her, and as I have ever considered myself as having been very instrumental in promoting the happy union between her and her husband, and have with very real pleasure lived to see them pass many years together with the most apparent proof of mutual cordiality and affection, I do hereby therefore give and bequeath unto the said Thos. Bates Rous the aforesaid waxen model or bust of his said dear wife Amelia, in testimony of my regard for him, and the respect I have for his domestic character which has induced me to consider him as the best entitled to this striking resemblance of his said dear wife, and whereon I have ever set a very high value.

“I also give and bequeath unto Mr. Hollingbery, an officer in the Royal Navy, the sum of 20 guineas for mourning, most sincerely wishing him health happiness and prosperity through life, trusting his behaviour will continue to be such as to merit success and do credit to the assistance I afforded him on his first setting out in the world, which I reflect on with the most real satisfaction.”

So John Pybus looks upon the world with a benignant and beneficent eye, happy in his family and his friends, in his life and in his death.

CHAPTER XII

THE SERVANT PROBLEM

“O good old man! how well in thee appears
The constant service of the antique world,
When service sweat for duty, not for meed!
Thou art not for the fashion of these times,
Where none will sweat but for promotion,
And having that, do choke their service up
E’en with the having: it is not so with thee.”

Such are the reflections of Orlando upon the decay of service in “As You Like It.” That ingratitude and incivility are not a monopoly of to-day may be seen from such wills as those of Dr. Messenger Monsey and of the Rt. Hon. Humphry Morice. The servant problem, indeed, often forms a diverting feature of wills. And since in current wills we find frequent instances of constancy and corresponding reward, doubtless the lament over the “constant service of the antique world” is one among many cases where the cry of *ætas parentum* is erroneous or misleading.

In Hone’s “Table Book” is this memorandum: “The following memorial I copied from a tablet, on the right hand side of the clergyman’s desk, in the beautiful little church at Hornsey. The scarceness of similar inscriptions makes this valuable.—S. T. L.

“Erected to the memory of Mary Parsons, the diligent, faithful and affectionate servant in a family during a period of 57 years. She died on the 22nd day of November, 1806, aged 85.

“Also to the memory of Elizabeth Decker, the friend and companion of the above; who, after an exemplary service of 47 years in the same family, died on the 2nd of February, 1809, aged 75.

“Their remains, by their mutual request, were interred in the same grave.”

But against such examples of a hundred years ago may be set wills like those already mentioned. Dr. Monsey is characteristically vigorous in speaking of his servant Nanney. “This she must take as a reward for her impertinence, sauciness and unwilling service; she’s as proud as the Devil can make her, as much of a prude as the best of you, as self-conceited and pert and self-sufficient as the most flaunting Duchess in the Kingdom.”

Among many, as has been seen, the Rt. Hon. Humphry Morice found only one faithful to his trust: “and sorry I am to say he is the only servant I ever had who seemed sensible of good treatment and did not behave ungratefully.” If from an addition to his will made at Naples, March 14, 1784, we may judge of his usual conduct, he must have deserved gratitude and devotion, if any master ever did. “I appoint my servant John Allen and my servant Richard Deale joint executors of this my will and codicil, being confident I can depend upon them for the taking care of my effects and of what I have, that they will dispose of it as I order ’em by letter or otherwise.... I desire to be buried at Naples if I die there, and in a leaden coffin, if such a thing is to be had. Just before it is soldered, I request the surgeon in Lord Tylney’s house or some other surgeon may take out my heart, or perform some other operation to ascertain my being really dead. The five servants I brought with me from England to have a complete suit of mourning. I mean for ’em to continue in the house I inhabit ... till it is a proper season for ’em to return to England, so as for ’em to avoid taking that journey during the extremes of winter or summer, according to the time I may happen to die. Their maintenance here, also the expenses of their return to England [which he stipulates shall be by land] to be paid out of my effects.”

It speaks much for his trustful nature that he associates with the one servant found faithful in 1782 another in 1784, in spite of his disappointment in human gratitude. This generous trait of his character will again be exemplified.

Dr. Thomas Cheyney, in one of the numerous papers upon which comment has been made, was another whose kindness was ill-rewarded. In a codicil dated January 14, 1748, he says in language through which we can

see his disappointment and disgust: “Thomas Randall having chose to leave my service not in the most grateful manner, after I had educated him from his very distressed childhood, I hereby revoke all legacies intended ... for him.”

M. Coquelin, the famous actor, left a large legacy for his servant Gillet, “who has been the most honest and most devoted of servants.” Handel’s will and codicils show how much his servants were in his mind. Sir John Dolben, of Durham, Bart., D.D., says in his will, dated May 22, 1751: “I give and bequeath to my faithful and affectionate old servant Elizabeth Burlington all my wearing clothes and apparel whatsoever, and I wish I was in circumstances to leave her a provision for life suitable to the care she has taken of me during very many long and sore distempers, but I think and hope my children will not let her want under old age and infirmities.”

The Rt. Hon. Mary Countess Dowager of De la Warr, whose will reveals a lovable and sentimental personality, was fortunate in her servants. Dated July 24, 1783, it is addressed to Johnny her son: “My dear Son, as I hourly feel my health decay, it reminds me how necessary it is to make a few memorandums, which, from the knowledge I have of the integrity of your heart, will (I am sensible) be as binding and as strictly adhered to by you as a will strictly drawn up with the greatest form.... Poor Elizabeth Hutchinson’s unwearied attentions to me and your sister Charlotte during all our sickness cannot be forgot by me. I desire she may have £30 and all my wearing apparel, and added to these the best of characters. The rest of my servants mourning and £10 each, having behaved very well in my service. *Adieu: jusqu’au revoir.*”

It is curious to observe the minute care with which high dignitaries consider the claims of their servants. The Noble Robert Dunant, whose will (already referred to), dated at Geneva August 12, 1768, is translated from the French, is an example of this: “I, the underwritten Counsellor of State, having first humbled myself before God and implored the assistance of His good Spirit to conduct me wisely as well in the present, as all the other acts of my life, have made and do make my will in the following manner.... I give and bequeath to Elizabeth or Isabeau Rambosson my servant, if she is in my service at the time of my death, the bed she lays on with all its furniture both inward and outward, three strikes of wheat with three good wheat sacks, twelve kitchen table cloths at her choice, thirty livres to buy

herself some necessaries, thirty livres in mourning, ... in all three hundred livres in money, four pairs of sheets for the use of her bed: the aforesaid legacies free from the 10 per cent., and payable a month after my decease. The long good and faithful services of the aforesaid Isabeau ought to procure her moreover civility from my heirs.”

From the sixteenth century also an example may be taken. In the thirteenth year of Charles II., Richard Lumley Knight Lord Viscount Lumley writes: “I desire with all the earnestness I can that my heir will put my house at Stansted in repair, if I shall not do it before my death, and to make it his seat. And I hereby recommend such as have been my ancient officers and servants to my house as persons fit for his service, having found them faithful to me, and they as best acquainted with the estate are best able for the managery thereof: and principally ... Robert Carter, of whose fidelity and affection to me and mine I have had more than ordinary experience.” An Adam, evidently, of the old school!

There is a phrase which is perhaps something of a stock phrase in wills, but shows that the servant in the seventeenth century was more than a chattel. It occurs, for instance, in the will of John Donne—his real will, not that fantastic one he made in verse. He made it “in the fear of God, whose mercy I humbly beg and constantly rely upon in Christ Jesus, and in perfect love and charity with all the world, whose pardon I ask from the lowest of my servants to the highest of my superiors.” His will reveals that tender beauty which often appears in these documents. Some of its legacies and provisions are quoted by Izaak Walton, who, however, omits the most touching of all, the interest of £500 “for the maintenance of my dearly beloved mother, whom it hath pleased God after a plentiful fortune in her former times to bring in decay in her very old age.” But this is a digression.

Nancy Greensill, widow, of Brewood, Staffs., in her will dated January 4, 1786, remembered her servant, but not in a spirit so generous. She begs her mother Susannah will accept her cowslip wine as a small token of affection; she gives to her brother-in-law Francis Greensill her plain dressing-table with the smallest swing looking-glass and her preserves of all kinds, and to his wife Fanny all her best shoes “as I think they will best fit her.” She begs her sister-in-law Elizabeth “will accept my pink and black striped silk gown, one of my best worked aprons and my ear-rings of all kinds.” But to her servant Sarah Williams she gives “my old wearing

apparel, my worst pair of stays, my old brown cotton gown, my black stuff gown, my light striped chintz gown, my black quilted petticoat, old green petticoat, my bed gowns, my worst mourning cap, three plain muslin handkerchiefs, my common shoes, some thread stockings and my black bonnet.” And Mary Myddelton, who died in 1789, good as it was of her to remember her washerwoman at all, seems to spoil the gift to her of £2 by adding “with the worst of my things that my executrix may think proper to give.” Still, it is worth noticing that even a daughter comes in for a similar gift. Sarah Morgan, of Glamorgan, in 1802 desires her executor to give “all the bed linen and table linen to my daughter Kate Williams; they are not worth sending to London, so old and very bad.”

Such gifts seem to have been in the air, if the expression may be condoned. Among the village characters with their little days and doings in John Galt’s “Annals of the Parish,” is a “Miss Sabrina,” who took up the school during the reign of the minister, the Rev. Mr. Balwhidder, and, during the same pastorate, died (1800). Mr. Balwhidder writes the account, the annals of the parish where he lived and worked; and though a legacy might not be wholly unexpected, the form of it certainly was surprising. “Miss Sabrina, who was always an oddity and aping grandeur, it was found had made a will, leaving her gatherings to her favourites, with all regular formality. To one she bequeathed a gown, to another this, and a third that, and to me a pair of black silk stockings. I was amazed when I heard this but judge what I felt, when a pair of old marrowless stockings, darned in the heel, and not whole enough in the legs to make a pair of mittens to Mrs. Balwhidder, were delivered to me by her executor, Mr. Caption, the lawyer.” Really, we can hardly believe it, even after the instances quoted.

But let this chapter close with the account of Sir Roger de Coverley’s will as told by Edward Biscuit, his faithful butler, in the pages of the old *Spectator*. “It being a very cold day when he made his will, he left for mourning to every man in the parish a great frize coat, and to every woman a black riding-hood. It was a most moving sight to see him take leave of his poor servants, commending us all for our fidelity, whilst we were not able to speak a word for weeping. As we most of us are grown grey-headed in our dear master’s service, he has left us pensions and legacies, which we may live very comfortably upon the remaining part of our days.”

CHAPTER XIII

ANIMALS AND PETS

“William de Coningsby
Came out of Brittany,
With his wife Tiffany
And his maid Manfas
And his dog Hardigras.”

A testator who spends careful thought upon his servants may not unnaturally have a concern for the welfare of his animals and pets. When Boswell notes Dr. Johnson’s “uncommon kindness to his servants,” he proceeds immediately to speak of his fondness for animals under his protection. “I never shall forget the indulgence with which he treated Hodge, his cat; for whom he himself used to go out and buy oysters lest the servants, having that trouble, should take a dislike to the poor creature.”

Of this, Sir Humphry Morice is an excellent and a quaint example. Besides the care shown for his servants, he thus provides for his animals at home. “Nice. 10 October, 1728. Dear Sir, The trust I have troubled you with in my will is this: you and Mr. Claxton, my other trustee, ... are to receive £600 a year from my estates in Devon and Cornwall to pay for the maintenance of the horses and dogs I leave behind me, and for the expense of servants to look after them, besides Will Bishop the groom. He is, I am persuaded, very honest and will not let bills be brought in for any oats hay straw or tares more than have really been had. As the horses die off the overplus of monies expended on their account will increase, and it is to be paid to Mrs. Luther, whom I have made my heir. Was she not circumstanced as she is I should never have thought of taking this precaution as I have an implicit confidence in her. She indeed desired annuities might be left to all the animals in my will, but I thought it better to make my intention known to you by a private letter as their being mentioned in my will would perhaps be ridiculed after my death, and though I should be ignorant of it and of

course not care about it, yet the friends I leave behind me might not like to hear it.... I hope the trust will not be a troublesome one to you except just at first. Pray excuse it. When you receive this I shall be no more, but at the time of writing it am, my dear Sir, most sincerely yours—H. Morice.”

Other testators have no hesitation in embodying their humanitarian or eccentric desires in the formal texture of a will. In 1828 a testator named Garland bequeathed “to my monkey, my dear and amusing Jacko, the sum of £10 sterling per annum, to be employed for his sole and exclusive use and benefit; to my faithful dog Shock, and my well-beloved cat Tibb, a pension of £5 sterling; and I desire that, in case of the death of either of the three, the lapsed pension shall pass to the other two, between whom it is to be equally divided. On the death of all three the sum appropriated to this purpose shall become the property of my daughter Gertrude, to whom I give this preference among my children, because of the large family she has and the difficulty she finds in bringing them up.”

Similar provisions are very common to-day. Gustav Saleman Oppert, professor of Indian tongues, left 150 *Pfennige* a day for the maintenance of his cats Lottie and Peter. Dr. Bell Taylor, a Nottingham oculist, directed his animals to be kept in comfort. They included four horses, two of which were named Soldier Boy and Dancing Doll, an Aberdeen terrier named Billie, a Persian cat called Fluff, and some fowls. In the sixteenth century names were given to cattle as now they are given to horses or household pets, and such names may profitably be compared with modern equivalents. Richard Bayden, of Kent (1539), left cattle called Ros, Thurst, Coppe, Pryme, Mowse, Calver, Skulle, Gentyll, Bren, and Swallowe; surely a quaint and sweet decade of names. Alblake, Brodehead, Byrkell, Defte, Dowglas, Flowrill, Gallande, Gareland, Grenehorne, Lowley, Lyllye, Marrigold, Mother Like, Scubeld, Setter, Sperehorne, Spinkeld, Taggeld, and Toppin are names of cattle found in Yorkshire wills.

One of the conditions on which Richard is to inherit Timothy Dudgeon’s estate in Shaw’s drama, “The Devil’s Disciple,” is, “that he shall be a good friend to my old horse Jim.” “James shall live in clover,” says the compliant legatee. Addison’s Sir Roger de Coverley “bequeathed the fine white gelding, that he used to ride a-hunting upon, to his chaplain, because he thought he would be kind to him.” Recently a solicitor directed that his wife should on no account dispose of his old pony Kruger, his mares Victoria

and Jenny, or his dogs Major, Bell, and Pharo, but when she should have no further use for them they should be painlessly destroyed; and a lady left £1 a week for the maintenance of her fox-terrier Rosie and her cockatoo. Another recent bequest of a similar nature was £20 a year for the care and keep of each cat. The testatrix begged her executors to see that her pets were properly cared for, and directed that her horses should be provided for or mercifully destroyed.

“I do not want her to be kept alive and miss my loving care,” said a testatrix recently of a pet schipperke named Susie, and desired, therefore, that she should be painlessly and expeditiously destroyed, not sent to a dog’s home and put in a lethal chamber to be “frightened by a lot of strangers.” This will was disputed in the court but its validity upheld. Another testatrix directed that as soon as possible after her death her pet cats Tiger and Darkey, her dog Nip, and her horse Boy, should be humanely put to death by a veterinary surgeon in the presence of her coachman, to whom she left the carcass of the horse and £150. An eccentric testator often shows his eccentricity in more than one provision of his will. A wealthy member of a Grantham firm directed that his remains should be buried as quietly as possible between those of his two brothers; that no females should attend his funeral, stating that he made this provision to prevent unnecessary pain to his wife; and that his old shooting pony Tommy should be shot within fourteen days of his death and buried with its skin on, unless his son should particularly desire to have the skin.

In old days, perhaps, testators were less unwilling for their animals to pass to others. Ralph Bigod, of Seaton (1545), gives “to my nawnte Warrayn the graie horse whiche I had of her, if he goo streght, and if he goo not streyghte, then she to have the white amblinge mare whiche I had of Maister Baites.” Thomas Brigham (1542) bequeaths his “great hawke” to his brother-in-law; and John FitzThomas, of Bilton Park (1541), “one cople of houndes and their lyomes [leashes], and one black begill and his lyome and his coller” to “my lorde of Combrelande.”

John Coward, of Westpennard, Somerset, whose will is dated the 9th of October of the 32nd year of Queen Elizabeth, gives therein to his brother Thomas “my greate clocke nowe in my house goynge. To William Watkynnes my little clocke ... nowe to be emended.” In a codicil, dated the 9th of January of the 34th year of Elizabeth, he gives to Mary Watkynnes

“my best baye amblinge mare.” To his son Thomas Coward, “my best geldinge yf he be not taken for a heryott. And unto Edward Coward my sonne the other geldinge. Yf any of theise geldinges be taken for an heryot, then my will and intent is that by my overseers a choice be made of the fittest and best colte I have to make a geldinge when they ar in theire pryme at sommer. I give allso to William Wilkynnes, gentleman, (choice being first made for my sonne) one other colte to make hym a geldinge at the pryme tyme in sommer, when they ar best in shewe. Item. I give to Richard Siote, my guide, a good heiffer yerelinge, a fustian dublett, my best white frise jerkin, a payer of breches parte of the velvett being worne awaye with my sworde, and a payer of russett stockinges. Item. I give unto Elizabeth Kitchen the cloathe which she hathe in keepinge to make me a shirte.”

The details in these wills are so clear that one seems almost to be present in the village when some local figure passes away. “In the name of God, Amen. The seconde day of December in the yere of our Lorde God a thousande fyve hundred and nynetye ... I Johan Macham, of the parish of Corffe Mullen in the countie of Dorset, wydowe, of good and perfect mynde and remembrance, (God be thanked,) do ordayne constitute and make this my last will and testament in manner and forme following ... In primis, I give and bequeath unto the parish church of Shapwicke five shillinges of lawfull money. Item. I give unto the poore people of Corffe Mullen a sacke of wheate and a sacke of barley, halfe a bushell a peece as farre as yt will goe. .. Item. I give unto John Sampson halfe a bushell of wheate. Item. I give unto Mary Frampton, my kynneswoman, my best cassocke and my best petticoate. Item. I give Mrs. Phillipps a cowe. Item. I give and bequeath unto Mr. Thomas Phillipps a weather sheepe. Item. I give unto Elizabeth Willis the daughter of Thomas Willis deceased a gould ringe. Item. I give and bequeath unto Elizabeth Lambe, the wife of Phillippe Lambe, all suche goodes and stuffe as in my chamber that I now lye on whatsoever that there shalbe, and also a worsted kirtle with silke bodyes.”

Bequests of animals for religious or kindred purposes were of commonest occurrence, and sound very strangely in modern ears. Richard Browne, of Kent, desired “to be buried in the church of Cowlyng in the mydyll alley wher for I bequeth to the church a cow to be dryvyn to church with me at my beryall.” (1530.) John Olney, of Weston, bequeathed in 1420 his “body to be beryed yn the chapele off our Lady yn the chyrch off seynt

Nicholas off Weston, and my beste best [beast] in the name off principale” (offering). Custans Potkyn made her will in 1473, “hoole and fresch,. .. in this maner. First I bequeath my sowle to Almyghty God, to oure blessed Lady, and to all the Holy Company of hevyn; my body to be beryed in Chalke Chirche. Also y bequethe to the hy auter viii d. Also to the Rode lyght a Cowe with v Ewes. Also to oure Lady of Pete’ iii Ewes. Also to the lyght of Seynt John Baptyste iiii Ewes. Also to a Torche vi s. viii d. Also to Alson Potkyn iiii quarter barly; Also a Cowe with iiii Shepe, iiii peyre shets parte of the best, with a bord cloth of diapur, another of playne, iii Towels of diapur with ii keverletts, iii blanketts, a mattras, a bolster, iiii pelewes, vi Candelstikes. ..” Simond Gaunt, of the parish of St. Margaret at Cliffe, in 1514, made request “that Richard Brown go to the Holy Blood of Hayles, and he to have a mare for his labour and my best gown, or else six and eightpence with the mare.”

Evidently in pre-Reformation days the animals of an establishment were highly considered. And so they continued to be, though they were not put to the same pious uses. Bartholomew Clarke, who died in 1590, wrote in a codicil: “If my wife die during the minority of my children, then Mr. Doctor Hone and my cousin Good to take the use of my house at Clapham, of the gardens, orchards, fishponds, and twenty acres of the land in the east fields worth £50 a year and better, to bring up my children by a schoolmaster in the house, unless it shall please the good Lady Buckhurst to take my daughter into her virtuous tuition; and for a poor remembrance I give unto the said virtuous Lady my best horse as the best thing I have in this world, and mine honourable Lord to whom I have been ever bound my cabinet of cypress which I had out of Germany.”

Lastly, it may be pardonable to quote in full the will of one Robert Tubbe, on its own merits, though the bequest of a two-year-old ewe, which brings it within the scope of this chapter, is but an incident in the whole.

“In the name of God, Amen. On the twelfth day of December anno Christi a thousand five hundred and ninety one Robert Tubbe, of the parish of St. Niot in the county of Cornwall, gentleman, languishing in extremity, and not able through the force of death assaulting him to commit his testament and last will into writing, did express his last will in manner following. First, I Richard Tubbe, feeling myself extremely taken with sickness, and the same continually growing more forcibly upon me, do

express and declare my last will in this manner. First, I commend my soul into the hands of Almighty God my Creator steadfastly hoping through the merits of His Son Christ Jesus my Saviour to rest among the blessed, and my body I leave to Christian burial. And for the diligent attendance of all my servants about me in this sudden time of my sickness, I do give and bequeath unto every one of them a ewe hogget. All the rest of my goods and chattels I give and bequeath unto Joan my wife whom I make and ordain sole executrix of this my will, of intent to see the same performed, and my children to be brought up in the fear and knowledge of God.”

CHAPTER XIV

THE WAY OF ALL FLESH

“Omnes Eodem Cogimur.”

HORACE.

To be apprised of the approach of death, to have the leisure quietly to retire, to make his will, and to retreat in peace, was the good fortune of the famous Bill Blinder. “This here lantern, mum,” said Mr. Weller, handing it to the housekeeper, “vunce belonged to the celebrated Bill Blinder as is now at grass, as all on us vill be in our turns. Bill, mum, was the hostler as had charge o’ them two vell-known piebald leaders that run in the Bristol fast coach, and would never go to no other tune but a sutherly vind and a cloudy sky, which was consekvently played incessant, by the guard, wenever they wos on duty. He wos took wery bad one arternoon, arter having been off his feed, and wery shaky on his legs for some weeks; and he says to his mate, ‘Matey,’ he says, ‘I think I’m a-goin’ the wrong side o’ the post, and that my foot’s wery near the bucket. Don’t say I ain’t,’ he says, ‘for I know I am, and don’t let me be interrupted,’ he says, ‘for I’ve saved a little money, and I’m a-goin’ into the stable to make my last will and testymint.’ ‘I’ll take care as nobody interrupts,’ says his mate, ‘but you on’y hold up your head, and shake your ears a bit, and you’re good for twenty years to come.’ Bill Blinder makes him no answer, but he goes away into the stable, and there he soon arterwards lays himself down a’tween the two piebalds and dies—previously a writin’ outside the corn-chest, ‘This is the last vill and testymint of Villiam Blinder.’ They wos nat’rally wery much amazed at this, and arter lookin’ among the litter, and up in the loft, and vere not, they opens the corn-chest, and finds that he’d been and chalked his vill inside the lid, so the lid was obligated to be took off the hinges, and sent up to Doctors’ Commons to be proved, and under that ere wery instrument this here lantern was passed to Tony Veller; vich circumstarne mum, gives it a wally in my eyes, and makes me rekvest, if you will be so kind, as to take partickler care on it.”

Dean Cheyney, it will be remembered, made an addendum to his will, "Now about to go to London, in case I never return." It was a natural precaution, but the Dean, as has been noticed, was haunted by the sense of his mortality. More natural was it to make a will when about to go to the wars. The earliest form of Roman will was, in fact, that made *in procinctu* or on the eve of battle. English wills have frequently been made on the eve of an engagement or a war. So Ralph Gascoigne, of Wheldale (1522), makes his will "intending to go to the King's wars when it shall please his grace," and Walter Paslew, of Riddlesden "intending by the grace of God, according to the King's commandment, by his letters to me directed shortly to take my journey toward the Scots for the defence of the realm of England." Captain James Ableson (1665) declares his "true intent ... in case it should please God he should be slain," and James Rookes (1665) "being a single man and likely to go through a deep engagement very suddenly, knowing not how it will please God to deal with me." So Captain Crawley, at a critical moment in "Vanity Fair," busies himself with his will.

Of peculiar interest is the will of Lieutenant-Colonel Frederick Thomas, made on the eve of a duel: "London, 3rd September, 1783. I am now called upon, and, by the rules of what is called honour, forced into a personal interview of the most serious kind with Colonel Cosmo Gordon: God only can know the event, and into His hands I commit myself, conscious only of having done my duty. I therefore declare this to be my last will and testament, and do hereby revoke all former wills.... In the first place I commit my soul to Almighty God, in hopes of His mercy and pardon for the irreligious step I now (in compliance with the unwarrantable customs of a wicked world) feel myself under the necessity of taking." The will was proved eight days later. Lord Viscount Falkland, on the other hand, made his will when mortally wounded after a duel at Chalk Farm in 1809.

One of the most strange and beautiful wills in the pages of romance is that of Cornelius Van Baerle, hero of "The Black Tulip." There wants barely an hour before he is to be led to execution, and Rosa, the jailer's daughter, is with him in the cell. "On this day, the 23rd of August, 1672, being about to render, although innocent, my soul to God on the scaffold, I bequeath to Rosa Gryphus the only worldly goods which have remained to me of all that I have possessed in this world, the rest having been confiscated; I bequeath, I say, to Rosa Gryphus three bulbs, which I am convinced must

produce, in the next May, the Grand Black Tulip, for which a prize of a hundred thousand guilders has been offered by the Haarlem Society, requesting that she may be paid the same sum in my stead, as my sole heiress, under the only condition of her marrying a respectable young man of about my age, who loves her, and whom she loves, and of her giving the grand black tulip, which will constitute a new species, the name of Rosa Barlœensis, that is to say, her name and mine combined.

“So may God grant me mercy; and to her health and long life.”

But lovers of romance remember how the prisoner lived to fulfil the conditions of his own will, and himself to marry his well-loved legatee.

Wills are frequently made before an operation. A Birmingham doctor recently opened his will thus: “This is the last will and testament of me Alexander Bottle ... being about to undergo a surgical operation.” Miss Ellen Morrison, who died in 1910, seventy-five years of age, had made no will when illness seized her and an operation became imperative. All through the night before the operation the disposal of three millions of money was her care. But we are trespassing on a subject which has already been illustrated.

The will of Dirk Jager, written in German, adduces in addition to the prospect of a journey some general considerations. It is dated March 2, 1769. “In the Name of the most holy and glorious Trinity, Amen. Whereas daily experience sufficiently sheweth that all men are subject to temporal death, and thus also I who was born a mortal man in this world being of nothing more certain than the expectation of death of which the hour is not revealed to any, but every man ought to be continually mindful of the time when Almighty God should call him out of the world, I therefore, intending to travel from this place St. Petersburg considering the various accidents that may happen and reflecting seriously that all men are as nothing, being in health and of sound mind, of my own free will without any compulsion and deliberately and to avoid all disputes after my death, which is in the hands of the Almighty, have made this my present testament of my last will for the disposing of the worldly goods which God has graciously granted to me.”

Such general prefaces have almost entirely disappeared from modern wills, but they were formerly a notable feature. It might be imagined that

some justification was needed if a man intended to make his will. They are often beautiful, and sometimes quaint. Their primitive form is simple. Henry Birchmore, who died in 1683, makes his will “considering the frailty of this transitory life that there is nothing more certain than that we must die and nothing more uncertain than the time and hour when.” John Hall in 1739 begins thus: “I John Hall, now mariner belonging to his Majesty’s ship *Princess Amelia* riding at Portsmouth, Captain John Hemington commander, and not knowing how it may please God to deal with me on the seas or land, but considering the uncertainty of this present transitory life, do make and declare these presents to contain my last will and testament in manner and form following; that is to say, first and principally I commend my soul unto the hands of Almighty God hoping to be saved through the merit death passion and resurrection of Jesus Christ my only Saviour, and my body to the earth or sea as it shall please God.” And Margaret Greenaway (March 19, 1630) gives as her justification “being weak in body, but in perfect mind and memory, laud and praise be to Almighty God, and knowing for certain that I must die in a time uncertain and unknown, and that the commandment of the Lord unto the king of Judæa was to put his house in order is a mandate to me and to all people in general: therefore for avoiding and prevention of all strife and dissension that may hereafter in any wise arise for touching or concerning anything that is now mine I think it my duty while I do enjoy the faculties of my soul to dispose of those things that the Lord and giver of all things hath been pleased to lend unto me.”

Of peculiar interest are the wills, written in French and recorded in the original language, of refugees who escaped from France because of their religion and formed a colony at Canterbury. In the crypt of the Cathedral services are still held in French each Sunday. These wills, with a pathos all their own, follow the common custom of such prefaces. “Au Nom de Dieu, Amen. Moy Marie Michée, veuve de défunct Jean Fouquet de la Cité de Canterbury, réfugiée pour la religion réformée, considerant en moy mesme qu’il n’y a rien de plus certain que la mort ny rien de plus incertain que l’heure dicelle ... ay faict mon testament.” (Dated September 13, 1727, and proved on the 21st.) The following was dated in June, 1720, and proved in December, 1722. “Au Nom de Dieu, Amen. Connoissez que par devant moi Salaman Gilles, greffier de la congregation des Wallons qui font leur demeure en la cité de Canterbury, et notaire public pour les dits Wallons et

pour tous autres estrangers, établi à cette fin et juré par devant messieurs le mayre et les juges de paix de laditte cité de Canterbury en la province de Kent ... fut présent en sa personne honnête homme Isaac Magnié lequel ... a déclaré vouloir faire son testament et établir sa dernière volonté en la manière qui suit.... Je Isaac Magnié, demeurant in Northlane sur la parroisse de Westgate, estant par la grace de Dieu dans mon aage déjà avancée sain de corps et d'esprit, mais estant bien persuadé que la mort est ordonnée a tous hommes et que l'on ne scait ny l'heure ny le moment que l'on mourra, et voulant laisser ma famille en paix et en concorde ensemble autant qu'il m'est possible, ay résolu de faire mon testament en la manière suivante."

These are all simple cases: but preambles far more elaborate are frequently found. Thomas Penistone (dated August 20, and proved September 5, 1601), after the fervent introduction which has been quoted, thus continues: "Sithence nothing in this world is more certain to man than death, nor anything more uncertain than the time of death, after due consideration of the frailty of this fleeting life even in the youngest and strongest persons, and that by the dying intestate of divers upon vain hope of longer life great discord, yea utter ruin, befalleth their children and posterities, in that in their life time no distribution is made of their substance amongst their posterity, but that the same is left to such as by force or deceit can obtain the same, and considering in the time of sickness oftentimes a man's mind, which then ought only to be conversant in divine meditation, is so grieved with the pang of his disease that he is disable (how willing soever) in any good sort to remember and provide for wife children and friends according to his ability: upon these motives I Thomas Penistone, of Saint Margaret's near the City of Rochester, in the County of Kent, Esquire, aged three and thirty years or thereabout, being in perfect mind and memory, (thanks be given to Almighty God therefor,) do ordain and make this my last will and testament in manner and form following."

From the same year one other example may be given. "In the Name of God, Amen. Forasmuch as the state of man hath no perpetual dwelling within the carnal body, but is separable from it at the will and pleasure of Almighty God at His time appointed, which time is always uncertain, requisite expedient and most necessary it is that every Christian man prepare and make himself ready at all times to leave the same, so that whensoever he shall be called for he be not found sleeping and unprepared:

therefore the ninth day of August, A.D. 1601, and in the three and fortieth year of the reign of our Sovereign Lady Elizabeth, by the grace of God Queen of England France and Ireland, Defender of the Faith, I Nicholas Scott, citizen and grocer of London, being of perfect mind and memory, laud and praise be therefore given to Almighty God, and intending by His grace to prepare and make myself ready to go forward in the universal journey of all flesh, do make and declare this my last will and testament concerning the disposition of all and singular my goods chattels lands tenements and hereditaments whatsoever.”

Upon this basis the changes are rung in will after will, and not the least curious and elaborate pages of literature may be discovered in this mode.

CHAPTER XV

BURIALS AND FUNERALS

“It is a common use to entertain
The knowledge of a great man by his train:
How great’s the *dead man* then? There’s none that be
So backed with troops of *followers* as he.”

QUARLES.

There is a tale told in Wales of a certain Sion Kent, who agreed with the Devil to surrender to him body and soul whether he were buried in or out of the Church. But, directing that his body should be laid beneath the church wall, he evaded the compact. It is not often that funeral directions have such eternal issues hanging upon them, but frequently in wills they are given due or elaborate consideration. “True it is,” says Fuller, “bodies flung in a bog will not stick there at the day of judgment; cast into a wood, will find out the way; thrown into a dungeon, will have free egress; left on the highway, are still in the ready road to the resurrection. Yet seeing they are the tabernacles of the soul, yea, the temples of the Holy Ghost, the Jews justly began, the Christians commendably continue, the custom of their solemn interment.”

Directions for the disposal of the body, and for the ceremony that shall attend it, are of outstanding interest both for historical and psychological reasons. As one peruses them there rise in the mind innumerable thoughts and fancies of sad or humorous import. Every phase of human nature is illustrated from pompous pride to lowliest humility, from pious reverence to vulgar unconventionality, from love of lamentation and display to hatred of mourning and show. Between the hours of death and of burial seem to cluster many of man’s most quaint ideas; here lies a harvest-ground for the student, and in the records of wills rich treasures may be discovered.

Perhaps few scenes of pageantry will live in the memory more than the funeral procession of Henry V., at Fulham, with its multitudes of lights and

figures solemnly moving through the dusk. Such a reconstruction of the past, with its Catholic rites and ritual, its appeal to religious emotion, illustrates the picturesque scenes and ceremonies that lie behind the words of a will. Sometimes these directions are given at great length and with lavish elaboration. But not all can command magnificence in death, and the will of Henry VII.'s tailor may be quoted as typical of the common sort.

“In the name of God, Amen. The IIIIth day of the month of March, the year of our Lord God 1503, and the XIXth year of the reign of King Henry VIIth, I George Lovekyn, citizen of London, and tailor to our said sovereign lord the King, being whole of mind and in good memory, thanked be Almighty Jesu, make ordain and dispose this my present testament and last will in manner and form ensuing, that is to wit: First I bequeath and commend my soul to Almighty God my Maker and Saviour and to His blessed Mother, our Lady Saint Mary the Virgin, and to Saint George the holy martyr, and to all the holy company of heaven, and my body to be buried in the parish Church of St. Mary Wolnoth in Lombard Street of London afore the font there under the chapel of St. George by me there late made, that is to say in or by the burying place of Jane my first wife which lieth there buried, on whom Jesu have mercy. And I will that I have at my funeral XVI torches burning to be borne and holden by poor men to bring me to my burying place. And I will and desire if it conveniently may be that the four orders of friars mendicant of London shall accompany my body to the said burying place....”

It is said that St. Swithun, when he died in 862, on his death-bed ordered his monks to inter him not in a stately shrine, but in a “mean place outside the door, where the foot of the passer-by might tread, and the rain water his grave.” To be beneath the feet of priest or worshipper was not an uncommon wish, and probably, in many cases at least, was a desire for remembrance as much as, or more than, a symbol of humility. Thus Gilbert Carleton, Vicar of Farningham in 1503, wishes “to be buried in the Parish Church of Farningham in one of two places as can be thought most convenient by my friends, either before the high altar in the chancel there, so that my feet may be under the priest’s feet standing at mass, or else under the step coming in at the Church door, so that every creature coming in at the same door may tread upon my burial.” Similarly Richard-sans-Peur, Duke of Normandy: “Je veulx estre enseveli devant l’huys de l’église, afin

d'estre conculqué de tous les entrans dans l'église." Another favourite place is that chosen by Agnes Spicer (1410): "My body to be buried in the Church of St. Austin's under the bell ropes." So Ludovic Stuart, Lord of Aubigny (1665), desired his "corpse to be buried and interred without opening it in the Church of the Reverend Fathers the Carthusians in this City of Paris just under the cord wherewith they ring the bell for the divine service, without any pomp, ceremonies, and hanging up of mourning tapestries in the Church; and that upon his grave there be laid a stone of just proportion, whereon they will write his name and quality of Great Almoner without adding anything else."

Opinion hostile to elaborate funerals or tombs is frequently found, in Catholic as well as in Protestant wills. John Coraunt, in 1403, makes provision for his burial thus: "In the Name of God, Amen. In the XIXth day in the month of April in the year of our Lord 1403, I John Coraunt, in my good mind and whole, make my testament in this manner. First I bequeath my soul to Almighty God, and my body to the earth to be buried where the will is of my two sons William and John. Also my will is to have about me at my burying no more wax than one taper at the head and another at the feet, at the ordinance of my aforesaid sons. Also I bequeath VI yards of black russet cloth lying on me my burying time to be given to poor needy folk, and all other doings about my interment and mind I will it be done at once simply and without pride, within two days after my dying by the ordinance of my sons." Richard Broke, of Greenwich (1522), desired "no pomp of torches nor great ringing of bells, but that there be bread and ale at the dirige, to make the neighbours and poor people for to drink."

Bartholomew Reed, Knight, alderman, citizen, and goldsmith of the City of London, in the twenty-first year of King Henry VII., gives directions that seem elaborate, but specially forbids excessive commemoration of his death. He gives his body "to be buried within the cloister of the Charterhouse of London, *i.e.* in the side of the cloister there between two arches or moynells of stone directly against the door leading or opening out of the choir there into the said cloister, so as I may be the better in remembrance of the holy brethren of the place there in their prayers.... And I will that mine executors do make a tomb of stone of the value and cost of XX l, with the image of the Trinity and of a dead corpse kneeling thereunto.... I will that mine executors do ordain XX comely

torches of wax to burn at the time of mine exequies, and to be holden about my corpse by poor men. And on that four comely tapers of wax to be holden by four poor men in likewise ... I will that in nowise mine executors keep any solemn month's mind in such manner as oftentimes it is used, but that which shall be done for me, I will it be done at my burying, and that without any hault or sumptuous manner of charge to be done."

Sir John Monson, Knight of the Bath and Baronet (proved January 19, 1683, S.A.), desired a "burial only not a funeral," a desire elsewhere echoed with much variety of phrase and vigour. He himself, in the same spirit, gives these explicit directions: "If I shall die here at Broxborne before I go to Burton, (which I have reason to expect, my age and infirmities are so great,) my will is that my body be directly carried to South Carlton there to be buried according to the established form of our Church, with a sermon for the benefit of the living, (if it be thought fit), and that I may avoid all ostentation and respect decency only. My further desire is that my corpse may be carried away from my house at Broxborne where I now am about daylight in some morning, without troubling any friends to accompany my hearse, and that there may be only my own coach and one more to go with it from hence to Carlton, where I desire to be laid in peace with many of my relations."

Thomas Hobbes, of Gray's Inn (dated 1631), wished "to be interred in the parish Church of Streatham ... utterly forbidding at my funeral any solemnities of heraldry, any feasting or banqueting, any multitude of formal mourning, only willing donment black for my child and family, my nephews and niece Laurence and my executors, and a servant for each of them, and one to my cousin Thomas Brooke. And that the company present at my funeral shall have only bread and wine for their refreshment."

Bread and wine, or some equivalent, are commonly provided for friends or for the poor. Thomas Lightfoot (1559) ordered every person at the day of his burial to have one farthing loaf; John Sporett (1559), that his neighbours should have bread and ale; John Thorpe (1571), that "all honest folks that goes to the church with me have their dinners." Richard Plumptre, of York (1544), went further, giving to William Plumptre and his children two hogs-heads of wine "to make merry withal." Elizabeth Stow (1568), whose last unhappy hours have been narrated, bequeathed ten shillings "for my children and friends to drink withal after my burial." And a recent Vicar of

St. Mary, Ilford, directed that his executors and other mourners were to be entertained, “complete and thorough hospitality” extended to them, and their travelling expenses paid.

Bishop Sanderson has been quoted for a loving tribute to his wife; his will gives as good an instance of the shrinking from pompous funerals as could be found in the seventeenth century. “As for my corruptible body, I bequeath it to the earth whence it was taken, to be decently buried in the Parish Church of Buckden, towards the upper end of the Chancel, upon the second, or at the furthest the third day after my decease; and that with as little noise, pomp and charge as may be, without the invitation of any person how near soever related unto me, other than the inhabitants of Buckden; without the unnecessary expense of escutcheon, gloves, ribbon, etc., and without any blacks to be hung anywhere in or about the house or Church, other than a pulpit cloth, a hearse-cloth, and a mourning gown for the preacher; whereof the former, after my body shall be interred, to be given to the preacher of the funeral sermon, and the latter to the Curate of the Parish for the time being. And my will further is that the funeral sermon be preached by my own household Chaplain, containing some wholesome discourse concerning mortality, the resurrection of the dead, and the last judgment; and that he shall have for his pains £5, upon condition that he speak nothing at all concerning my person, either good or ill, other than I myself shall direct; only signifying to the auditory that it was my express will to have it so. And it is my will that no costly monument be erected for my memory, but only a fair flat marble stone to be laid over me.... This manner of burial, although I cannot but foresee it will prove unsatisfactory to sundry my nearest friends and relations, and be apt to be censured by others, as an evidence of my too much parsimony and narrowness of mind, as being altogether unusual, and not according to the mode of these times: yet it is agreeable to the sense of my heart, and I do very much desire my Will may be carefully observed herein, hoping it may become exemplary to some or other: at least, however, testifying at my death—what I have so often and earnestly professed in my lifetime—my utter dislike of the flatteries commonly used in funeral sermons, and of the vast expenses otherwise laid out in funeral solemnities and entertainments, with very little benefit to any; which if bestowed in pious and charitable works, might redound to the public or private benefit of many persons.”

Close upon a hundred years later (August 18, 1760), another Bishop, the Right Rev. Benjamin Lord Bishop of Winchester, in English less chaste but with remarkable similarity of thought, wrote out his desires for his interment. "There is hardly anything more unworthy of a man, or a Christian, than to have a great concern or deliberation about the place and manner of his funeral. I know of but one reason that can justify it, and that is because it may take off all dispute and difference which may arise, and determine it so as that the executors can have no trouble or blame. I once had a fixed design to order my burial at Streatham Church in Surrey, where I passed many agreeable years of my life, in a vault to be built by me which might hold all my nearest and dearest relations. But when I had thus fully resolved, and was going to begin the work in the plainest manner, I found myself totally disappointed; for when I came to enquire of the proper officers of the parish where I had lived long and where I had buried my first wife, I found something true which I did not before think to be so; and that in short it was in vain to enquire about any particular coffin after such a certain number of years have passed from the time of the funeral. I therefore now, without any further thought about what is of so little consequence, order and appoint, solely to take off all uneasiness from my executor, that my burial shall be in the Cathedral Church of Winchester, in as private a manner as decency will permit, in such part or place as the Rev. the Dean and the majority of the Chapter shall allow of, and judge proper, for the making one grave for this purpose only. I desire that no unnecessary trouble may be given to any persons towards their attendance, but that only what has been usual on such occasions may be paid. I desire and hope that neither my executor nor any near relation will attend: nor indeed any person but the Dean and Prebendaries if he or any of that body happen on any other account to be at Winchester at that time, and not otherwise. These may be followed at the funeral by those servants of mine who may attend the corpse from Chelsea.... My will also is, that the inscription I have left, containing only facts relating to myself, may be engraved on a piece of marble, with very little ornament about it, and be fixed to a pillar, the nearest to the grave, without any addition of any character or any word or figure but to fill up the vacancies left."

In a century of melancholy monuments, the century of "The Grave" and "Night Thoughts," the desire for simplicity is frequently expressed: there seems to be a common reaction against pomposity and show. "I desire to be

decently and privately buried in the Churchyard of the parish of Wargrave without any funeral pomp or vain idle expense,” says Simeon Rockall (1789), and Pierce Galliard, of Edmonton and Southampton, “I will and desire that my body may be buried decently and privately without pomp or show and with as little expense as possible, either in the parish Church where I shall die or at Edmonton with my ancestors and family as shall be agreeable to my beloved wife and executrix.” These are but random instances.

But sometimes the tones are raised by appeal to reason or to ridicule. Thus Rev. Obadiah Hughes (1751) says: “I order that my body be conveyed in a decent but not pompous manner, (for pomp and show abate the solemnity of death, and often prevent those serious impressions which a funeral might make upon the minds of attendants and spectators,) to the parish Church of St. Martin Outwich in the City of London, and be there deposited as near as may be to the precious remains of my late dear wife, there to rest and sleep together until the great resurrection day.” And Samuel Gillam, whose will was proved on August 13, 1793, thus breaks out: “Whereas I think it a very great absurdity and the most egregious folly to make the deaths and burials of persons to be an occasion of pomp and show, I do hereby order and desire my funeral may be performed in such manner as may be barely decent, but no more, and that the expense thereof do not exceed including the parochial fees £20, and that William Brent do undertake the same. I give unto the said William Brent as a legacy £10. I verily believe he is an honest man.”

James Clegg (dated April 13, 1781), after giving a sum to Mrs. Tommasa Jackson to employ it in giving a dinner to herself and his most intimate friends, within a month of his death, “sooner or later according as her tears may have subsided,” proceeds: “With regard to my burial my executors shall do as they please: all I recommend is not to be lain under ground alive, I mean that they keep me after my death for two days in some place before burial, paying those for their trouble who may have me in charge—will you do it? It being customary to honour the dead with monuments and pompous tombs, here I intend to interfere, and give orders that for me no greater expense be made than 100 dollars and for an inscription these few words: ‘Here lies James Clegg,’ which to me appears sufficient: every reader may say what more he thinks fit.” But time—

perhaps success—seems somewhat to have relaxed his resolution, for by a codicil dated May 4, 1784, he says: “In case of my decease there shall be called an honourable meeting at which all my countrymen and all the merchants shall be invited, and to my countrymen scarves shall be given, and that a decent tomb shall be made for me at the expense of from two to three hundred dollars, and on the same this inscription shall be written: ‘The monument of James Clegg anno ...’”

“And lastly, to close all,” wrote Gilbert White, of Selborne, “I do desire that I may be buried in the Parish Church of Selborne aforesaid in as plain and private a way as possible, without any pall bearers or parade, and that six honest day-labouring men (respect being had to such as have bred up large families) may bear me to my grave, to whom I appoint the sum of ten shillings each for their trouble.”

Coming to recent days it would be easy to illustrate the desire for simplicity in death, from highest to lowest, but instances may be seen in the papers from day to day. Leopold, King of the Belgians, whose will was dated November 20, 1907, said: “I wish to be buried early in the morning, without any pomp whatsoever. Apart from my nephew Albert and my household, I forbid anyone to follow my remains.” The late Earl of Leicester, when he died the “Father” of the House of Lords, desired that his body “be buried in the churchyard at Holkham, enclosed in a single plain deal coffin only, without any brasses or ornament whatever; and I request my executors not to provide any gloves or hatbands, or to allow any other foolish expenditure at my funeral.”

A late Bishop Suffragan of Shrewsbury directed that he should be buried in the simplest possible manner, in an earthen grave which was to be covered with a low plinth bearing the words, “Not worthy of the least of all the mercies which Thou hast shewed unto Thy servant,” and earnestly entreated that no attempt should be made to raise any public memorial in his honour. Father Tyrrell, in a document dated January 1, 1909, wished nothing to be written on his grave except his name and the statement that he was a Catholic priest, with the addition only of the emblem of the Chalice and the Host.

Less simple in the desire for simplicity were the instructions of a solicitor, who directed that his remains should be cremated and the ashes

scattered in some plantation for restoration to the world which he had “found so delightful”; that his funeral should be conducted in the most unostentatious, private, and, indeed, secret manner, without advertisement or invitations to attend, and that no gravestone should be erected.

At the particular desire of Edward Nokes, a miser of Hornchurch, whose niggardliness was extended to his funeral arrangements, none who followed him to the grave was in mourning, but each follower appeared in striking costume and the undertaker in blue coat and scarlet waistcoat. Such is the lamentable antithesis of a desire which is sometimes expressed, and with which it is easy to sympathise, that no black garments shall be worn. It is a desire which is, perhaps, increasingly common, though in the seventeenth century there are such conspicuous passages as Jeremy Taylor’s protest against undue lamentation and Bacon’s Essay “Of Death.” Sir John Monson (who is referred to on [p. 202](#)) makes it his last request that his wife and relations will not think that a loss to them which will be so great an improvement of his joy and happiness, and not make his crown their cross, but enjoy themselves and those earthly comforts God shall still bless them with in an holy submission and cheerfulness. Perhaps the ideal method in this question, difficult because of prejudice and custom, was attained by Christina Rossetti, who, at her grandmother’s death, was without black clothes, but wrote that she had nevertheless “managed to put on nothing contrary to mourning.”

Recently a testatrix desired her body to be buried in quicklime in an ordinary grave, not a walled grave or a vault, and directed especially that no mourning should be worn and that the funeral service should be as cheerful as possible: another that her children should wear as little black as possible, and not shut themselves up, but go out among friends and to places of amusement. “I am not afraid of them forgetting me, but I want them to be happy.”

“Let me be placed in my coffin,” wrote an artist in Paris, “as quickly as possible after my death, and let nobody outside the household be admitted to my death chamber before I am placed in the coffin. In a word I do not wish anybody to attend through curiosity to see how I look. Let no portrait or photograph be made of my corpse, and let me be buried in the shortest time possible. And do not weep for me. I have lived a life happy enough; the aim of my life was my painting, and I gave all of which I was capable. I

might have lived another twenty years, but should not have progressed any more, so what would have been the good? And how content I should be if no one wears the marks of mourning. I always had a horror of this show, so if you cannot do otherwise, then wear the least of it possible.”

Thought and care for those who are to “have the pleasure of surviving” add here and there pathetic touches. Mary Horne in 1784 wrote an informal will, of which this is the dominant note. “My dear Sister, being very desirous of giving you as little trouble at my death as possible shall make no will, being well assured you’ll strictly observe and comply with this my last request, which is that I may be decently interred according to the enclosed directions.... My desire is that I may be kept as long as possible before I am buried, and to lay as near my dear father and mother in the parish church of Swindon as conveniently to be done, and if not attended with much trouble. I would have no shroud but combed wool: to be carried by six poor men of the town, and to each half a guinea given and a strong pair of gloves: the pall flung over me which belongs to the clerk, and no one invited to the funeral, but a pair of the best kid gloves sent to all in the town who I visited.... To those who have the trouble of laying me out and being in the room with me after I am dead a guinea to each and a good pair of gloves.”

As this was dated September 29, 1784, and proved on October 6th, the good lady must have written it within a day or two or an hour or two of death: it is legitimate to believe that she was as loath to give trouble in her life as after death, and that “all in the town whom she visited” were her mourners.

Mary Horne, it will be noticed, wished to be kept as long as possible before her burial. She does not give a reason, but it was presumably to lessen the risk of premature burial, the possibility of which haunts many minds. Seven years before her death Dr. William Hawes had published his “Address on Premature Death, and Premature Interment,” and still to-day the subject is one of importance, as the Society for the Prevention of Premature Burial can testify. Recently a testator expressed a wish either to be cremated or that his heart should be pierced, as “I feel assured that many persons are buried alive.” Now and then sensational stories appear, as of rappings in a coffin or of the revival of one about to be interred. “All I recommend,” said James Clegg, “is not to be lain under ground alive,” and

what he recommends is often anxiously striven against. Such efforts were made by Ann West (ob. 1803) who once was nearly buried alive, by directing that she should be buried in a coffin without a lid, and that a hole should be left in the brickwork of her vault. It was even said that she bequeathed her fortune to a servant on condition that he should place bread and water on her coffin for a year in case she should revive and need them. But perhaps all was not well at last, for her ghost was said to haunt the neighbourhood.

A similar tale is told of a Manchester lady, a Miss Bexwick or Beswick, who died about the middle of the eighteenth century, and devised an estate to her doctor and others, on condition that the doctor paid her a morning visit for twelve months after her death. To fulfil the conditions it was necessary to embalm her body, and the doctor resided in the house to pay the mummy his daily call.

Horatio Mucklow, of Highbury (ob. July 27, 1816), bequeathed a legacy to Powell the parish clerk, on condition that he would see his head severed from his body previous to burial, and Thomas Trigge, of St. George, Southwark (will dated February 24, 1755, and proved November 25, 1784), directed that before he was shut up in his coffin a surgeon should give him such a wound as would prove immediately fatal were he alive. Such drastic methods are not uncommon to-day. The late Lord Burton wrote: "I desire that before my body be placed in the coffin the spine and spinal marrow of the neck shall be completely severed by a competent surgeon and the heart removed and placed in a separate vessel, to be enclosed in the coffin," and presumably the risk of premature burial was in his mind. "I have a great horror of being buried alive," wrote a lady in her will, "therefore I wish my finger to be cut," and she bequeathed £10 to the doctor performing such service. Another ordered a doctor to "thrust a dagger through my heart three times to make sure I am dead." Better thus than to be buried alive: such a stuffy death, as Yum-Yum says in "The Mikado."

Dorcas Hutchinson, of St. Anne, Soho (will proved June 3, 1761), was content with a less drastic method. "I mean by my desire above written not to be enclosed in any coffin whatever within seven days after my decease; that my corpse be laid upon a bed during that time, and may not be put into any covered coffin until the eighth day. My will is that Edward Havel my present servant may take care that the above request is literally complied

with, and for that purpose may stay in the house till I am buried, and upon his so doing I do bequeath him the sum of £50.”

For such a method there is much to be said, if after apparent death a prolongation of life be desired, but the method is unfortunately not conclusive. “Everybody has heard,” writes John Timbs, “of the lady who was buried, being supposed dead, and who bearing with her to the tomb, on her finger, a ring of rare price, this was the means of her being rescued from her charnel prison-house. A butler in the family of the lady, having his cupidity excited, entered the vault at midnight in order to possess himself of the ring, and in removing it from the finger the body was restored to consciousness and made her way in her grave-clothes to her mansion. She lived many years afterwards before she was finally consigned to the vault.”

On Saturday, October 29, 1808, Elizabeth Emma Thomas was buried at Islington, and on Monday this inscription was raised:—

“In Memory Of
Mrs. Elizabeth Emma Thomas
Who died the 28th October, 1808,
Aged 27 years.

She had no fault save what travellers give the moon:
Her light was lovely, but she died too soon.”

Suspicion was aroused from the rapidity of her burial, the grave opened, and the body removed into the church for inspection. Suspicion seemed justified when a large wire pin was found thrust through her left side and fixed in her heart. But it appeared from the evidence that this was done at her own desire, to prevent the possibility of being buried alive, and the jury returned a verdict accordingly: “Died by the visitation of God.”

But the preceding is a digression on the way to simplicity. With such an expression as “I commit ... my body to the deep or any convenient place, it’s immaterial where,” we reach down to the minimum, and must ascend again. “To them,” says Jeremy Taylor, “it is all one, whether they be carried forth upon a chariot or a wooden bier; whether they rot in the air or on the earth; whether they be devoured by fishes or by worms, by birds or by

sepulchral dogs, by water or by fire, or by delay”; but man is often in nothing so eccentric as in his desires for the disposal of his remains, or in the accompaniments and accoutrements he asks for his obsequies.

The meanings of these desires are not seldom hid, and each may conjecture for himself the motive of the deceased. Thus Thomas Fuller says of Catharine of Aragon: “She was buried in the abbey-church of Peterborough, under a hearse of black say; probably by her own appointment, that she might be plain when dead, who neglected bravery of clothes when living.” A vain woman, on the other hand, desired according to an old Welsh tale to be buried in her ball-dress, and her request was not denied; but her soul was hunted by the spirit-hounds, who pursue the objects of their malice. It is difficult to believe that anything but eccentricity lay behind the wishes of one who was recently buried at Barton-on-Humber, “in his best suit of clothes and brown boots, cane in hand and cap on head, watch in fob with chain attached, and with a few coins in his pockets.”

Again, a woman wishes to be buried in the clothes she shall be wearing at the time of her death, and what might lie behind this desire is suggested by the romance of Mrs. Fitzherbert and George IV. It was in a will that he acknowledged her as his true wife, and the romance was recalled when he commanded the Duke of Wellington to see that he was buried in the clothes which he wore at death, and that nothing should be taken from him. The King, it was discovered, had piously worn a miniature of the woman he had loved, and by his command he secured that the portrait should be buried with him.

John Hyacinth de Magelhaens, buried February 13, 1790, desired that “where the tree fell it might lie.” No doubt some sentiment or tradition would explain many quaint requests. A recent writer spins a little tale to explain a certain sentimental dying injunction “that there should be placed in his hands and buried with him a rosebud which will be found with him whenever or wherever he dies.” The reader of Jules Sandeau’s tale “Un Héritage,” soon discovers the reason for the last injunction in the will of Count Sigismond St. Hildesheim. “Je joins au présent testament un air tyrolien; je désire que cet air soit gravé sur ma tombe et me serve d’építaphe.” On many such desires, however, it is curious to speculate.

Alice Suckling in 1632 bequeathed her body to the earth, dust to dust, therein to be buried in the night. Susan Hornesby, of Horton, in Kent, desired “to be buried in linen, in one of them sheets that was my mother’s ... and my three maiden sisters to bury me, and I desire a small funeral.” (Proved January 16, 1694.) Mary Jacob, spinster, in 1783 desired “a black coffin with white nails and white plate, my body to be wrapped in a piece of flannel, and a crape cap, and what hat bands and gloves be given I desire it should be black.” Sarah Jennings, widow, in the same year makes more elaborate arrangements. “My body I recommend to the earth to be buried in decent Christian burial in manner and form following by my executor, nothing doubting but at the general resurrection I shall receive the same again by the mighty power of God. First I order my coffin to be lined with the lining of my silk petticoat, the coffin to be covered with black cloth with three rows of nails. When the bell tolls the second time two porters to be set at the door with hat bands and gloves, and I further order to be laid by my brother Richard Sutton with a grave stone to cover us both. The under-bearers and pall-bearers to have hat bands and gloves, twenty widows to have one shilling apiece to be paid the day after the burial, and half a guinea for ringing a mourning peal. No bread nor biscuits to be given, but only wine.... And I do further order that I be took down to William Pywell’s house as soon as put in my coffin, from thence to proceed to Church, and I do further order that neither Benjamin Sutton nor William Oldershaw and his wife shall attend my funeral.”

It is strange how minutely these women contemplate their dissolution. Jane Carpenter, spinster, by her will dated April 17, 1789, gave the following directions. “First, I will to be kept a week after my decease before my burial, which I will to be at Oxford in the churchyard next to All Souls College in the parish of St. Mary’s, as near as may be to the chancel window; also I desire that my funeral be in the manner following: a strong coffin covered with black and everything good that is wanting or necessary, a hearse and four horses and a coach and four horses; the minister of the parish and the clerk I give a black silk hatband and gloves each; it is my desire to have nothing white, but everything black.... I will and bequeath to Mr. Richard Brook of Tidington ... smith and farmer £15 15s., and it is my desire that he shall attend my funeral; a letter directed to him at the sign of the Three Pigeons near Thame ... will come safe to hand.”

In the obituary of the *Gentleman's Magazine* for 1788 is this notice: "At his apartments at Chelsea College, in his 95th year, Messenger Mounsey, M.D. For a considerable time he was family physician to the late Earl of Godolphin, and physician to Chelsea College. His character and humour bore a striking resemblance to that of the celebrated Dean Swift. By his will he has directed that his body shall not suffer any funeral ceremony, but undergo dissection; after which the 'remainder of his carcase' (to use his own expression) 'may be put into a hole, or crammed into a box with holes, and thrown into the Thames,' at the pleasure of the surgeon. The surgeon to whom he has assigned this charge is Mr. Forster, of Union-Court, Broad Street. In pursuance of the Doctor's singular will, Mr. Forster has since given a discourse in the theatre of Guy's Hospital to the medical students and a considerable number of intelligent visitors, on the dissection of the body.... Mr. Forster ... vindicated the Doctor from all affectation, vanity, or whim, in having ordered his body for dissection and prohibited all funeral ceremony, stating that whatever of singularity might appear in his will was resolvable merely into a zeal for knowledge, and a desire of benefiting mankind, as he conceived that a dissection of his body would lead to the illustration of much useful truth. He mentioned also the philosophic contempt in which the Doctor held all funeral pomp, and every species of unnecessary form."

Messenger Monsey's will has been quoted in these pages more than once, and is of interest in many ways; but, as proved, it does not contain this strange provision for the disposal of his body after dissection. As to post-mortem examination, Monsey is not unique. Jean de Labadie, that strange and spiritual figure, stated in his last testament that if such an examination of his body should be thought useful to others he willingly allowed it (1674). "Lastly, I testify that I, as I belong to God and owe myself entirely to Him, give myself without reserve into His keeping, and to my brethren and sisters who are together with me members of this Community I give my body, that they may do with it as they think fit, even if they but attend to its simple burial according to our custom. It may be that my body, in which I have suffered great physical pain (which is not uncommon in those who have devoted themselves to the work of the soul and spirit), may be usefully opened and examined, and that some lessons may be drawn from it advantageous to the prolongation of other lives. But as it signifies very little about the body, which returns to dust when the

spirit returns to God, I surrender my soul heartily to my God, giving it back like a drop of water to its source, and rest confident in Him, praying God my origin and ocean, that He will take me into Himself and engulf me eternally in the divine abyss of His Being. I would say more of this if I had strength to go on writing, but this word will suffice. I am united to God and one with the Saints in God; this unison is all, and it is all to me.” And the same Bishop of Winchester who is quoted above said in a codicil: “It is my express desire that my body may be opened so far as to see whether any appearance in it may be of use to my fellow creatures: which I hope Mr. Hawkins will perform and judge of. December 1st, 1759.”

In the will of Florence Nightingale is a clause peculiarly apt for this chapter. “I give my body for dissection or post-mortem examination for the purposes of medical science, and I request that the directions about my funeral given by me to my uncle, the late Samuel Smith, be observed. My original request was that no memorial whatever should mark the place where lies my ‘mortal coil.’ I much desire this, but, should the expression of such wish render invalid my other wishes, I limit myself to the above mentioned directions, praying that my body may be carried to the nearest convenient burial ground, accompanied by not more than two persons, without trappings, and that a simple cross with only my initials, date of birth and of death, mark the spot.”

It is said that in early life Jeremy Bentham determined to leave his body for dissection, and in 1769, at the age of twenty-two, bequeathed it for that purpose: “This my will and general request I make, not out of affectation of singularity, but to the intent and with the desire that mankind may reap some small benefit in and by my decease, having hitherto had small opportunities to contribute thereto while living.” As a matter of fact, directions given by will as to the disposition of the body are invalid, but by the Anatomy Act, 1832, certain interesting provisions are laid down. The executor may permit the body of the deceased to undergo anatomical examination, unless he has expressed his desire in writing, or verbally in the presence of two or more witnesses during the illness whereof he died, that such examination might not be held, or unless the surviving spouse or any relative shall require the body to be interred without examination.

On the other hand, if any person has directed in writing, or verbally as above, that an anatomical examination shall be held, his direction is to be

carried out, unless the surviving spouse or a relative require the body to be interred without such examination.

The desire that there should be placed in the coffin letters written to the testator by his wife before their marriage is intelligible, and the request was made recently in a minister's will. A contemporary record of the death in 1788 of Frances Marchioness Dowager of Tweeddale makes much of such tender provisions. "She lived a great example of prudence and penurious economy, and in her death gave testimony of the goodness of her heart, united with wisdom, in the legacies and orders respecting her own funeral, and her surviving relatives and friends. An instance of conjugal affection, rarely to be found in the life and death of great personages, is more fully evinced by her living 26 years a dowager, ordering her burial with her wedding-ring on her finger, and the letters of her dear Lord to be put into the coffin with her, and to be laid as near as possible to her deceased husband."

Unintelligible, however, to any not initiated into the mysteries of testators' minds are some of these directions or desires:—

"After my decease, I desire that a competent and trustworthy doctor of medicine shall thoroughly satisfy himself that life is absolutely extinct. My carcase is to be cremated, and the residuum thereof deposited in two metal urns, numbered respectively 1 and 2. On the ashes in No. 1 are to be placed a packet, which will be found on my desk, and my miniature portrait scarf-pin, and on the ashes in urn No. 2 a similar packet, which will also be found on my desk, and my miniature portrait finger-ring."

"I direct that I shall be buried in the clothes in which I shall die, whether they be day clothes or night clothes, and after my death my body is not to be washed or in any way whatsoever meddled with, and no funeral service shall be held over my remains anywhere."

Another testator directed that his body should be burnt or cremated, and the ashes placed in a glass or earthenware jar. A porcelain vase was then to be made large enough to contain this jar, and to bear his name and the date

of his death. A vault was to be built of great strength and solidity, to contain at least six vases, a suitable inscription on the exterior. When these operations should be complete, the glass jar was to be placed within the vase, and the lid of the vase put on with a strong cement to exclude the air, the vase then to be deposited in the vault and to remain there for ever.

John Baskerville, who died at Birmingham, 1775, directed that his body should be buried in a conical building, in his own premises, “heretofore used as a mill, which I have lately raised higher and painted, and in a vault which I have prepared for it. This doubtless to many will appear a whim; perhaps it is so, but it is a whim for many years resolved upon, as I have a hearty contempt of all superstition, the farce of a consecrated ground ...” and other ideas, pleasanter to omit and illustrative of the unreasonableness of eighteenth-century reason. His epitaph was to run as follows:—

“Stranger,
Beneath this cone, in unconsecrated ground,
A friend to the liberties of mankind directed
His body to be inurned.
May the example contribute to emancipate
Thy mind
From the idle fears of Superstition
And the wicked Arts of Priesthood.”

John Baskerville endeavours to give at least some idea of the motives underlying his behests. So Major Peter Labelliere, whose mind was said to have been unhinged by hopeless love, by politics and religion, chose for his burial a spot on Box Hill, where about the beginning of the nineteenth century he was interred with his head downwards, in order that as “the world was turned topsy-turvy, he might be right at last.”

In the register of Lymington Church under the year 1736 is the entry: “Samuel Baldwin, Esq. sojourner in this parish, was immersed, without the Needles, *sans cérémonie*, May 20.” The explanation, according to Wm. Hone in his “Table Book,” is that this was done in consequence of the deceased’s earnest wish, to disappoint the intention of his wife, who had repeatedly assured him that, if she survived, she would wreak her revenge by dancing on his grave.

The artist W. P. Firth, like many others in recent times, requested that his body should be cremated, saying that “the duty of the individual to his kind includes providing for such final disposal of his body as shall be least detrimental to those who survive him, and that the modern process of incineration provides the quickest and safest mode of such disposal.”

As unsentimental was the mind of the New York citizen who instructed his executors to have made out of his bones circular buttons of dimensions from one half an inch to one inch in diameter, to have the skin of his body tanned and made into pouches; and to have violin strings made out of such parts as might be suitable, adding: “I hereby give unto my beloved friend James Hayes the buttons, violin-strings and tanned skin made out of my body as aforesaid, the same to be by him distributed according to his discretion to my intimate friends.” The belief, it is said, that in the human body exists useful material which should not be wasted led this testator to give such strange directions: he did not believe in ordinary unhygienic and wasteful modes of burial, and hoped that his example might be followed.

With the will of John Angell, of Stockwell, dated September 21, 1774, we may make an end. He seems to have been a man of ambitious ideas. He made provision for a “College or Society of seven decayed or unprovided for gentlemen,” and had the temerity to name as trustees the Archbishops of Canterbury and of York and the Lord Chancellor, “the great personages whom I have presumed to appoint to this trust,” as he himself says.

The same elaboration marks his funeral arrangements. “I would be interred in the manner following. I would be wrapped in a woollen sheet only. Then without a shroud be put into a leaden coffin, which shall not be soldered down but only screwed. On this coffin shall be a large plain inscription on lead expressing who I am. Then to be put into a black cloth coffin with usual ornaments. Only I would have a plate of copper or brass instead of such as is usually put. Thereon shall be well engraved the family coat of arms properly blazoned and as I now bear, with a full inscription as on the lead in Latin as thus: John the son of John and Caroline *qui consortem habuit carissimam*. I desire to lie open in my chamber so long as I decently may. Afterwards in about a fortnight, or rather above, would be carried to Crowhurst in a hearse with six horses dressed properly with shields and escutcheons, but no other trifling ornaments. My own coach shall follow with one footman behind it and I riding before; and besides two

mourning coaches only with six horses, in one of which I would have go my executors or near friends, in the other my maid servants. I would desire the tenants and neighbours at Crowhurst and in that neighbourhood would meet me at the bottom of Riddlesdown as usual heretofore, and they are to have there gloves and hatbands. And I would desire such of my neighbours in about Stockwell as would show me that regard to ride two by two before me as far as the further end of Croydon, accordingly to have hatbands and gloves. And it is my will and desire that if the College and Chapel which I intend to erect be finished and settled, the gentlemen and the chaplain and minister and the whole choir and the servants of the College attend on foot to the top of Brixton Causeway, singing as they proceed some proper hymn or anthem as shall be appointed on the occasion.”

CHAPTER XVI

WILLS AND GHOSTS

“Things that go Bump in the night.”

“WIDDERSHINS.”

It is not surprising that stories of haunting or of the supernatural should be linked with wills. The perturbation of the dying man, as he utters his last bequest or ponders upon his affairs; the failure to make his wishes known; neglect of his dispositions and desires; non-completion of the will or its loss; concealment of his treasure or hoard: here are the bases or occasions for many a tale of spirit and of ghost.

It is said that fear lest the spirit should not be at rest was the origin of the priest's injunction to the sick to make his will, an injunction which still forms part of the “Visitation of the Sick” in the Book of Common Prayer. “And if he hath not before disposed of his goods, let him then be admonished to make his Will, and to declare his Debts, what he oweth, and what is owing unto him; for the better discharging of his conscience and the quietness of his Executors. But men should often be put in remembrance to take order for the settling of their temporal estates, whilst they are in health.” In other chapters this subject has been touched, and instances have been given of wills made in the hour of death. But when no will is made, no friend is near, can the spirit of the dying or of the dead indicate his last will? There are tales to this effect.

“During the cholera epidemic in the North of England, about 1867-8, I remember an incident which had a great effect upon my boyish mind at the time. I lived in North Shields, and was the favourite of my great-grandmother, with whom I often stayed. The old lady was rather a recluse in her habits, and occupied two upper rooms in her daughter's house. She was known to have some paper money about her, which, however, she carefully concealed somewhere from all her relatives. At the same time, it was known she had a particular partiality for one certain cupboard which she used as a

wardrobe in her bedroom.... At three o'clock one morning, while sleeping at my own home, I awoke to find the old lady standing at the foot of my bed, calling to me and beckoning to me to follow her. I sat up in bed, terrified at the sight, but, of course, manifested no desire to move. The old lady then became impatient, and saying she could not remain longer, begged of me to be sure and go to 'the cupboard,' this being her usual phrase when referring to the small wardrobe.... On the old lady's departure I was so frightened that I felt I dare not stay in the room.... I awoke my mother and told her what had happened. She calmed me as much as possible and saw me off to bed again, but in the morning she was so much impressed with my story that she accompanied me on my way to school, and we called to see if anything was wrong with the old lady. Imagine our surprise on reaching the house to learn that she had been found dead in bed a short time before our visit. The body was cold, proving that she had been dead some hours, the doctor declaring she had died of cholera. The inference formed was that she must have died about the hour she visited me. Suffice it to say, an inspection of 'the cupboard' revealed the fact that other hands had done duty there before ours had a chance, but with what result will never be known."

What such visions are, whether of the dying or of the dead, or otherwise, is a subject of keen controversy, but is not our business here.

The following is a tale still more strange, but is akin to the preceding, since the deceased died unattended, and strove by abnormal means to indicate his will. Michael Conley, a farmer of Chichasow County, Iowa, on February 1, 1891, went to be medically treated at Dubuque, in Iowa, leaving his children Pat and Elizabeth at home. The latter was a girl of twenty-eight. "On Feb. 3rd Michael was found dead in an outhouse near his inn. In his pockets were nine dollars, seventy cents, but his clothes, including his shirt, were thought so dirty and worthless that they were thrown away. The body was then dressed in a white shirt, black clothes and satin slippers of a new pattern. Pat Conley was telegraphed for, and arrived at Dubuque on Feb. 4th.... Pat took the corpse home in a coffin, and on his arrival Elizabeth fell into a swoon, which lasted for several hours. Her account ... may be given in her own words. 'When they told me that father was dead I felt very sick and bad; I did not know anything. Then father came to me. He had on a white shirt and black clothes and slippers. When I came to, I told Pat I had seen father. I asked Pat if he had brought back

father's old clothes. He said "No," and asked me why I wanted them. I told him father said he had sewed a roll of bills inside of his grey shirt, in a pocket made of a piece of my old red dress. I went to sleep, and father came to me again. When I awoke I told Pat he must go and get the clothes.' Pat now telephoned to Mr. Hoffmann, coroner of Dubuque, who found the old clothes in the back yard of the local morgue. They were wrapped up in a bundle. Receiving this news, Pat went to Dubuque on Feb. 9th, where Mr. Hoffmann opened the bundle in Pat's presence. Inside the old grey shirt was found a packet of red stuff, sewn with a man's long, uneven stitches, and in the pocket notes for thirty-five dollars."

There is a similar story which was well investigated, and recounted at great length in the *Journal of the Society for Psychical Research*. But in this instance the girl was artificially entranced. She was a Spanish servant of a Dr. Vidigal, who resided in Brazil, and soon after her engagement in his service she was hypnotised and appeared to communicate with her father; later she gave a message seemingly from Dr. Vidigal's mother, who had died three months before. The deceased lady, it was announced, had left 75 milreis (£3 to £4) in the pocket of a dress which was still hanging in her room. No one knew of this money, which the family could ill dispense with. Dr. Vidigal's wife with another lady went at once to the room, and found the identical sum of money sewn up in one of the two dresses that still remained there.

The failure of the deceased to make his wishes known after death is the source of some curious cases. For several years a villa at Annecy, occupied by a Count Galateri, was disturbed by manifestations of haunting; doors opened of their own accord, books and furniture moved without visible means. The noises seemed to emanate from a cellar in the house. A clairvoyant medium stated that at the door of the villa she saw a soldier with a wooden leg, who said that during the Napoleonic wars he had robbed the dead and waxed rich therewith, bought this villa, and hid his treasure in the cellar. But remorse had seized him, and these disturbances were made to induce the Countess to find the money and give it to the poor. Eventually the Countess dug on the spot, and found a jar containing many francs in gold; she did as desired, doled them among the poor, and house and spirit had rest.

From the latest psychical research the thesis may be illustrated. Richard Hodgson, who during his life devoted himself to the study of the problems of mind and spirit, and himself investigated the story of Dr. Vidigal's mother, determined that after death he would if possible prove the survival of the soul. He died suddenly on December 20, 1905, and eight days later the medium with whom he had often sat, the famous Mrs. Piper, declared that his spirit was communicating through her. He held in his hand a ring. A fortnight later under the same circumstances he begged that this ring might be returned to a certain lady, saying that on the day of his death he had put it in his waistcoat pocket, where, indeed, it was afterwards found. A lady had given him the ring, and is sure no living person knew the fact. But what more natural than that he should will it to be returned to her?

Lastly, the delightful tale of Mrs. Veal may illustrate this category: "the apparition of one Mrs. Veal, the next day after her death, to one Mrs. Bargrave, at Canterbury. September 8, 1705." In this case, however, the disposal of a few trifles, which she managed to wedge into the conversation, was not the main object of her visit. Mrs. Bargrave, "a woman of much honesty and virtue, and her whole life a course as it were of piety," had no notion that she was speaking to one of the departed. Her surprise was great, therefore, when Mrs. Veal said to her, "She would have to write a letter to her brother and tell him, she would have him give rings to such and such; and that there was a purse of gold in her cabinet, and that she would have two broad pieces given to her cousin Watson. Talking at this rate Mrs. Bargrave thought there was a fit coming on her, and so placed herself in a chair just before her knees, to keep her from falling to the ground, if her fits should occasion it: for the elbow chair she thought would keep her from falling either side. And to divert Mrs. Veal, as she thought, took hold of her gown sleeve several times, and commended it. Mrs. Veal told her it was a scowered silk, and newly made up. But for all this Mrs. Veal persisted in her request, and told Mrs. Bargrave she must not deny her: and she would have her tell her brother all their conversation when she had the opportunity. 'Dear Mrs. Veal,' says Mrs. Bargrave, 'this seems so impertinent that I cannot tell how to comply with it; and what a mortifying story will our conversation be to a young gentleman!' 'Why,' says Mrs. Bargrave 'tis much better methinks to do it yourself.' 'No,' says Mrs. Veal, 'though it seems impertinent to you now you will see more reason for it hereafter.' Mrs. Bargrave then to satisfy her importunity was going to fetch

a pen and ink; but Mrs. Veal said, 'Let it alone now, and do it when I am gone; but you must be sure to do it. ' Which was one of the last things she enjoined her at parting, and so she promised her." Not unnaturally her brother objected to this post-mortem will, and "said he asked his sister on her death-bed 'whether she had a mind to dispose of anything?' And she said 'no.'" Certainly, if he wished to prove such a nuncupative will, he would have had little trouble as against Mrs. Bargrave's ghostly will and testament.

How frequently the desires of the dead were frustrated, and to what language testators were moved in striving to prevent such neglect or opposition, has been commented upon. In one of the earliest of extant wills, that of Favonius, made in the war in Lusitania against Viriathus, 142 B.C., the testator invokes his 'manes' to avenge him, if his sons do not remove his bones and bury them on the Latin Way. And (to make a swift transition) Dr. Ellerby, who died in London in February, 1827, bequeathed his heart, lungs, and brains to certain persons "in order that they may preserve them from decomposition; and I declare that if these gentlemen shall fail faithfully to execute these my last wishes in this respect I will come—if it shall be by any means possible—and torment them until they shall comply."

With such threats some have died: the sequel is now to be told. There is a Welsh tale, for instance, of Barbara, wife of Edward, a tailor of Llantivit Major; she was hale and hearty enough, till a secret weighed more and more upon her mind. For a long time after her husband's mother's death, she concealed the fact that the old woman had entrusted her with a bag of money, to divide equally among the family. This Barbara secreted for herself. But the old woman's spirit so harassed and pinched her that she grew wretched and wasted away. Finally, rather than divide it according to the woman's will, she cast the bag into the Ogmores stream, where in Welsh folklore treasure was wont to be thrown. Then at last she had peace.

Burton Agnes Hall, in the East Riding of Yorkshire, was occupied in the reign of Queen Elizabeth by three sisters. The youngest, Anne Griffith, put her heart and soul into the restoration of the building and in additions to its beauty. But it was not long before she fell a victim to highwaymen, being set upon when alone in the lanes. She was found, and lingered several days; before she died, she besought her sisters to sever her head from her dead body and suffer it to remain within the Hall. If her wish were not fulfilled,

she threatened to make the house uninhabitable. The sisters promised, but did not perform it. But soon noises as of slamming doors, and as of the groans of the dying, terrified the household and broke in upon the sisters' sorrow. They remembered their promise. The coffin was opened and the head brought to the house. It was said that the head had already been mysteriously severed from the body, as if ready to be carried to the resting-place it desired. Surely enough, when the head was safely ensconced in the Hall, the noises were no more heard.

The tale of the Demon of Spraiton, dating from the seventeenth century, is another story to the purpose. A servant was one day surprised by the apparition of his master's father, saying that several legacies which by his testament he had bequeathed were still unpaid, and promising if his behests were carried out to cease from troubling. "The spectrum left the young man, who according to the direction of the spirit took care to see the small legacies satisfied, and carried the twenty shillings that were appointed to be paid the gentlewoman near Totnes, but she utterly refused to receive it, being sent her (as she said) from the devil. The same night the young man lodging at her house, the aforesaid spectrum appeared to him again; whereupon the young man challenged his promise not to trouble him any more, saying he had performed all according to his appointment, but that the gentlewoman, his sister, would not receive the money. To which the spectrum replied that this was true indeed; but withal directed the young man to ride to Totnes and buy for her a ring of that value, which the spirit said she would accept of, which being provided accordingly she received. Since the performance of which the ghost or apparition of the old gentleman hath seemed to be at rest, having never given the young man any further trouble."

This English ghost appeared in 1682. In 1683 an Italian apparition troubled the living. The Marchesa Astalli was a young married woman of pure religious life. After her sudden death, however, as though she was not at rest, she several times revealed herself to a secular priest who was devoted to souls in Purgatory. At the last appearance it seemed as though an internal voice bade him speak, and ask the spirit her desire. "But she was silent," says the priest, "for the space of half an Ave Maria, and then said: 'Go to the Marchese Camillo, and tell him to have two hundred masses said for me.' ... I replied in great perplexity, and almost with my heart in my

mouth: 'They will not believe me, they will take me for a mad-man.' Then the spirit, opening its white mantle, exclaimed: 'My son, pity me.' And, as she said this, streaks of fire came towards me from her breast, as though two bundles of tow had been lighted. Then she closed her mantle with her hands; folding one side over the other as it was at first, she moved a few steps, looking me in the face; and I, lying almost in mortal agony, all bathed in a cold sweat, which passed through the mattress to the boards, plucked up spirit and said to her: 'Why do you not go to the Marquis.' Then the spirit, with a trembling voice and with many tears, which issued from her reddened eyes, as though she had wept long and bitterly, replied: 'God does not will it.' I again summoned up courage and said: 'They will not believe me.' Then the spirit replied: 'Look where I touch,' and departed.... After she had gone I remained languid and speechless for half an hour, then, as it pleased the Lord, having come somewhat to myself, I knocked on the door at the head of the bed, which led into my brother's room, and he immediately answered.... Then I asked him to look whether there was anything on the bed. He replied that there was nothing: then, looking more attentively, he said with a surprised air that the coverlet was burnt, and in the middle of it was the imprint of a right hand.... I, Domenico Denza, in the interests of truth, attest and confirm what is above written with my own hand."

Needless to relate, the masses were duly said, and the noise of the tale was rumoured abroad. Her husband found, among the papers of the deceased lady, memoranda to the effect that two hundred masses were to be said on account of a vow, which she had made but at her death had not yet fulfilled.

This seventeenth-century tale of Italy finds an echo in Brazil at the end of the nineteenth century. An aunt, who narrates the facts, received her nephew at Barbacena after the death of his young Belgian wife, in 1894, and though the nephew did not stay long, some luggage appears to have been left at the aunt's house. Two months or so later she had a vivid dream. "It seemed to me that she entered the room where I really lay asleep, and, sitting down on the bedside, asked me as a favour to look into an old tin box under the staircase for a certain wax candle which had already been lighted, and which she had promised to Our Lady. On my consenting to do so, she took leave of me saying, '*Até o outro mundo*' ('Till the other world'). I

awoke from the dream much impressed. It was still dark, but I could no longer sleep.” Search was duly made in the box, which contained old clothes and cuttings, and among them the candle of the dream. “It was of wax—of the kind used for promises [to saints]—and, what was a still more singular coincidence, it had already been lighted. We delivered the candle to M. Jose Augusto of Barbacena, in performance of my niece’s pious vow thus curiously revealed in a dream.”

In England, before the Reformation, it was common in wills to order solemn celebrations, for the rest of the soul and for a memorial of the departed. In this respect the will of Richard Cloudesley, of Islington, is not unusual. “In the Name of the Holy Trinity, Father, and Son and Holy Ghost, Amen, the 13th day of the month of January, the year of our Lord, 1517, and the ninth year of the reign of King Henry VIIIth. I, Richard, otherwise called Richard Cloudysley, clear of mind, and in my good memory being, loved be Almighty God, make and ordain my testament or my last will, in the manner and form as followeth. First, I bequeath and recommend my soul unto Almighty God, my Creator and Saviour, and His most blessed mother Saint Mary the Virgin, and to all the Holy Company of Heaven. My body, after I am passed this present and transitory life, to be buried within the churchyard of the parish Church of Islington, near unto the grave of my father and mother, on whose souls Jesu have mercy. Also I bequeath to the high altar of the same church, for tythes and oblations peradventure by me forgotten or withholden, in discharging of my conscience, 20s. Also I bequeath to the said church of Islington eight torches, price the piece six shillings four of them, after my month’s mind is holden and kept, to remain to the Brotherhood of Jesu within the said church, and the other four torches to burn at the sacryng of the high mass within the said church as long as they will last.... I will that there be incontinently after my decease, as hastily as may be, a thousand masses said for my soul, and that every priest have for his labour 4d. Item, I will that there be dole for my soul the day of burying, to poor people 5 marks in pence.... I bequeath to the poor lazars of Highgate to pray for me by name in their bead roll 6s. 8d. Also, I will that, every month after my decease, there be an obit kept for me in Islington Church, and each priest and clerk have for their pains to be taken, as they used to have afore this time. And I will that there be distributed at every obit, to poor people, to pray for my soul, 6s. 8d. I will that all that now be seised to my use, and to the performance of my will or hereafter shall be

seised to the same, of and in a parcel of ground called the Stony-field, otherwise called the Fourteen Acres, shall suffer the rents and profits of the same from henceforth to be counted to this use ensuing; that is to say, I will that, yearly after my decease, the parishioners of the parish of Islington, or the more part of them, once in the year, at the parish church aforesaid, shall elect and choose six honest and discreet men of the said parish, such as they think most meet to have the order and distribution of the rent and profit aforesaid, which rent I will shall by the said six persons be bestowed in the manner and form following; that is to say, I will that there be yearly for ever a solemn obit to be kept for me within the said church of Islington, and that there be spent at the obit 20s. And also that there be dealt to poor people of the said parish at every obit, to pray for my soul, my wife's soul, and all Christian souls 6s. 8d. And further, I will that the said six persons shall yearly pay, or do to be paid, to the wardens of the Brotherhood of Jesu, 1 l. 6s. 8d. towards maintaining of the mass of Jesu within the said church; upon this condition, that the said wardens shall yearly for ever cause a trental of masses to be said for my soul in the said church; and further I will that the aforesaid six persons shall have among them for their labour, to see the true performance of the same, yearly at every obit 10s."

But, says a worthy Protestant writer on the history of Islington, "all the provisions made by Cloudesley for the pardon of his sins, and the repose of his soul, would seem ... to have proved inoperative." For the following strange story is told. "And as to the same heavings or *tremblements de terre*, it is said that in a certain field, near unto the parish church of Islington, in like manner did take place a wondrous commotion in various parts, the earth swelling and turning up every side towards the midst of the said field, and by tradition of this it is observed that one Richard de Cloudesley lay buried in or near that place, and that his body being restless, on the score of some sin by him peradventure committed, did shew or seem to signify that religious observance should there take place, to quiet his departed spirit; whereupon certain exorcisers, if we may so term them, did at dead of night, nothing loth, using divers divine exercises at torch light, set at rest the unruly spirit of the said Cloudesley, and the earth did return anear to its pristine shape, never more commotion proceeding therefrom to this day, and this I know of a very certainty."

As a final instance of a spirit evoked by the perversion or neglect of his dispositions or desires we may go to the pages of the entertaining writer of the “History of Apparitions Sacred and Prophane, Under all Denominations; whether Angelical, Diabolical, or Human-Souls departed,” published in 1729 and “Adorn’d with Cuts.”

“In the year 1662 an Apparition meets one Francis Taverner on the Highway; the man having Courage to speak to it, asks it what he is? and the Apparition tells him he is James Haddock, and gives him several Tokens to remember him by, which Taverner also calling to mind owns them; and then boldly demands of the Apparition what business he had with him.... The next Night the Apparition comes to him again, and then tells him the Business, which was to desire him to go to his Wife, whose Maiden Name was Eleanor Welsh; but was then marry’d again to one Davis, which Davis withheld the lease from the Orphan, Haddock’s Son, and tell her she should cause Justice to be done to the Child. Taverner neglected to perform this Errand, and was so continually followed by the Apparition that it was exceedingly terrible to him; and at last it threaten’d to tear him in Pieces, if he did not go of his Errand.”

The story was noised abroad, and the famous Bishop Jeremy Taylor took Taverner under his examination. He advised him to ask the apparition, when it should appear again, several questions, including the pertinent inquiry why it should come for the relief of its son, when so many widows and orphans were oppressed more grievously, but no spirit came to right them. But, alas! the spirit was silent.

At last the lease was given up to the son of James Haddock, and the apparition presumably satisfied. But “about five years after, and when the Bishop was dead, one Costlet, who was the Child’s Trustee, threatened to take away the Lease again, rail’d at Taverner, and made terrible Imprecations upon himself if he knew of the Lease, and threatened to go to Law with the Orphan. But one night, being drunk at the Town of Hill-Hall, near Lisburne in Ireland, where all this Scene was laid, going home he fell from his Horse and never spoke more, and so the Child enjoy’d the Estate peaceably ever after.”

Romances have been mentioned, arising from a will’s destruction or loss, and it is no wonder if ghost stories spring up around such themes.

There is one such told of a farm on the Thorney estate. A woman sleeping in the haunted room of a cottage felt at midnight something at her side, and saw by the light of the moon a “thin, gray-haired woman of about seventy-six, with a full-bordered cap, red chintz garment, and crossover wrap of the same material. She had only one tooth. She seemed to glide over the floor.” The figure did not speak, but pointed to the ceiling. A search among the beams above the room disclosed the will of a farmer named John Cave, who died there over a hundred years since with a fortune of £10,000.

The person who perceived this apparition denied strongly that it was a dream. But dreams play an important part in stories of things lost or forgotten, and often it is difficult to distinguish, if distinction there be, between a waking vision and a dream. The imagination is stirred—and exasperated—by the story of the “Jennings millions,” where a will was found, but unsigned. Search was made in vain for a duly executed will. Among incidents in the case there is narrated the dream of a lady who on three successive nights saw in her dream the churchyard of Brailsford, and perceived that under a certain grave lay the missing document. But the grave appears not to have been opened, and the matter was forgotten.

Dreams with more interesting sequels have occurred. There is a well-known instance of an English landowner, whose father appeared in a dream and told the details of a debt which he had paid, but could not be proved by the son to have been satisfied. Still better in this connection is a story St. Augustine tells. “Of a surety, when we were at Milan, we heard tell of a certain person of whom was demanded payment of a debt, with production of his deceased father’s acknowledgment, which debt, unknown to the son, the father had paid; whereupon the man began to be very sorrowful, and to marvel that his father while dying did not tell him what he owed when he also made his will. Then in this exceeding anxiousness of his, his said father appeared to him in a dream, and made known to him where was the counter acknowledgment by which that acknowledgment was cancelled. Which when the young man had found and showed, he not only rebutted the wrongful claim of a false debt, but also got back his father’s note of hand, which the father had not got back when the money was paid.”

A long story to the purpose is told in the “History of Apparitions” already mentioned. The Rev. Dr. Scott, “a man whose Learning and Piety was eminent, and whose Judgment was known to be so good, as not to be

easily imposed upon,” was sitting alone in his room in Broad Street. Suddenly he looked up from his book and saw a figure in the room. Distracted by the sight, it was a long time before he could gain composure, but eventually he became sufficiently calm to ask upon what errand the spirit came. He said that he had left a good estate which his grandson rightly enjoyed, but which was sued for by two nephews of the deceased. ‘It is not’ (said the spectre) ‘that the Nephews have any Right; but the grand Deed of Settlement, being the conveyance of the Inheritance, is lost; and for want of the Deed they will not be able to make out their Title to the Estate.’

“‘Well,’ says the Doctor, ‘and still what can I do in the Case?’

“‘Why,’ said the Spectre, ‘if you will go down to my Grandson’s House, and take such Persons with you as you can trust, I will give you such Instructions as that you shall find out the Deed or Settlement, which lies concealed in a Place where I put it with my own Hands, and where you shall direct my Grandson to take it out in your Presence.’

“‘But why then can you not direct your Grandson himself to do this?’ says the Doctor.

“‘Ask me not about that,’ says the Apparition: ‘there are divers Reasons which you may know hereafter.’ ...

“After this Discourse, and several other Expostulations, (for the Doctor was not easily prevail’d upon to go ’till the Spectre seemed to look angrily, and even to threaten him for refusing,) he did at last Promise him to go.

“Having obtained a Promise of him, he told him he might let his Grandson know that he had formerly convers’d with his Grandfather, (but not how lately, or in what manner,) and ask to see the House; and that in such an upper Room or Loft, he should find a great deal of old Lumber, old Coffers, old Chests, and such Things as were out of Fashion now, thrown by, and pil’d up upon one another, to make room for more modish Furniture, Cabinets, Chests of Drawers, and the like.

“That in such a particular Corner was such a certain old Chest, with an old broken Lock upon it, and a Key in it, which could neither be turn’d in the Lock, or pulled out of it.

“N.B. Here he gave him a particular Description of the Chest, and of the Outside, the Lock and the Cover,

and also of the Inside, and of a private place in it, which no Man could come to, or find out, unless the whole Chest was pull'd in Pieces.

“‘In that Chest,’ says he, ‘and in that place, lyes the grand Deed, or Charter of the Estate, which conveys the Inheritance, and without which the Family will be ruin’d, and turn’d out of Doors.’

“After this Discourse, and the Doctor promising to go down into the Country and dispatch this important Commission; the Apparition putting on a very pleasant and smiling Aspect, thank’d him, and disappeared.

“To the Country the Doctor accordingly went and was courteously received. After the Doctor had been there some time, he observed the Gentleman receiv’d him with an unexpected Civility, tho’ a Stranger, and without Business. They entered into many friendly Discourses, and the Doctor pretended to have heard much of the Family, (as, indeed, he had) and of his Grandfather; ‘from whom, Sir,’ says he, ‘I perceive the Estate more immediately descends to yourself.’

“‘Ay,’ says the Gentleman, and shook his Head, ‘my Father died young, and my Grandfather has left things so confus’d, that for want of one principal writing, which is not yet come to Hand, I have met with a good deal of trouble from a couple of Cousins.’

“‘But I hope you have got over it, Sir?’ says he.

“‘No truly,’ says the Gentleman, ‘to be so open with you, we shall never get quite over it unless we can find this old Deed; which, however, I hope we shall find, for I intend to make a general Search for it.’

“‘I wish with all my Heart you may find it, Sir,’ says the Doctor.

“‘I don’t doubt but I shall; I had a strange Dream about it but last Night,’ says the Gentleman.

“‘A Dream about the Writing!’ says the Doctor. ‘I hope it was that you should find it then?’ ‘I dream’d,’ says the Gentleman, ‘that a strange Gentleman came to me, that I had never seen in my Life, and help’d me to look it. I don’t know but you may be the Man.’

“‘I should be very glad to be the Man, I am sure,’ says the Doctor.”

But Defoe is lengthy, and it need only be said that all went well; the Deed was found without ado, and all—save the cousins—were satisfied.

“The wife of one of Johnson’s acquaintance,” Boswell says, “made a purse for herself out of her husband’s fortune. Feeling a proper compunction in her last moments, she confessed how much she had secreted; but before she could tell where it was placed, she was seized with a convulsive fit and expired.”

It is in tales of buried treasure that the subject of wills is, perhaps, most nearly connected with ghosts. As the water-finder feels the presence of water, so the sensitive sees in concrete form the presence of hidden wealth. There is a story of a field in Kent, where a ghostly old man was seen to boil his pot on stormy nights: upon that spot a hoard of coins was subsequently found. At Bryn yr Ellyllon, or Goblin Hill, in Wales, a woman saw a figure of superhuman height, clad in gold, disappear within the mound, where, on excavation, a skeleton was discovered in a corselet of Etruscan gold.

There was a strong probability, when men buried away their gold, that at death the hoard might be unknown, or its hiding-place undivulged, to the living. “Nothing,” says the historian of Apparitions, “has more fill’d the idle Heads of the old Women of these latter Ages than the Stories of Ghosts and Apparitions coming to People, to tell them where money was hidden, and how to find it; and ’tis wonderful to me that such Tales should make such Impressions, and that sometimes among wise and judicious People too, as we find they have done. How many old Houses have been almost pull’d down, and Pitts fruitlessly dug in the Earth, at the ridiculous Motion of pretended Apparitions?”

Primitive tales seem frequently to centre in this theme, and picturesque details are not lacking. This, from the folklore of Wales, may stand as a sample of its kind. “In a village near Cowbridge, in the vale of Glamorgan, a middle-aged bachelor and his two sisters lived. The eldest sister one night heard a voice calling her from under the bedroom window, but she did not answer it. Twice in succession this happened, and she told her brother and sister about it. They advised her to answer the voice if it called again. The third night another call came. She went to the lattice, opened it and looked out, but not a person was visible. ‘What dost thou want?’ she asked; and the voice answered: ‘Go down to the second arch of the gateway leading into

St. Quintin's Castle, Llanblethian, and there dig. Thou wilt find buried in a deep hole close to the inner arch a crock full of gold pieces. It is of no use to me now. Take it, and may the gold be a blessing to thee.' The brother and sisters dug, and with very little trouble found the treasure." So the ghostly will was not frustrated.

The story of Sykes Lumb Farm, again, is characteristic. This farm, situated between Preston and Blackburn, was haunted by the ghost of Mrs. Sykes. She and her husband seem to have had more money than they could safely keep above ground in the troubled times of their life, and buried it for safety beneath an apple-tree. They had no children, and no near relatives. The farmer first died, and then his wife, suddenly. The place was filled with claimants to her wealth, but the treasure was not forthcoming. In after-years the intestate Mrs. Sykes, in the guise of an old woman, wrinkled and dressed in the fashion of other days, haunted the scene of her earthly habitation, till she could deliver herself of the secret that weighed upon her spirit. At last the then farmer addressed her, and the spell was loosed. She led the way towards the stump of the apple-tree and pointed. There could be only one meaning, and search was made. As the last jar was lifted out, the ghost was for the last time seen, a smile of satisfaction brightening her face.

The entertaining Defoe, who has illustrated this chapter more than once, thus speaks of these narrations. "The notion of Spirits appearing to discover where money has been buried, to direct people to dig for it, has so universally prevailed with womankind, I might say and even with mankind too, that it is impossible to beat it out of their heads; and if they should see anything which they call an apparition, they would to this day follow it, in hope to hear it give a stamp on the ground, as with its foot, and then vanish; and did it really do so, they would not fail to dig to the Centre (if they were able) in hopes of finding a pot of money hid there, or some old urn with ashes and Roman medals; in short, or some considerable treasure." He is contemptuous, in spite of the numbers of such tales and the strong belief attaching to them, and narrates one only to show how easy it is to beat it down to sober fact. His summing-up of the matter is too good not to quote. "From all which reasons I must conclude, that the departed spirits know nothing of these things, that it is not in their power to discover their old hoards of money, or to come hither to show us how we may come at it; but that in short, all the old women's stories, which we have told us upon that

subject, are indeed old women's stories, and no more. I cannot quit this part of my subject without observing that, indeed, if we give up all the stories of ghosts and apparitions, and spirits walking, to discover money that is hid, we shall lose to the age half the good old tales which serve to make up winter evening conversation, and shall deprive the doctrine of souls departed coming back hither to talk with us about such things, of its principal support; for this indeed is one of the principal errands such apparitions come about. It is without doubt that fancy and imagination form a world of apparitions in the minds of men and women, (for we must not exclude the ladies in this part, whatever we do;) and people go away as thoroughly possessed with the reality of having seen the Devil, as if they conversed face to face with him; when in short the matter is no more than a vapour of the brain, a sick delirious fume of smoke in the hypochondria; forming itself in such and such a figure to the eye-sight of the mind, as well as of the head, which all looked upon with a calm revision, would appear, as it really is, nothing but a nothing, a skeleton of the brain, a whimsy, and no more."

In a recent will the testator wrote: "I do not leave any legacies to institutions. To those I am interested in I have given money time and labour during many years, and to others I have subscribed sufficiently. But if my children, who benefit under this my will, would give £100 to the Bluecoat School, in memory of me, it would please me, if there be any intercourse between this world and the next." Whether there be any such intercourse, whether the dead ever attempt to modify human affairs, this is not the place to dogmatise. But no one can study human nature without noting such narratives. They are rooted deep in the soil. St. Augustine says beautifully, though not convincingly: "If the dead could come in dreams, my pious mother would no night fail to visit me. Far be the thought that she should, by a happier life, have been made so cruel that, when aught vexes my heart, she should not even console in a dream the son whom she loved with an only love." But the negative proves nothing save our ignorance. And it is time to quit this by-way in wills.

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